



Republic of the Philippines
SENATE
Pasay City

JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 16
WEDNESDAY, 12 AUGUST 2026

PREPARED BY THE
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SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 16

Wednesday, August 12, 2026

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

CALL TO ORDER

At 9:58 a.m., Wednesday, August 12, 2026, the Senate President, Win Gatchalian, with the Senate sitting as an Impeachment Court, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PRAYER

Sen. Erwin T. Tulfo led the prayer, to wit:

Sa Ngalan ng Ama, at ng Anak, at ng Espiritu Santo. Amen.

Aming mapagmahal na Diyos, bigyan Mo po ng malinaw na pag-iisip, malinis na konsensya, at matatag na paninindigan ang mga senador na nagsisilbing mga hukom ngayon. Nawa'y maging patas at walang kinikilingan ang aming paghatol, hindi dahil sa pulitika, personal na interes, opinyon ng publiko, o anumang impluwensiya.

Higit sa lahat, Panginoon, huwag Mong hayaang ang hatol ay maimpluwensiya-han ng social media. Nawa'y hindi siya mahatulan dahil lamang sa ingay ng mga opinyon online at hindi rin siya mapawalang-sala dahil sa popularidad o suporta ng iba. Ang maging batayan lamang sana ay ang katotohanan, ang batas, at ang mga ebidensiyang inihaharap sa paglilitis.

Kung tunay nga na walang sala si Vice President Sara Duterte, bigyan Mo ng tapang at karunungan kaming mga hukom na siya ay agad na mapawalang sala. Ngunit, kung ang mga ebidensiya ay malinaw, matibay, at sapat upang patunayang siya ay nagkasala, bigyan Mo rin kami ng katatagan na siya ay panagutin nang naaayon sa batas.

Panginoon, nawa'y maging mabilis ngunit makatarungan ang paglilitis na ito. Huwag nawa itong patagalin nang walang sapat na dahilan sapagkat tunay na ang kasabihang "justice delayed is justice denied."

Sa huli, nawa'y hindi ang pulitika, social media, o popular na opinyon ang manaig kundi ang katotohanan, katarungan, at kapakanan ng sambayanang Pilipino.

Ito ang aming isinasamo sa inyo Panginoon. Amen.



ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:

Aquino, B.	Padilla, R.
Cayetano, P. S.	Pangilinan, F. N.
Ejercito, J. V.	Sotto III, V. C.
Escudero, F. G.	Tulfo, E. T.
Gatchalian, W. T.	Tulfo, R. T.
Go, C. L. T.	Villanueva, J.
Lacson, P. M.	Villar, C. A.
Lapid, M. M.	Villar, M. A.
Marcos, I. R.	Zubiri, J. M. F.

With 18 senators present, the Chair declared the presence of a quorum.

Senator-Judge Hontiveros was also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judge Legarda was on medical leave.

Senator-Judges Dela Rosa and Cayetano (A) were absent.

In accordance with the *Rules of Procedure on Impeachment Trials*, Senate President Gatchalian recognized the duly elected Presiding Officer, Senator-Judge Francis "Chiz" G. Escudero, to preside over the proceedings of the Impeachment Court.

APPROVAL OF THE JOURNAL

Upon motion of the Presiding Officer, there being no objection, the Body dispensed with the reading of *Journal* No. 15 of the Senate sitting as an Impeachment Court on August 11, 2026 and considered the same as approved.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court called Case No. 004-2026, titled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

Rep. Joel Chua entered the appearances previously entered on behalf of the Prosecution.

Atty. Kristine Ferrer entered the same appearances on behalf of the Respondent.

INSTRUCTION OF THE CHAIR

The Presiding Officer directed the Clerk of Court, through the Office of the Sergeant-At-Arms (OSAA), to escort Xylene Mae L. Del Campo, State Auditor at the Commission on Audit-

Intelligence and Confidential Funds Audit Office (COA-ICFAO), to the witness stand for the continuation of her testimony. Ms. Del Campo was reminded that she would testify under the same oath administered during the previous day's proceedings.

Upon the request of Representative Chua, the Presiding Officer recognized Atty. Lorna Kapunan, Counsel for the Panel of Prosecutors.

MANIFESTATION OF ATTORNEY KAPUNAN

Attorney Kapunan expressed the concern of the Prosecution about Attorney Ferrer's statement that the marking of the tabulations and summaries would not constitute an admission as to the authenticity of the acknowledgment receipts (ARs) forming part of the said documents.

Attorney Kapunan stated that the summaries were personally prepared by Ms. Del Campo, a competent witness, and that the ARs have attestations that they were certified by their respective custodians. She then raised concern that, unlike Ms. Del Campo, succeeding witnesses would not have any personal knowledge of the ARs and, therefore, would not be able to properly identify and authenticate documents based on personal knowledge.

Attorney Kapunan recalled that the Presiding Officer previously directed Counsel for both parties to separately submit their documentary evidence, particularly the ARs, to the Clerk of Court for comparison. As such, she requested that the directive be expanded to allow Ms. Del Campo to appear before the Clerk of Court, in the presence of Counsel for both parties, in identifying and authenticating the ARs. She also proposed that, after the identification and authentication, the Clerk of Court accept them and prepare an appropriate finding, report, or evaluation confirming that the documents had been properly identified and authenticated. She explained that such procedure would preempt any technical legal objection during the formal offer of evidence and avoid the need for the prosecution to present and identify each acknowledgment receipt individually before the Court.

The Presiding Officer inquired whether the Prosecution intended to resume the direct examination of Ms. Del Campo, noting that the direct examination was already terminated the previous day. Attorney Kapunan stated that the Prosecution would be terminating the direct examination if the Presiding Officer would grant the request to allow Ms. Del Campo to appear before the Clerk of Court to identify and authenticate the documents, in the presence of Counsel for both parties.

Attorney Kapunan explained that while the private prosecutors already concluded the direct examination, it was the Panel of Prosecutors, which has supervision over them, that expressed concern regarding a possible technical objection by the Counsel for the Respondent concerning the identification and authentication of the individual ARs.

RULING OF THE PRESIDING OFFICER

The Presiding Officer stated that the ARs had already been sent by the Counsel for the Respondent to the Clerk of Court for comparison with the Prosecution's ARs. The Court, through the Presiding Officer noted that both sets consisted of certified true copies, although some of Respondent's copies were certified by a different certifying officer from COA, and that Ms. Del Campo had clearly testified that her tabulations were based on ARs certified by the same person.

The Presiding Officer ruled that the Clerk of Court would proceed with the comparison of the certified true copies submitted by both parties, and that the admissibility of the ARs would be resolved by the Court upon their formal offer without need for comparison by witness.



The Presiding Officer noted that the Counsel for the Respondent did not raise the corresponding copies for comparison during the previous day's presentation of the randomly selected acknowledgment receipts, and that while there was apparently no discrepancy or difference at that time, any such discrepancy may become apparent during cross-examination..

The Presiding Officer stated that the Respondent has the right to present copies of its ARs, considering that its theory appears to question whether the chain of custody had been broken. He further stated that, if it is established that the chain of custody is unbroken, based also on the comparison of the ARs, then there would be no need to further belabor the matter. He pointed out that the Court would make its ruling at the appropriate time, but initially it was the Court's position that the ARs testified to by Ms. Del Campo and relied upon in preparing the Prosecution's tabulations and summaries would be compared by the Clerk of Court against the corresponding copies submitted by the Respondent.

MANIFESTATION OF ATTORNEY KAPUNAN

In clarifying the record regarding the marking of the prosecution's tabulations and summaries, Attorney Kapunan manifested that after the previous day's hearing, Counsel for both parties remained in Court to facilitate the marking of the documents before the Clerk of Court, pursuant to the Presiding Officer's direction.

Attorney Kapunan then placed on record the following markings on the tabulations for the Office of the Vice President, noting that the first item was prepared by Atty. Roderick C. Wamil, while the succeeding tabulations were prepared by Ms. Del Campo:

- P-I-29 – tabulation for the last quarter of December 2022, prepared by Attorney Wamil;
- P-I-30 – tabulation for the first quarter;
- P-I-31 – tabulation for the second quarter; and
- P-I-32 – tabulation for the third quarter.

She further stated that the corresponding summaries of the tabulations were marked as follows:

- P-I-29-1 – summary for December 2022;
- P-I-30-1 – summary for the first quarter;
- P-I-31-1 – summary for the second quarter; and
- P-I-32-1 – summary for the third quarter.

For the Department of Education (DepEd), Attorney Kapunan stated that the tabulations personally prepared by Ms. Del Campo and previously identified before the Impeachment Court were likewise marked as:

- P-I-33 – first quarter;
- P-I-34 – second quarter; and
- P-I-35 – third quarter.

She said that the corresponding summaries of the tabulations were marked as:

- P-I-33-1 – summary for the first quarter;
- P-I-34-1 – summary for the second quarter; and
- P-I-35-1 – summary for the third quarter.

Attorney Kapunan then confirmed that the Prosecution had terminated its direct examination of Ms. Del Campo.



ORDER OF THE PRESIDING OFFICER

The Presiding Officer directed the Counsel for the Respondent to proceed with the cross-examination of the witness.

CROSS-EXAMINATION OF THE WITNESS

Attorney Ferrer conducted the cross-examination of the witness, Ms. Del Campo, as follows:

Ms. Ferrer. Thank you, Your Honor.

Good morning, Celine? Is that the way that you pronounce your name? Celine?

Ms. Del Campo. Xylene po.

Ms. Ferrer. Xylene, okay. So, you have been with the COA since 2014, right?

Ms. Del Campo. August 26, 2014 po.

Ms. Ferrer. August 26. So, that is around 12 years already.

Ms. Del Campo. Yes po, magtu-12 years.

Ms. Ferrer. Okay. You assumed the accounts of the Vice President—the audit of the confidential funds of the Vice President and the DepEd when Attorney Wamil was reassigned to COA Pasay, correct?

Ms. Del Campo. Opo, tama po.

Ms. Ferrer. Curious lang ako, Ms. Xylene, was that reassignment, a promotion, or just a plain reassignment, if you know?

Ms. Del Campo. Iyong kay Mr. Wamil po?

Ms. Ferrer. Yes.

Ms. Del Campo. Na-reassign po siya.

Ms. Ferrer. Reassignment lang. Okay. So, that was on February 12, 2024?

Ms. Del Campo. Opo, tama po.

Ms. Ferrer. So, Mr. Wamil was the one who prepared the AOMs for the fourth quarter of 2024 for the OVP, tama?

Ms. Del Campo. Iyong AOM po is for the fourth quarter of 2022.

Ms. Ferrer. Ay, 2022 rather.

Ms. Del Campo. Opo.

Ms. Ferrer. Okay. And he also prepared the AOM for the first and second quarter of 2023?

Ms. Del Campo. Ng OVP po, opo.

Ms. Ferrer. Okay. So, we will go back to that.

So, when Mr. Wamil reassigned to you his account, was there any office memorandum that was issued by the COA reassigning you as the examiner of a—

Ms. Kapunan. Your Honor, please. The question is misleading, Your Honor. It is not Mr. Wamil who reassigned the account to her. She just occupied the position, Your Honor.

The Presiding Officer. The question was, if there was an office memorandum assigning her to take over from Wamil, not Wamil himself.

Witness may answer.

Ms. Del Campo. Iyong sa assignment po kasi namin, ang hawak na—

Ms. Ferrer. No, just—just please answer the question. Was there an office memorandum assigning you to handle the accounts of the OVP and the DepEd, particularly the confidential audit of these two offices?

Ms. Del Campo. *Mayroon po kaming order na ako po ang assigned na maghawak ng national government agencies po.*

Ms. Ferrer. Particularly the Office of the Vice President and the DepEd, *mayroon ho kayo noon?*

Ms. Kapunan. Asked and answered, Your Honor.

Ms. Ferrer. *Hindi.* My question was specific, *ano.* I am referring to the DepEd and the OVP.

The Presiding Officer. Witness may answer.

Ms. Kapunan. These are national agencies, Your Honor.

Ms. Ferrer. Your Honor, please, can the Counsel allow me to continue my question?

Ms. Kapunan. Asked and answered, Your Honor.

The Presiding Officer. Witness may answer, Counsels. *May memorandum po ba na nag-assign sa inyo, specifically sa DepEd at OVP?*

Ms. Del Campo. *Iyong memorandum po is nag-a-assign—naka-assign ako sa national government agencies.*

Ms. Ferrer. Okay.

The Presiding Officer. All?

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay, I'll accept that answer, Your Honor. Was it Mr. Wamil who personally turned over his files to you?

Ms. Del Campo. *Ah, iniwan po niya iyong files niya sa office po noong malipat po siya sa COA Pasay.*

Ms. Ferrer. *Kaninong office? Sa iyo or kaninong office ba?*

Ms. Del Campo. *Sa custodian po namin sa COA-ICFAO.*

Ms. Ferrer. Okay. So, *mayroon ho ba siyang iniwan na endorsement sa inyo na, "Ito lahat iyong mga files na iniwan ko for this particular account"? Mayroon ho ba? For the OVP, mayroon ho ba siyang iniwan na endorsement?*

Ms. Del Campo. *Iyong mismong mga files po, iniwan po niya sa custodian namin.*

Ms. Ferrer. Endorsement *ho*, like letter, a summary containing a list of the files that he turned over to the custodian, *mayroon ho bang ganoon?*

Ms. Del Campo. *Mayroon po kaming logbook pag natapos na po iyong—*

Ms. Ferrer. Logbook. Okay, *pero dala mo ba iyon ngayon?*

Ms. Del Campo. *Hindi po.*

Ms. Ferrer. Okay. So, how about *doon sa DepEd, may iniwan ho ba siyang transmittal doon sa custodian na, "Ito lahat iyong mga iniwan kong files with regard to the audit of the DepEd confidential funds," mayroon ho ba?*

Ms. Del Campo. *Ang iniwan po niya is iyong mismong document.*

Ms. Ferrer. *Iyong mismong document.* So, *walang transmittal na iniwan ho doon sa custodian?*

Ms. Del Campo. *Opo, iyong mismong documents pong iyon.*

Ms. Ferrer. Documents. Okay, *sige.*

May iniwan ho ba si Mr. Wamil sa inyo? Hindi ba, sabi ninyo ho, may mga documents ho siyang iniwan? Hindi ba, pag nag-audit ho tayo, mayroon ho tayong tinatawag na "working papers," iyang mga drafts po natin? May iniwan ho si Mr. Wamil sa inyo noon?

Ms. Kapunan. Your Honor, please, again, the question is misleading. This witness already said—asked and answered—that Mr. Wamil did not leave documents to her. Mr. Wamil left the documents to the office.

Ms. Ferrer. I will rephrase. I will rephrase, Your Honor.

The Presiding Officer. Kindly rephrase, Counsel.

Ms. Ferrer. Okay, *may iniwan*—

The Presiding Officer. *May iniwan bang worksheets sa custodian?*

Ms. Ferrer. Yes *po*.

Ms. Del Campo. *Nakasama po doon sa files iyang mga working papers po.*

Ms. Ferrer. All right. All right, I'll take that answer.

Kayo ho, paano ninyo kinuha iyang mga files na iyon? Kinuha ninyo lang direktso sa custodian? Ano pong proseso noon?

Ms. Del Campo. *Noong ma-assign po sa akin iyang sa OVP at sa DepEd, noong nag-submit po sila ng response, ibinigay po sa akin iyang response together with the documents na pinagbasehan po ng audit observation memorandum po.*

Ms. Ferrer. Okay. So, in short, *ni-route lang sa iyo iyang response. Tama ho?*

Ms. Del Campo. Response, together with *iyong* AOM, together with the attachment *po*, na *iyong mga dokumento*.

Ms. Ferrer. Okay. So, *kailan ho iyan ni-route sa inyo? Iyang response, iyang AOM? Mga estimate lang po.*

Ms. Del Campo. *Iba-iba po kasi. Hindi ba, ang una is iyang March 13, 2024 na response nila sa NS? Naibigay po sa akin ito, March 14. Iyang sa iba po, hindi ko na matandaan iyang exact dates, pero malapit po doon sa after ma-submit iyang response.*

Ms. Ferrer. All right. I'll take that answer. Okay.

So, Mr. Wamil prepared the AOM for the fourth quarter of 2022 for the Office of the Vice President. *Tama po?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. How about the first to third quarters of 2023, *sino ho ba iyang nag-prepare ng AOMs na iyon? Dalawa ho iyon.*

Ms. Del Campo. *Iyang sa OVP po na first and second quarter 2023, nandoon pa po siya noong ma-issue po iyang AOM.*

Ms. Ferrer. Okay.

Ms. Del Campo. *Iyang sa third quarter po, siya iyang nag-draft. Pero noong na-finalize na po iyon, wala na po siya sa COA-ICFAO. So, iyang custody po ng document na iyon, nasa division chief. Kaya noong pinaynalays (finalize) po iyon, division chief na po iyang nag-finalize.*

Ms. Ferrer. Okay. All right. *Sige, we will flash these AOMs, kasi nga si Mr. Wamil nga iyang nag-prepare ng iba sa kanila, ano?*

Ms. Kapunan. May we know from Counsel which AOM she will be flashing? Is it the Defendant's document or the Prosecution's document? Because the Defendant's documents were not identified nor presented to this witness, Your Honor.

Then, if Counsel wants to confront the witness with documents she has identified, she has to use the Prosecution's evidence, because that was the one identified by the witness. If she now

intends to present the Defense documents, they are not documents that have been identified nor authenticated by this witness during her testimony.

The Presiding Officer. She can confront the—

Ms. Kapunan. We will have a continuing objection.

Ms. Ferrer. Your Honor.

Ms. Kapunan. Excuse me, Counsel.

We will have a continuing objection to their presenting their documents which have not been identified by the witness. They are AOMs. AOMs have been identified by the witness, but these are Prosecution's AOMs, Your Honor. May I suggest, Your Honor, to the Defense Counsel, since she refused for us to use the Defense witnesses, that she uses now the Prosecution's documents.

The Presiding Officer. That is up to her, Counsel. She may confront the witness with her copy of the AOM. I'm sure she would be competent to testify whether these are the same documents earlier identified as exhibits for the Prosecution or not.

Counsel, you may proceed.

Ms. Ferrer. Yes, correct, Your Honor. And their AOMs— we did not dispute those, so we have the same copies, Your Honor.

The Presiding Officer. You may proceed, Counsel. Proceed.

Ms. Kapunan. In connection with that, Your Honor, since the Counsel admits that our AOMs are the Defendant's AOMs, can we just use the Prosecution's copies, Your Honor?

Ms. Ferrer. But, Your Honor, we have prepared visual aid using the—

The Presiding Officer. Counsel, Counsel—

Ms. Kapunan. Show them. Show the document.

Ms. Ferrer. Yes, I will. I am showing the Defense document.

Ms. Kapunan. No, we will not agree, Your Honor.

Ms. Ferrer. No. Your Honor, the Counsel cannot dictate how I will proceed with my cross-examination.

Ms. Kapunan. We will not agree, Your Honor.

Ms. Ferrer. Can the Counsel, Your Honor, be reminded that I am on cross-examination?

The Presiding Officer. Counsel for the Respondent—

Ms. Kapunan. We will not agree, Your Honor...

The Presiding Officer. What are you not agreeing to, Attorney Kapunan?

Ms. Kapunan. ... to the (use) of the Defense documents.

The Presiding Officer. I'm sorry?

Ms. Kapunan. Because precisely, there was no stipulation yesterday. They are now constrained—

Ms. Ferrer. There was no—

Ms. Kapunan. Excuse me, Counsel.

The Presiding Officer. Allow her to finish, Counsel.

Ms. Kapunan. They are now constrained, Your Honor. I'm sorry. They are now constrained to use our documents. Precisely, this is what we wanted to avoid yesterday. Had we done a comparison—not to belabor the obvious, Your Honor, but now Counsel says, "Anyway, it's the same."



Ms. Ferrer. Your Honor—

Ms. Kapunan. So, if it's the same, what's the objection to using the Prosecution's document?

The Presiding Officer. Counsel, that water is already under the bridge. You may request assisting counsel to check the copy being presented to Ms. Xylene and you may make it the subject matter of your redirect later on. Allow Counsel to present.

Ms. Ferrer. Thank you, Your Honor.

The Presiding Officer. The Presiding Officer will allow the Counsel to present that document but notes the continuing objection of Attorney Kapunan with respect to this matter.

Ms. Kapunan. Thank you, Your Honor.

Ms. Ferrer. Thank you, Your Honor.

The Presiding Officer. Attorney Kristine, you may proceed.

Ms. Ferrer. Okay. So, I am presenting you the AOMs that were issued to the Office of the Vice President and the DepEd.

So, the first AOM is dated September 14, 2023. It is AOM No. 2023-211. The assisting counsel can check this copy. Anyway, I can dispense with that.

The second AOM is October 3, 2023. Now, I will direct you to the last page. It says here, "RCW/JMQ/GAC/RRS/NBP." So, RCW is Roderick C. Wamil, correct?

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. Who is JMQ?

Ms. Del Campo. *Dati pong staff namin sa ICFAO.*

Ms. Ferrer. GAC?

Ms. Del Campo. Division chief *po ng* ICFAO.

Ms. Ferrer. If you can state her name or his name?

Ms. Del Campo. *Si* Attorney Gloria A. Camora.

Ms. Ferrer. Okay. This is Gloria A. Camora.

RRS?

Ms. Del Campo. *Dati din pong DC sa ICFAO pero retired na po siya.*

Ms. Ferrer. All right. NBP is the signatory?

Ms. Del Campo. *Opo, si* Ascom Nilda Plaras.

Ms. Ferrer. Okay. So, we will proceed to the third AOM for the OVP, that is dated February 1, 2024. So, I will direct you to the routing list. Do you agree that this is a routing list?

Ms. Del Campo. *Sila po iyong nag-review, nag-evaluate, nag-review ng* documents.

Ms. Ferrer. Yes. I was about to ask you that question. Thank you for confirming.

Now, it is RCW, Roderick C. Wamil again.

Ms. Del Campo. *Opo.*

Ms. Ferrer. JMQ, RRS, NBP.

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. All right. So, let us go to the AOM for the OVP, dated August 8, 2024.

On the last page— the routing list, it's "RCW/GAC/RRS/NBP." But this is August 8, 2024?

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. *Wala na si Roderick Wamil dito sa ICFAO, correct?*

Ms. Del Campo. *Wala na po siya pero, diyan po kasi, siya iyong nag-draft po ng AOM.*

Ms. Ferrer. *Siya iyong nag-draft nito. So, meaning when he drafted this, he left this doon sa records ba or saan?*

Ms. Del Campo. *Iyan po kasi, may draft na siya, nasa division chief na po.*

Ms. Ferrer. *Nasa division chief. So, from February to August—so ilang months iyon? February, March, April, May, June, July, August— after six months, doon lang na-release iyong AOM noong wala na si Wamil, tama?*

Ms. Del Campo. *Opo kasi po—*

Ms. Ferrer. *Hindi. Sorry, just answer my question, Ms. Xylene.*

Ms. Kapunan. *Can you please repeat the question?*

Ms. Ferrer. *So, from February 2024 noong umalis na si Mr. Wamil, hindi ba, iniwan niya ito sa records div—ay sa division chief na?*

Ms. Del Campo. *Division chief.*

Ms. Ferrer. *So, na-release ito—*

Ms. Kapunan. *Asked and answered, Your Honor.*

Ms. Ferrer. *Your Honor, preparatory nga, sabi niya i-repeat ko daw ho, so inuulit ko ho.*

The Presiding Officer. *She is laying the basis for her question, Counsel.*

Attorney Kristine, kindly finish your question.

Ms. Ferrer. *Yes, po. So, after six months doon lang na-release iyong AOM?*

Ms. Del Campo. *Dahil po dumaan pa ito sa review po.*

Ms. Ferrer. *Yes, sa review. Hindi ka kasali dito sa grupo na nag-review, nag-draft? Wala kang participation dito?*

Ms. Del Campo. *Na-review ko po iyan noong nag-e-evaluate na po ako noong mga responses doon sa...*

Ms. Ferrer. *Ito?*

Ms. Del Campo. *...binasa ko din po iyan noong nag-evaluate ako ng responses sa notice of suspension.*

Ms. Ferrer. *Okay. So, in short, nakita mo lang ito after it has been issued by the COA-ICFAO, tama?*

Ms. Del Campo. *Opo, kasi iyon iyong naging basis ko ng evaluation po.*

Ms. Ferrer. *Sige. Okay.*

Next is the audit observation memorandum for the DepEd. Wait lang.

Your Honor, can I just confirm it to Counsel?

So, let's go to the DepEd. Sige, doon din tayo sa routing list ano. February 1, 2024, nandito pa si Roderick Wamil kasi RCW/JMQ/RRS/NBP?

Ms. Del Campo. *Opo, tama.*

Ms. Ferrer. *All right. Let's go to August 8 AOM. Ayun. RCW/GAC/RRS/NBP. Wala na si RCW pero nasa division head?*

Ms. Del Campo. *Opo, pareho po noong sa OVP.*

Ms. Ferrer. *At saka na-review mo lang ito noong na-issue na ng division head ng ICFAO?*

Ms. Del Campo. *Opo, noong mag-e-evaluate na po ako ng response.*

Ms. Ferrer. Okay, *salamat*, Ms. Xylene.

Ms. Kapunan. Your Honor, may we just note for the record that the documents presented to this witness were Defense exhibits.

Ms. Ferrer. That has been noted, Your Honor.

The Presiding Officer. Noted.

Ms. Ferrer. Okay. So, *punta naman ho tayo doon sa responses ng Vice President, 'no. Nag-submit ho sila noong letter dated April 19, 2024. Okay. At part ho ng letter noon, nag-submit ho sila ng protective intelligence reports. Naalala ninyo po iyon?*

Ms. Del Campo. *Opo, attachment po iyon doon sa response nila.*

Ms. Ferrer. Okay. So, may we request David to please flash—*diyan muna iyan.*

Ms. Kapunan. Who is David?

Ms. Ferrer. Our assisting counsel.

Your Honor, *David po pangalan niya para puwede ninyo ho siyang i-direct kung nagkakamali ho siya, kung hindi ho naaayon iyong pina-flash niya.*

The Presiding Officer. Thank you for that, Counsel.

Ms. Ferrer. Okay. *Sige, punta tayo dito sa—*

Ms. Kapunan. May we also call our assistant counsel, Your Honor, Attorney Jay Dela Cruz?

The Presiding Officer. Of course, you may approach.

Ms. Ferrer. Again, we will use our exhibit, Counsel.

Itong exhibit na ito ay minarkahan po as D-I-115-OVP-c. Okay. So kasama ho doon sa submission ng Office of the Vice President is a certification dated April 4, 2024, tama ho?

Ms. Del Campo. *Opo, kasama po iyan sa response.*

Ms. Ferrer. Okay. *Salamat, Ms. Xylene. Ito ay in-issue ni Raymund Dante P. Lachica?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. So, *sinasabi ho dito sa first paragraph, "This is to certify that the confidential activities such as surveillance and information gathering were performed in 127 areas during the 1st quarter of CY 2023 and 111 areas during the 2nd quarter of 2023, which enabled the team to prevent untoward incidents from transpiring during the engagements of the Vice President and the implementation of the programs of the Office of the Vice President (OVP), including the establishment of three (3) new Satellite Offices (Isabela in Cagayan Valley, Bicol and BARMM) and implementation of OVP Libreng Sakay."* Do you see that, Ms. Xylene?

Ms. Del Campo. Yes *po.*

Ms. Ferrer. Okay, *salamat. Pero sinabi ninyo ho sa findings ninyo na it doesn't pass the proof of success of the intelligence activities, correct?*

Ms. Del Campo. Yes *po*, under 4.8.5, *hindi po siya sufficient.*

Ms. Ferrer. Okay, *sige. So, kasali ho diyan sa letter na iyan are what we call as protective intelligence operations report for the engagements of Vice President Sara Z. Duterte. Nakita ninyo ho ba iyon?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. So, *sa bawat quarter na iyon, may summary of intelligence work. Nabasa ninyo ho ba iyon?*

Ms. Del Campo. *Iyong summary po noong—*

Ms. Ferrer. *Hindi, ang tanong ko, nabasa ninyo ba bawat quarter iyong summary of intelligence work?*

Ms. Del Campo. *Iyong narrative po noong ano iyong activity, date, location...*

Ms. Ferrer. Okay. Okay. Sige po.

Ms. Del Campo. ... *iyong timeline po, nakalagay po sa PIOR.*

Ms. Ferrer. So, I'll take that answer.

Ms. Kapunan. Your Honor, please. Never mind, Your Honor. She might not take my answer, Your Honor.

Ms. Ferrer. I am showing you this document. This is marked as our Exhibit D-I-115-OVP-c, Your Honor, with the caption: Protective Intelligence Operations Report for the engagement of Vice President Sara Z. Duterte, First Quarter CY 2023.

Now, *punta ho tayo sa item No. 4.* Okay, No. 2 *muna tayo, sa scope.* You can read it with me. "This report pertains to the narrative of events and accomplishments of VPSPG in terms of protective intelligence. . ." Do you confirm that? protective intelligence operations.

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. "... during the engagements of Vice President Sara Z. Duterte for the first quarter of CY 2023." Do you confirm that?

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. All right.

No. 4, *punta tayo sa No. 4, item 4.* You can read it with me. "The Protective Intelligence activities carried out in support of the Vice Presidential Security and Protection Group's protective security operations for the places of engagements of the Vice President Sara Duterte, from January 1 to March 31, 2023, are listed below."

So *nakita ninyo ho iyan. Sakto ho iyong basa ko ng narrative?*

Ms. Del Campo. *Opo, nakalagay po iyong engagement.*

Ms. Ferrer. Okay. *Salamat.*

Pero nakalagay ho dito, in support of the Presidential Security and Protection Group's protective security operations.

Ms. Del Campo. *Based po sa dokumento.*

Ms. Ferrer. All right. *Sige.*

Letter A, *nakalagay dito, "Ika-106 na Taong Pagkakasarilan ng Bustos, Minasa Festival Ceremony Opening."* So *nakalagay: "Date covered" January 2 to January 10, 2023; Location: BMA Park, Poblacion, Bustos, Bulacan.* No. 3, "Probable threats: NPA and criminalities." So, No. 4, "Detailed Intel Collection Team (ICT)."

Nakita ninyo ho ba iyan?

Ms. Del Campo. *Opo, based po sa dokumento.*

Ms. Ferrer. Okay, *salamat po.*

Nakalagay sa timeline of activities na ito, may nakalagay hong table. Tingnan lang natin isa-isa kung ito ba talaga ay intelligence work o hindi. Itong No. 5, tingnan natin iyong item No. 5, "Liaising with intel operatives and respective informants of the PNP for the data/information gathering needed for the threat assessment on criminalities in the Municipality of Bustos and its neighboring communities."

Ano ho iyan? Intelligence work po iyan or admin work lang ng Office of the Vice President?

Ms. Del Campo. *Ang pagkakaintindi ko po diyan, iyan iyong naging part noong activities iyong sa ...*

Ms. Ferrer. *Hindi, tatanungin kita, based on how it appears, ano ho iyan? "Liaising with intel operatives," ano ho iyan, normal lang po iyan sa Office of the Vice President na mag-liaise*

with intel operatives or part *po ba iyan ng* intelligence work? *Sa tingin ninyo lang po.*

Ms. Del Campo. *Papasok po siya sa intelligence gathering.*

Ms. Ferrer. *Salamat po.*

No. 7, "Intelligence fusion for the threat assessment and situation update." *Ano ho iyan? Papasok po iyan sa intelligence or normal work lang iyan ng OVP?*

Ms. Del Campo. *Sa intelligence.*

Ms. Ferrer. *Salamat po.*

Okay, ito, dito tayo sa Actual Operations. "Profiling of participants who will be attending the event provided by organizers." Part po ba iyan ng normal na function ng OVP or papasok po siya sa intelligence work?

Ms. Del Campo. *Sa intelligence work po.*

Ms. Ferrer. *Okay. Salamat po.*

"Deployment of intel operatives and informants along routes (primary and alternate) from the landing zone to the venue." Is that an OVP admin work or intelligence-related po iyan?

Ms. Del Campo. *Kasama po iyan sa intelligence-related activities.*

Ms. Ferrer. *Okay. Salamat po.*

Okay. Gusto ko man pong isa-isahin ito, Your Honor, pero I think we are constrained by time, but the Court can peruse the documents for its information.

Ms. Kapunan. *We have all the time, Ms. Witness.*

Ms. Ferrer. *Gusto mo, Attorney?*

Ms. Kapunan. *Go ahead.*

Ms. Ferrer. *Huwag na baka magutom na tayo.*

The Presiding Officer. *Once it is formally offered, that is when we will be able to peruse it, Counsel.*

Ms. Ferrer. *Okay. So, ito iyong first quarter pa lang ho ito, Ms. Xylene. Let us go to the second quarter. Okay. So, punta ho tayo sa second quarter ng 2023. It is covered by the same letter of Mr. Lachica. Okay. So punta ho tayo dito sa title.*

By the way, Your Honor, this is marked as our Exhibit D-I-115-OVP-M. Okay. So ang title ho nito ay "Protective Intelligence Operations Report for the Engagements of Vice President Sara Z. Duterte, Second Quarter 2023." Now, punta ho tayo sa scope. Basahin ho natin Ms. Xylene: "This report—" No. 2, item 2, "This report pertains to the narrative of events and accomplishments of VPSPG in terms of protective intelligence operations during the engagements of Vice President Sara Z. Duterte for the second quarter of 2023." Tama ho ba iyong binasa ko?

Ms. Del Campo. *Opo. Tama po.*

Ms. Ferrer. *Salamat po. Narrative, No. 4, "The protective intelligence activities carried out in support of the Vice Presidential Security and Protection Group's protective security operations for the places of engagements of the Vice President Sara Duterte from April 1 to June 30 2023 are listed below." Sige ho, letter A, puntahan ho natin iyong letter A. Iyong caption ho niya "National Economic and Development Authority Social Development Committee Cabinet Level Meeting." Do you see that?*

Ms. Del Campo. *Opo. Tama.*

Ms. Ferrer. *Okay. So iyong date covered po niya ay April 2 to 5 2023. Tama ho ba?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. *Okay. Location ho niya ay Astoria Plaza Hotel, 15 J. Escriva Drive, Ortigas Business District, Pasig City, Metro Manila. Tama ho?*

Ms. Del Campo. *Opo. Tama po.*

Ms. Ferrer. Okay. Thank you. *Nakalagay ho*, "Possible threats, letter (a), Cause Oriented Groups, open-close parenthesis, (NDF); and letter (b), Criminal Groups." *Nakita ninyo ho ba iyan?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. No. 4, "Detailed Intel Collection Team, ICT." *Tama po?*

Ms. Del Campo. *Opo. Tama po.*

Ms. Ferrer. So, No. 5, *nakalagay na dito iyang* "Timeline of activities: As shown below, the timeline of activities for the engagement of the Vice President:"

Now, *punta ho tayo sa* No. 3. Okay. "Liaising with intel Operatives and respective informants of the PNP for the data information gathering needed for the threat assessment on criminals in Pasig City and its neighboring communities." *Ano ho ba iyan?* Administrative work *lang ho ba iyan ng* OVP or part *ho ba iyan ng* intel work? *Sa tingin ninyo ho?*

Ms. Del Campo. Intel work *po.*

Ms. Ferrer. Okay. No. 6, "Intelligence fusion with for the threat assessment and situation update." Intelligence work or normal *lang na* part *ng* OVP, admin work?

Ms. Del Campo. Intelligence work *po.*

Ms. Ferrer. Okay. *Salamat po.* Okay. *Ito*, No. 8, "Ocular inspection (casing and surveillance) of the venue." *Ano ba iyan?* Part *lang iyan ng* OVP admin work or intelligence work *ho iyan?* *Sa tingin ninyo po?*

Ms. Del Campo. Intelligence work *po.*

Ms. Ferrer. Okay. *Salamat po.* No. 12, "Final briefing to intel operatives and informants." Part *po ba iyan ng*—sorry. Okay. "Final briefing to intel operatives and informants." Is that part of the confidential operations of the OVP or normal work *lang iyan ng* OVP?

Ms. Del Campo. *Papasok po siya* as confidential work.

Ms. Ferrer. Okay. Confidential work, 'no? So actual operations, *ito*, No. 14. Okay, No. 14 *tayo*—hindi, No. 13 *muna, ito*, interesting. "Profiling and security tagging of participants who will be attending the event." Part *ho ba ng* confidential activity *iyang* or normal *lang iyan na* part *ng* OVP admin work? No. 12 *po.*

Ms. Del Campo. *Kasama po sa—parang papasok siya sa* surveillance.

Ms. Ferrer. Okay. Surveillance, 'no?

No. 14, okay, "Deployment of intel operatives and informants along routes (primary and alternate) from the PNP and MMDA. Part *ho ba iyan ng* surveillance activities or normal *lang iyan sa* OVP?

Ms. Del Campo. Part *po ng* surveillance activities.

Ms. Ferrer. Okay, *salamat po.*

No. 16, "Provided intelligence coverage prior to the arrival, actual and departure of the Vice President." Part *ho ba iyan ng* surveillance or normal *lang iyan sa* OVP?

Ms. Del Campo. Surveillance *po.*

Ms. Ferrer. Okay, *salamat. May nakalagay dito na* post operations, 'no? Okay. No. 18, "Continuous collaboration with the intel operatives of Pasig City Police Office." Surveillance *ho ba iyan* or normal *lang na* admin work *iyang ng* Office of the Vice President?

Ms. Del Campo. Surveillance *po.*

Ms. Ferrer. Okay, *salamat po. Mayroon pa tayong ibang nakalista ho dito*, which the honorable Court can also peruse. So *punta ho tayo sa* third quarter. Okay, *punta ho tayo sa* third quarter. Covered *ho ito ng* certification *pa ho ni* Mr. Lachica *na* dated April 6, 2024?

Ms. Del Campo. *Iyong sa third quarter po, September 30, 2023.*

Ms. Ferrer. Yes, oo. Pero, I mean, covered *pa iyon ng submission kasi nakalagay naman dito—wait.*

Excuse me *lang ho*, Your Honor, I will confer with my co-counsel.

Okay. *Ayun na. So, may—Okay. May certification ho dito na sinubmit (submit) si Mr. Dante Lachica dated September 30, 2023. Nakalagay ho dito—babasahin ko ho, Xylene, okay lang?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. *Sige, sabay tayo. "This is to certify"—Xylene pala, sorry po. "This is to certify that confidential activities such as surveillance and information gathering were performed in 122 areas during the third quarter of CY 2023 which enabled the team to prevent untoward incidents from transpiring during the engagements of the Vice President and in the implementation of the programs of the Office of the Vice President, including the establishment of three new satellite offices (Isabela in Cagayan Valley, Bicol, and BARMM) and the implementation of the OVP Libreng Sakay program." Tama ho ba iyong binabasa ko?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So, *ito ho iyong naging support niya*, proof of success of the information gathering *na sinubmit (submit) ni Office of the Vice President, tama ho?*

Ms. Del Campo. *Opo, response po nila sa AOM for the third quarter.*

Ms. Ferrer. *Salamat po.* Your Honor, this has been marked as Exhibit D-I-116-OVP-b, for the court's information.

Now, *may naka-attach ho dito na PIOR, 'no? Iyon iyong tawag natin doon*, Protective Intelligence Operations Report, for the engagements of Vice President Sara Z. Duterte for the third quarter of 2023. *Nakikita ninyo ho ba iyan?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Your Honor, this has been marked as Exhibit D-I-116-OVP-c for the Respondent.

Now, *tingnan ho natin iyong scope again*, Xylene. "This report pertains to the narrative of events and accomplishments of the VP SPG in terms of protective intelligence operations during the engagement of the Vice President, Sara Z. Duterte, for the third quarter CY 2023." Do you see that?

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay, *salamat.*

No. 4, narrative, "The protective intelligence activities carried out in support of the Vice Presidential Security and Protection Group's protective security operations for the places of engagements of the Vice President Sara Duterte from July 1 to September 30, 2023, are listed below." *Tama ho ba iyong binabasa ko?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay, thank you.

So, letter A, *may nakalagay ho doon*, "DPWH inauguration and opening of Davao City Coastal Bypass Project Segment A; Date covered: June 28 to July 1, 2023; Location: Davao City Coastal Road, Times Beach Ecoland, Davao City." *Sakto? Sakto po iyong binabasa ko?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay, thank you.

"Probable threats: (a) cause-oriented groups (NDF); and (b) criminal groups." *Tama po?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Thank you.

No. 4, "Detailed Intel Collection Team (ICT): ICT 4," *tama po?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. No. 5, timeline of activities. "As shown below, the timeline of activities of the Vice President are as follows." So, *tingnan ho natin iyong No. 4 kung magpo-fall po iyan sa confidential or surveillance work, 'no?*

No. 4, "Liaising with intel operatives and respective informants of the PNP and AFP for the data information gathering needed for the threat assessment on criminalities in Davao City and neighboring areas." Does that fall under confidential activity or normal *lang iyan sa* administrative work or normal administrative work *lang iyan ng OVP?*

Ms. Del Campo. *Papasok po siya sa surveillance.*

Ms. Ferrer. Okay. *Salamat.*

No. 5 *po*, "Intel fusion for the threat assessment and situation update." *Papasok po siya sa surveillance?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay, *salamat po.*

Ito hong No. 11, "Final briefing to intel operatives and informants." *Ano ho ba ito*, normal *lang ito na trabaho ng OVP* or part *po ito ng surveillance* or confidential work?

Ms. Del Campo. *Papasok po siya sa surveillance activity.*

Ms. Ferrer. All right. Then *baba tayo dito sa actual operations. Ito hong* "Profiling and security tagging of the participants," item No. 12, "who will be attending the event," *papasok ho ba na normal admin work lang iyan ng OVP* or *papasok ho siya as confidential work or surveillance?*

Ms. Del Campo. *Papasok po siya doon sa surveillance.*

Ms. Ferrer. Okay. *Salamat.*

No. 13, "Deployment of intel operatives and informants along routes (primary and alternate) from the PNP." Surveillance or normal work *lang iyan ng OVP?*

Ms. Del Campo. *Papasok po siya sa surveillance.*

Ms. Ferrer. Okay. No. 14, "Provided intel coverage prior to the arrival and actual departure of the Vice President." Surveillance or normal *lang iyan*, part *lang iyan ng admin work ng OVP?*

Ms. Del Campo. *Papasok po siya sa surveillance.*

Ms. Ferrer. Okay. So, Post Operations, No. 16, "Continuous collaboration with the intel operatives of Davao City Police Office and TF Davao." *Pasok ho siya sa admin work or surveillance or confidential work?*

Ms. Del Campo. *Sa surveillance po.*

Ms. Ferrer. Okay. So *nakikita mo dito lahat*, Ms. Xylene, '*no, pati na iyong doon sa report, nakita mo naman na isa-isa iyon, lahat may mga dates at lugar, tama po?*

Ms. Del Campo. *Opo, nakalagay po iyong narratives at iyong timeline.*

Ms. Ferrer. Okay. So, for the first and second, and third quarters of 2023. Do you confirm that? *Nakalagay naman iyan lahat, may dates, may activity at may lugar, tama ho?*

Ms. Del Campo. *Opo. Based po sa PIOR reports na submitted, may mga details po na ganoon.*

Ms. Ferrer. Okay. *Salamat.*

So, *lahat ng mga submissions ng OVP* for the first to third quarter, *kasama itong Protective Intelligence Operations Report. Meaning, sa first quarter, iyong pinakita ko nga may isinubmit (submit) kanina, hindi ba?*

Ms. Del Campo. *Kasama po doon sa Response nila sa AOM. Attachment po.*

Ms. Ferrer. Okay. So *kasama din doon sa Response nila iyong second quarter na protective intelligence report?*

Ms. Del Campo. *Kasama rin po doon sa attachment.*

Ms. Ferrer. Okay. As well as the third quarter, which is *itong binasa ninyo ho?*

Ms. Del Campo. *Opo, kasama din po iyan.*

Ms. Ferrer. Okay. But, you know, despite of all of these, *sinabi mo, "Hindi, disallowed pa rin iyan kasi walang evidence of success eh."* Walang evidence of success *eh, 'no?*

Ms. Kapunan. Your Honor.

Ms. Ferrer. Wait *lang.*

The Presiding Officer. Kindly turn on the mic for the Prosecutor.

Ms. Kapunan. Your Honor, Counsel is being argumentative with the witness. We object.

Ms. Ferrer. No, I'm just asking. I'm asking a question. *Sabi ko...*

Ms. Kapunan. What is the question again, Madam Witness?

Ms. Ferrer. *Ang question ko, despite of all of those reports, dinis-allow n'yo ho pa rin iyong payment of rewards. Kasi ho, sabi ninyo, no proof of success, hindi ba ho?*

Ms. Kapunan. Argumentative, Your Honor. That is the finding of this witness.

Ms. Ferrer. *Kaya nga ho sinasabi ko ho, Attorney, kaya nga kino-confirm ko ho.*

The Presiding Officer. Counsel, Counsel, if you please. Witness may answer. Objection is overruled. Witness said that she, indeed, disallowed and/or gave AOMs because there was no proof of success. I even remember her saying, *wala naman daw nahuli.* So, please answer, Xylene.

Ms. Del Campo. *Yes po, kasama po iyon sa Notice of Disallowance ko na na-issue noong March 31, 2026. Hindi po sufficient iyong PIOR and the certification na evidence na nagpapakita ng success ng information-gathering.*

Ms. Ferrer. Okay, I get that. But are you aware that one of the purposes of intelligence work is crime prevention?

Ms. Kapunan. Your Honor, please, may we know where this is leading because we are not talking about intelligence funds. We are talking about confidential funds.

Ms. Ferrer. Confidential funds. So, I convert my question, Your Honor.

The Presiding Officer. Counsel ...

Ms. Ferrer. Yes.

The Presiding Officer. ... kindly wait for Attorney Kapunan to finish with her objection.

Ms. Kapunan. Are you referring to intelligence fund or confidential fund?

Ms. Ferrer. I will rephrase my question. I will rephrase my question.

The Presiding Officer. Counsels, please address the Court, not each other.

Ms. Kapunan. Your Honor, please.

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. Your Honor, please, may I object to this line of questioning. In fact, I have not stood up because all the questions referred to intelligence funds, Your Honor, when the topic today is confidential funds, and I would like to put that on record, Your Honor, especially this last question, where she specifically refers to conclusions as to use of intelligence funds.

The Presiding Officer. The objection is noted, and Counsel has already stated that she will rephrase. Kindly rephrase, Attorney Kristine.

Ms. Ferrer. All right. So, *ang tanong ko kanina, sabi n'yo nga, sabi n'yo nga, dinis-allow ninyo iyong rewards kasi nga walang evidence of success noong information gathering. Tama ho?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Kasi nga ho, gusto n'yo ho ng proof na may nahuli. Sinabi ninyo ho iyan kahapon sa testimony ninyo.*

Ms. Del Campo. Yes po. *Kasi naipakita po doon iyong probable threats, so ang hinahanap na proof of success is kung may na-apprehend po.*

Ms. Ferrer. Okay, apprehended. So, apprehensions, 'no? So, *ang tanong ko sa iyo ngayon, alam n'yo ho ba, do you know that one of the purposes of a confidential activity or a surveillance is crime prevention? Alam n'yo ho ba iyon?*

Ms. Del Campo. *Ang sa confidential—*

Ms. Ferrer. *Hindi, alam n'yo ho ba iyon? Tanong ko lang ho, alam n'yo ho ba na isa sa mga purposes ng surveillance or ng confidential work ay crime prevention? Alam n'yo ho ba iyon?*

Ms. Del Campo. *Kasama po ang crime prevention, pero depende rin po ito sa mandate ng agency.*

Ms. Ferrer. *Hindi, just answer my question. Yes or no? Do you agree?*

The Presiding Officer. Attorney, Xylene, *kasama po ba iyon o hindi?*

Ms. Del Campo. *Iyong sa crime prevention po, kasama po iyon sa...*

Ms. Ferrer. *Kasa—*

Ms. Kapunan. Wait, let her answer.

Ms. Del Campo. ... *pero depende pa rin po ito sa mandate po ng agency.*

The Presiding Officer. *Hanggang doon lang. Kasama po ba siya sa surveillance at paggamit ng confidential fund, crime prevention. Yes or no?*

Ms. Del Campo. *Opo, kasama po.*

Ms. Ferrer. Okay. *Salamat, Xylene. Okay. In fact, mayroon tayong tatlong klase ng surveillance work. Alam n'yo ho ba iyon, Xylene? May background ho kayo sa mga surveillance, intelligence work, confidential work?*

Ms. Del Campo. *Based lang po sa Joint Circular, na for surveillance activities iyong confidential fund.*

Ms. Ferrer. Okay. So, actually, *iyong surveillance may—do you agree with me, may tatlong klase ho iyan. Una, preventive surveillance. Alam n'yo ho ba iyon?*

Ms. Kapunan. No basis, Your Honor, no basis for this question.

Ms. Ferrer. *Hindi, tinatanong ko lang ho kung alam n'yo ho ba na ...*

Ms. Kapunan. Your Honor, the surveillance work that this witness testified to is as defined in the Circular, Your Honor.

Ms. Ferrer. So, what is surveillance work as defined in the Circular?

Ms. Del Campo. *Ito po iyong—iyon kasing—hindi ba po iyong confidential expenses is used by agencies for surveillance activities na makakatulong po na maisagawa ang mandate ng isang agency.*

Ms. Ferrer. Okay, *sige. Nandoon na tayo sa maisagawa iyong mandate nila. So, tanong ko sa iyo, did the Circular limit that to crime prevention? Kasi nga, sabi mo, kailangan—sorry—to apprehension, kasi nga, sabi mo, "Dapat may mahuli." Sinabi ho ba iyan sa JC na dapat may mahuli?*

Ms. Del Campo. *Ang nakalagay po kasi sa JC under 4.8.5 is proof of success.*

apprehension, *kasi nga, sabi mo, "Dapat may mahuli." Sinabi ho ba iyan sa JC na dapat may mahuli?*

Ms. Del Campo. *Ang nakalagay po kasi sa JC under 4.8.5 is proof of success.*

Ms. Ferrer. Sorry, Your Honor, please.

Ms. Kapunan. Let the witness answer, Your Honor.

Ms. Ferrer. Your Honor, please, can the—

Ms. Kapunan. Mr. Presiding Officer, can the Counsel be instructed not to stop the witness at mid-sentence, Your Honor?

Ms. Ferrer. Your Honor, please, can the witness be directed to just answer with yes or no? The Counsel has her time to ask clarificatory questions later during redirect, Your Honor.

Ms. Kapunan. Your Honor, not all questions can be answered by yes and no.

Ms. Ferrer. I am on cross, Your Honor, please.

The Presiding Officer. Counsels—

Ms. Kapunan. Never mind if you are on cross. There are limits to cross-examination.

The Presiding Officer. Counsels—

Ms. Kapunan. Leading, misleading questions are not allowed on cross.

Ms. Ferrer. They are allowed.

Ms. Kapunan. I don't think I need to lecture you that.

The Presiding Officer. Please, Counsels. Let's not allow the generational or seeming generational divide increase the tension in the courtroom. Let's keep it a notch lower.

Ms. Kapunan. Your Honor, please, I am preventing myself from giving her a spanking, Your Honor. That is what I would not have done in the generational divide, Your Honor.

Ms. Ferrer. Your Honor, please—

The Presiding Officer. Again, Counsels, you are all members of the Bar and you are all counsels for the parties and we will be treating and looking at each one equally.

Ms. Kapunan. Yes, Your Honor. I submit.

The Presiding Officer. Ms. Xylene—

Ms. Kapunan. Yes, Your Honor. I promise to henceforth behave.

The Presiding Officer. Thank you.

Ms. Ferrer. Your Honor, can I please respond quickly *lang*, 'no'? I have high respect for Attorney Kapunan. In fact, she's one of my idols.

The Presiding Officer. You can end there, Counsel.

Ms. Kapunan. Let's end here. Let's end here.

The Presiding Officer. You can end there with the high respect. [laughter]

Ms. Kapunan. It might sound like a eulogy, Your Honor, I'm still very much alive. [laughter]

Ms. Ferrer. Your Honor, *kahapon nga hindi ko nga siya kinukulit, hindi ba, kahit may mga questions na doon na leading, hindi naman allowed iyon sa direct examination? I respected her. I ano din—*

The Presiding Officer. You can end there, Counsel, if you respect her.

Ms. Ferrer. Yes, thank you.

The Presiding Officer. Thank you.

Ms. Ferrer. Thank you po.

The Presiding Officer. Ms. Xylene, *ayon sa tanong ng Counsel, simple lang po naman. Nakalagay ba sa Joint Memorandum Circular 2015-01 na kailangan may mahuli para maging successful ang isang pagbigay ng reward or information?*

Ms. Del Campo. *Wala pong nakalagay. Ang nakalagay lang po, "proof of success of information gathering and/or surveillance activities."*

The Presiding Officer. *So, interpretasyon n'yo po iyon, na dapat may mahuli para maging successful?*

Ms. Del Campo. *Based po iyon sa aking professional judgment and based on evaluation po ng documents na ito, is based po sa Joint Circular.*

The Presiding Officer. *Pero hindi po iyon nakalagay sa Joint Circular na maliwanag?*

Ms. Del Campo. *Hindi po. Nakalagay lang po "proof of success."*

The Presiding Officer. *Interpretasyon n'yo na po iyon?*

Ms. Del Campo. *Doon po sa pag-evaluate ko, iyon po iyong naging basis ko.*

The Presiding Officer. *Okay.*

Ms. Ferrer. *Okay.*

The Presiding Officer. *Please proceed, Attorney Kristine.*

Ms. Ferrer. *Salamat po.*

Okay. So, sa tingin ninyo dahil gusto ninyo dapat may huli, hindi part ng confidential activity iyong crime prevention, ganoon ho ba? Hindi ho siya part noon?

Ms. Del Campo. *Puwede pong pakiulit?*

Ms. Ferrer. *At hindi ho part iyon ng crime prevention, na walang nangyaring masama doon sa event na iyon, hindi ho iyon part ng confidential work or surveillance?*

Ms. Del Campo. *Hindi pa po siya sufficient as proof of success.*

Ms. Ferrer. *Hindi siya sufficient. So, dapat talaga may mangyari na krimen at may mahuli para po may proof of success tayo?*

Ms. Del Campo. *Kasi nga po mayroon po iyong for payment of information and payment of reward. So, iyong payment of information, iyon kasi iyong nakakatulong doon sa—*

Ms. Ferrer. *Simple lang naman iyong tanong ko, Xylene. What if walang nangyari na masama dahil nga sa ginawang confidential work, at nag-certify ngayon si Lachica na walang nangyari na masama, there was no untoward incident. Ano ho iyan? Is that a proof of success or not?*

Ms. Kapunan. *Your Honor, we object.*

The Presiding Officer. *What is the objection of Counsel?*

Ms. Kapunan. *The question is speculative, Your Honor. This is not based on what ifs. This is based on facts and documents submitted, not on the what ifs of Counsel for Respondent, Your Honor.*

The Presiding Officer. *It is not a what if, Counsel, because it was stated in the report that there was no untoward incident. Actually, that would have been one of the questions of the Presiding Officer as well, later on.*

Xylene, ibahin natin ang payment for reward at payment for information. Ang payment for reward, iyon ang hinahanapan mo ng success.

Ms. Del Campo. *Opo, tama po.*

The Presiding Officer. *Iyong payment of information, hindi mo hinahanapan ng success iyon?*

Ms. Del Campo. *Hindi po.*

The Presiding Officer. *Tama po ba?*

Ms. Del Campo. *Opo, tama po.*



The Presiding Officer. So, *iyong* reward, *kaya* *iyong* reward *ang* *dinis-allow* *at* *iyong* information, *hindi* *mo* *dinis-allow* *iyong* bayad na *iyon*, *hindi* *ba*?

Ms. Del Campo. *Hindi po. Hindi po na-disallow* *iyong* purchase of information.

The Presiding Officer. So, *ang* *dinis-allow* *mo* *lang* *nga* *ay* *iyong* payment of reward—for rewards rather.

Ms. Del Campo. *Opo, tama po.*

The Presiding Officer. *At* *iyon* *ang* *hinahanapan* *mo* *ng* *success*, *hindi* *iyong* information?

Ms. Del Campo. *Hindi po.*

The Presiding Officer. *Magkaiba* *iyon*?

Ms. Del Campo. *Opo, magkaiba po* *iyon*.

The Presiding Officer. Okay. You may proceed, Counsel.

Ms. Ferrer. Okay. So, *doon* *sa* payment of success, *bilang* requirement *ninyo* *na* *may* *dapat* *nahuli*, so, *ibig* *sabihin* *ho* *ba* *noon* *dapat* *may* *mangyaring* *masama* *para* *may* *mahuli*?

Ms. Del Campo. *Kasi po gaya nga po noong kaninang dini-differentiate* *ko*—

Ms. Ferrer. *Sagutin* *ninyo* *lang* *ho* *iyong* *tanong* *ko*. *Simple* *lang* *naman* *iyon*, *hindi* *ba*? *Kailangan* *may* *mahuli*. *So*, *ano* *ho* *ba* *iyon*, *dapat* *may* *mangyari* *hong* *masama* *para* *may* *mahuli*?

Ms. Del Campo. *Iyon po, hindi ba po ang nakalagay doon sa probable threats is may NPA? Ang hinahanap ko po kasing proof of success doon, iyon nga po, kung may nahuli ba. Kasi iyong pagkakaroon ng untoward incidents, puwede po iyon kasing mag-fall sa purchase of information. Dahil sa purchase of information, nagkaroon ng—there were no untoward incidents. Iyon po kasi iyong parang pagkakaiba nila sa payment of rewards.*

Ms. Ferrer. Okay. So, *iyon* *iyong* *interpretasyon* *mo*.

So, bawal magbayad ng reward dahil nagkaroon ng tip na may—dito, may information na may mga taong may gagawin na masama. Tapos...

Ms. Kapunan. Your Honor.

Ms. Ferrer. Your Honor, I am on cross-examination. *Tapos...*

The Presiding Officer. Allow the Counsel to finish.

Ms. Ferrer. ... *napigilan* *natin*, *kasi* *nga* *hindi* *tayo* *pumunta* *sa* *lugar* *na* *iyon*. *Hindi* *tayo* *nag-conduct* *ng* *event* *sa* *petsa* *na* *iyon* based on confidential information. So, *walang* *untoward* *incident*. So, *bawal* *ho* *bayaran* *ng* *reward* *iyong* *tao* *na* *nagbigay* *ng* *information* *na* *iyon*?

Ms. Kapunan. Excuse me. Are you done with the question?

Don't answer.

The Presiding Officer. I think, right now, she is.

Ms. Kapunan. I make an objection, Your Honor.

The Presiding Officer. Yes. What is your objection, Counsel?

Ms. Kapunan. Your Honor, the Counsel is now asking a misleading question. She is mixing payment of rewards and payment for information, Your Honor. The list required by this witness is for payment of rewards. Precisely, payment of information is not disallowed. Now, Counsel is saying payment of informa—

May we ask her to reform? Is she referring to payment of rewards or payment for information? Because the information here is not disallowed.

Ms. Ferrer. Yes, I can. Reward, reward, Your Honor.

Ms. Kapunan. It is not disallowed in the AOMs, Your Honor.

The Presiding Officer. Again, Counsels, kindly address the Court or the Presiding Officer, and not talk to each other directly.

Ms. Xylene, to abbreviate and save on the Court's time, Ms. Xylene, *kapagka may nagbigay ng impormasyon, naghahanap ng threat, baka may threat sa Vice President, may nagbigay ng impormasyon, "Walang threat, ligtas ang Vice President 'pag nagpunta siya diyan." Hindi magka-classify iyon na puwedeng bigyan ng reward at success? Hindi naman kailangan, hindi ba? Sanay tayo sa reward na nakatakip iyong mukha, hindi ba? Tinuro kung saan nagtatago iyong akusado, tinuro kung saan nagtatago kung sino man. Iyon, reward.*

Pero wala bang reward kapag sinabing, "Okay magpunta diyan, walang problema, wala kayong kailangan alalahanin." Is that information, or can that also be reward?

Ms. Del Campo. *Magpo-fall po siya sa information.*

The Presiding Officer. *So, kailan lang magiging reward iyon, kapag may naturo?*

Ms. Del Campo. *Opo, kasi iyon iyong proof of success.*

The Presiding Officer. *Ituloy n'yo po.*

Ms. Del Campo. *Iyon iyong proof of success noong information na ibinigay, kasi may na-apprehend po, or iyon po, ganoon po.*

The Presiding Officer. *Ulitin ko po, ha, iyan ang interpretasyon ninyo, pero wala po iyan sa Joint Memorandum Circular.*

Ms. Del Campo. *Opo. Based po sa—iyon po lang iyong hinihingi under Item 4.8.5.3.*

The Presiding Officer. *Saan n'yo ba binase ang interpretasyon ninyong iyan? Iyan ba iyong ginawa ng lahat ng mga nauna sa inyo sa puwestong iyan, kinopya ninyo lang, or sarili n'yo po iyan at ngayon lang ginawa iyan?*

Ms. Del Campo. *Doon po sa mga ibang na-audit ko, ang ina-attach po talaga nila is iyong payment of rewards na may mga nahuli po.*

The Presiding Officer. *So, lahat ng in-audit ninyo noong nakaraan, for consistency's sake, mayroong nahuli o na-apprehend?*

Ms. Del Campo. *May ganoon pong mga naka-attach na mga dokumento.*

The Presiding Officer. *At tulad doon sa iba, kapagka walang nahuli o na-apprehend sa reward, ine-AOM o dini-disallow o sinu-suspend ninyo?*

Ms. Del Campo. *Hinahanapan po namin ng proof of success, opo.*

The Presiding Officer. *Na may nahuli nga?*

Ms. Del Campo. *Opo.*

The Presiding Officer. *To prove consistency on your part. But do you have any knowledge na iyong mga predecessor mo, iyan din iyong standard na ginamit?*

Ms. Del Campo. *Pare-pareho po kami na based sa Joint Circular po ang aming basis ng audit.*

The Presiding Officer. *Pero wala nga doon eh. So, interpretasyon mo iyan at iyan din ang interpretasyon din ng mga nauna sa iyo, sa pagkakaalam mo?*

Ms. Del Campo. *Sa akin po, iyon po iyong naging interpretasyon.*

The Presiding Officer. *Sa iyo lang?*

Ms. Del Campo. *Opo.*

The Presiding Officer. *Okay. You may proceed, Attorney Kristine.*

Ms. Ferrer. *Salamat po, Your Honor. I will go back to the podium.*

After noong na-evaluate n'yo po iyong mga responses po ng OVP, and including the DepEd, of course, nag-issue po kayo—Okay, sa OVP muna tayo, nag-issue po kayo ng Notice of Suspension. We're referring to the Office of the Vice President.

Ms. Del Campo. *Opo, iyong sa fourth quarter. Ang nag-issue pa po noon is si—*

Ms. Ferrer. *Hindi, ang tanong ko, for the year 2023, first to third quarter, may Notice of Suspension ba na na-issue?*

Ms. Del Campo. *Wala po.*

Ms. Ferrer. *Okay. Okay, punta tayo doon sa fourth quarter ng 2022. Sige, doon muna tayo. Balik tayo sa—kasi hindi naman kayo iyong nag-issue ng AOM doon sa fourth quarter po, 'di ba po, ng 2022?*

Ms. Del Campo. *Hindi po.*

Ms. Ferrer. *Oo, sige. So, doon na tayo sa Notice of Suspension kasi naabutan n'yo na ho iyon, 'di ba po?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. *Okay. So doon sa fourth quarter ng 2022, nag-issue kayo ng Notice of Suspension dated December 13, 2023. Tama po ba?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. *Okay. Pero sa 2023, wala kayong na-issue na Notice of Suspension.*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. *Okay. I am going to direct you to the JC, Section 3.2.*

Ralph, kindly give her a copy of the JC.

3.2, Notice of Suspension, nakita n'yo na ho? 3.2, nakita n'yo ho?

Ms. Del Campo. *3.20 po.*

Ms. Ferrer. *Okay. So, sinasabi ho diyan, refers to a written notification to the head of agency and/or accountant informing of the temporary disallowance in audit of CE—CE po ay confidential expenses.*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. *And/or IE, which appear illegal, improper, irregular, unless satisfactorily explained or justified by the responsible officers, or until requirements on matters raised in the course of audit are complied with. Tama po?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. *Pero in the case of the first and to third quarters, wala ho kayong in-issue na Notice of Suspension, tama ho?*

Ms. Del Campo. *Wala pong Notice of Suspension.*

Ms. Ferrer. *Therefore, the Vice President—Office of the Vice President—was not able to comment on any—on any supposed finding of the COA. Walang opportunity ho na magbigay ng comment iyong Office of the Vice President bago pa ho ma-issue iyong Notice of Disallowance.*

Ms. Del Campo. *Dumiretso po ito sa Notice of Disallowance.*

Ms. Ferrer. *Ah, mamaya ho. Mamaya ho, tatanungin kita, doon muna tayo sa Notice of Suspension.*

So, walang naibigay na oportunidad para mag-comment ang Office of the Vice President to any Notice of Suspension na hindi naman na-serve.

Ms. Del Campo. *Wala pong Notice of Suspension na na-issue.*

Ms. Ferrer. *Thank you. Salamat po. Now, sinabi mo rin kahapon na you dispensed with the Notice of Suspension because there was a supposed violation of 6.1.1 of the JC, tama ho?*

Ms. Del Campo. *Yes po, tama po.*

Ms. Ferrer. *Okay. Nasa JC ho ba, Joint Circular, na pag may violation ng 6.1.1, didiretso ho kayo sa Notice of Disallowance?*

Ms. Del Campo. Under *po kasi sa 3.19, nakalagay po doon na iyong* disallowance is a written notification to the head of agency and/or accountant informing and requiring the persons liable to restitute the amount, *kasi nga po nakalagay dito*, “as a result of illegal, irregular, and improper disbursement or expenditure of such funds.”

Ms. Ferrer. Okay. So, *naiintindihan po kita, Xylene. Ang tanong ko ho, nasa joint circular ba ho na pag may violation ng 6.1.1 ay didiretso ho kayo sa Notice of Disallowance? Nasa JC ho iyan?*

Ms. Del Campo. *Kasi nga po iyong—*

Ms. Ferrer. *Sagutin n'yo na lang ho iyong tanong ko. Nandoon ho ba o wala?*

Ms. Del Campo. *Puwede pong pakiulit iyong tanong?*

Ms. Ferrer. *Sige. Nasa joint circular ho ba na 'pag may violation ng 6.1.1, didiretso na kayo sa Notice of Disallowance; hindi ninyo na kailangang mag-issue ng Notice of Suspension?*

Ms. Del Campo. *Opo, kasi irregular na po iyong—*

Ms. Ferrer. *Hindi po. Ito po—ang tinatanong ko po ay, mismong iyong provision na iyon, sinasabi ho ba niya: “You can directly issue Notice of Disallowance without—”*

Ms. Kapunan. Your Honor, this is asked and answered.

The Presiding Officer. Asked and answered. That is her answer, Counsel.

It's not in the memorandum circular, Xylene, right?

Ms. Del Campo. *Mayroon po—Ang Notice of Disallowance po kasi, ini-issue siya 'pag irregular na po iyong paggamit noong pondo po. So—*

The Presiding Officer. *Tama po kayo, pero walang nakalagay na puwede kang dumiretso doon kapagka—kung anuman.*

Ms. Del Campo. *Opo. Basta nakalagay lang po na ini-issue ang ND pag irregular.*

The Presiding Officer. *'Pag irregular—Kung sa pananaw mo, irregular na.*

Ms. Del Campo. *Opo.*

The Presiding Officer. You may proceed, Counsel.

Ms. Ferrer. Okay. *Salamat po*, Your Honor.

Now, *punta tayo doon sa first and second notices of disallowance, 'no?* I will refer to the first ND. When I say first ND, that refers to the fourth quarter of 2022, *'no?* So, *iyong second ND naman*, that refers to the first to third quarter of 2023. Okay? *Para hindi ho tayo malito and for the guidance of the Honorable Court. Now, ang sinabi ho ninyong basis po sa audit ng—sa audit n'yo po ng confidential funds ng Vice President at ng DepEd ay, siyempre, iyong joint circular ho, hindi ba po?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So, *'pag may audit ho ng confidential funds, do you agree with me na dalawa lang naman iyong outcomes noon, hindi ba?* Allowance or disallowance of a confidential expense, whether full or partial allowance or disallowance.

Ms. Del Campo. *Iyong disallowance po. Puwedeng whole or in part.*

Ms. Ferrer. Okay. So, *tama iyon, 'no?* *Pwedeng dalawa iyong magiging resulta niya.* Allowance or disallowance, in full or in part. Okay. Now, and if a confidential expense is disallowed, it is because, in your own opinion, the agency did not fully comply with the documentary requirements of the joint circular.

Ms. Del Campo. *Opo, may—hindi siya compliant with the joint circular.*

Ms. Ferrer. Okay. *Sige. Salamat ho.* And as someone who is familiar with the COA rules—*ito po ay masasagot ninyo bilang auditor at bilang familiar po kayo sa COA rules, sa tingin ninyo ho ba ang joint circular is a penal law?*

Ms. Kapunan. Your Honor, please, Mr. Presiding Officer, we object to the question.

The Presiding Officer. If she knows—Overruled. If she knows; if she doesn't, she may say so.

Ms. Ferrer. Penal law, *alam n'yo ho ba iyong penal law?*

Ms. Del Campo. *Hindi po—*

Ms. Ferrer. *Sige. Idi-define po natin, iyong penal law ay iyong batas na—it is a law that defines a crime or a felony. Ganoon po iyong penal law. So, sa tingin n'yo ho, ito po bang joint circular, ito po ba ay isang batas na nagdi-define ng krimen?*

Ms. Kapunan. Misleading, Your Honor.

Ms. Ferrer. Your Honor, I'm on cross-examination, please.

The Presiding Officer. Witness is not competent—

Ms. Kapunan. Even if you're on cross, misleading, is not allowed.

The Presiding Officer. Not for that ground, Counsel. Witness would not be competent to answer that. She is not a lawyer nor a member of the bar, an accountant and is part of ICFAO.

Proceed to your next point, Counsel, please.

Ms. Kapunan. Thank you, Your Honor.

Ms. Ferrer. Okay. Thank you *po*, Your Honor.

Sige. I will ask her na lang based on her personal knowledge. Now, based ho sa circular, mayroon ho bang provision doon na kulong? Pagkakakulong? Mayroon ho ba?

Ms. Del Campo. *Wala pong nakalagay sa circular.*

Ms. Ferrer. Okay. *May provision ho ba doon na fines, multa?*

Ms. Kapunan. Your Honor, the document will speak for itself, objection.

The Presiding Officer. Let the witness answer. Overruled.

Ms. Del Campo. Your Honor, *puwede pong mag-refer dito sa joint—*

Ms. Ferrer. *Sige. Sure. Oo. Okay lang po.*

Ms. Del Campo. *Mayroon po dito sa item 8, iyong administrative provisions, penal sanctions. Iyon lang po iyong masasabi ko na—*

Ms. Ferrer. Ah, okay. *Sige. Okay. I'll take the answer. Pero—sige. Okay.*

Alam n'yo—kayo po ay part ng COA, 'di ba po?

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. *Pamilyar ho kayo sa Administrative Law kasi nasa gobyerno naman ho kayo?*

Ms. Del Campo. *Anong specific—hindi po ganoon ako—*

Ms. Ferrer. *Sige, okay. I will just dispense with that question.*

So, in short, *iyong joint circular, sa pagkakaintindi ninyo, ay procedural rules, na procedure siya kung paano ninyo ika-conduct inyong audit of the confidential funds?*

Ms. Del Campo. *Iyong joint circular po ang guidelines na ginagamit namin sa pag-audit po ng confidential and intelligence funds.*

Ms. Ferrer. Yes, okay. I will take that answer.

Now, let us go to the first ND.

Can it be flashed on the screen, please?

Now, ND, dated August 8, 2024, covering the fourth quarter of 2022. Okay. We will be giving

the witness a copy of the ND. Okay, *mayroon na pala, 'no?* So, in that ND, the amount of P73,287,000 was disallowed in audit out of P125 million confidential expenses of the OVP for the fourth quarter of 2022. *Tama po?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. *At saka sa disallowance po noon, ano, kung nakikita ninyo sa screen at sa copy ninyo ho na ND, may tatlong grounds po iyon, agree po kayo?*

Ms. Del Campo. *Opo, nandito po.*

Ms. Ferrer. Okay. So, *iyong* first ground *ho natin ay* non-submission of documents evidencing success of information gathering and/or surveillance activities with disallowed amount of 69,787,000. *Nakikita n'yo ba iyon?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Iyong pangalawa ho*, charging payment for tables, chairs, and desktop computers and printers in the total amount of P3,500,000 to confidential fund without specifying that they were intended for confidential operations activities or activities undertaken by the OVP. *Tama po?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay, *salamat.* And letter—No. 3, non-submission of the revised accomplishment report to the Office of the President, Senate President, and Speaker of the House of Representatives. *Tama ho?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. So, *sinabi ninyo ho kanina na itong* fourth quarter *na ito ng* 2022, *mayroon ho itong kalakip na* Notice of Suspension, *tama po?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So, can we flash the Notice of Suspension dated December 13, 2023? And this Notice of Suspension, *inilabas ho siya, in-issue ho siya* before *ng* issuance *ng* Notice of Disallowance. *Tama po?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. So, can we go to item No. 2, Ms. Xylene?

Can Counsel give her a copy?

Sige, you can peruse *po*, *'no*, item No. 2 of the Notice of Suspension.

Okay. So, item No. 2, "The DEPs likewise revealed that the OVP incurred the following expenses supported with acknowledgment receipts." *Nakikita n'yo po iyan?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So, *nakalagay ho diyan*, payment of reward, open-close parenthesis, (various goods), P34,857,000. *Tama po?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. Payment of reward, open-close parenthesis, (medicines), 24,930,000. *Tama po?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Payment of purchase supplies, P11,813,000, *tama po?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Payment of tables and chairs, P500,000, *tama po?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. Payment of desktop computers, P3,000,000, *sakto?*

Ms. Del Campo. *Opo, tama.*

Ms. Ferrer. Next paragraph *po, sinabi n'yo diyan, 'no*, "Since the aforementioned expenses pertain to purchases, the same should be supported by either sales invoices or official receipts as evidence of payment of purchases from establishments/stores." *Nakikita ninyo po ba?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Ngayon, nakikita n'yo ba ho iyang statement na iyan doon sa ND? Nandoon pa ho ba iyan or tinanggal ho iyan?*

Ms. Del Campo. *Iyong—wala na po ito sa ND.*

Ms. Ferrer. *Wala na ho iyan sa ND.* Okay. So, flash *natin ulit iyong ND para makita ho ng mga tao, ano. So, iyan. So, tinanggal n'yo na, ano?*

Let's go to the second ND, okay. *Ito na iyong first to third quarter ng 2023.* Okay.

Pakibigay ho ng kopya iyong ating witness. Okay. *Paki-flash ho ng second ND.*

The date is March 31, 2026. Okay. So, *iyong second ND naman ho, iyon ay nagdi-disallow ng P375 million na confidential expenses ng Office of the Vice President.*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. *Punta ho tayo doon sa, ano, item No. 1, payment of rewards, totaling P62 million.* Okay. So, *kita n'yo ho, P62 million?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. According to ICFAO, *sabi n'yo ho*, "The documents evidencing success of the surveillance activities submitted by the OVP did not comply with item 4.8.5.b of the joint circular because the documents were not able to specify the particular accomplishments demonstrating success of the information gathering." *Nakita n'yo ho iyon?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So, *tanong ho*, does the JC describe a particular format for this type of documents? *Nasa—may pro forma ho ba kung paano ho isusulat iyong accomplishments demonstrating success of the information gathering?*

Ms. Del Campo. *Ang nakalagay lang po doon sa joint circular is—*

Ms. Ferrer. *Hindi. Ang tanong ko ho ay may template po ba iyong JC?*

Ms. Del Campo. *Wala po.*

Ms. Ferrer. *Wala po.* Okay. In fact, *hindi ho siya part noong annexes po noong JC, ano po?*

Ms. Del Campo. *Opo—*

Ms. Ferrer. *Wala pong template na ganoon kung papaano ho namin isusulat kung ano po iyong mga success of information gathering na iyon, iyong mga detalye na iyon? Wala hong ganoon?*

Ms. Kapunan. Your Honor, please. Asked and answered already.

Ms. Ferrer. Okay.

The Presiding Officer. Move on, Counsel.

Ms. Ferrer. Yes, *po.* So, *sa JC, may nakikita ho ba kayong example paano isulat iyon, aside sa wala ho siya sa annexes, sinabi ninyo ho kanina? May nilagay ho ba si JC doon na example na, "Ganito dapat iyong pagkasulat ninyo ng certification evidencing success of the information gathering. Ganito dapat iyong pagkasulat"?* May *ganoon ho ba sa JC?*

Ms. Del Campo. *Ang nakalagay lang po is documents evidencing success.*

Ms. Ferrer. Okay. Okay, *sige.* I'll take that answer.

So, in disallowing the OVP's documents evidencing success of its surveillance activities, of course, you merely relied on your personal opinion or probably your professional opinion, *ano? Kung ano sa tingin ninyo ang compliant with item 4.8.5 of the JC. Tama po?*

Ms. Del Campo. *Bineys (base) ko po ang evaluation ko based on the joint circular and—opo.*

Ms. Ferrer. Yes. And *ikaw ho iyong nag-audit*, so basically, *iyon po ang inyong professional judgment, ano ho?*

Ms. Del Campo. And *ito pong pag-o-audit kasi na ito, dumadaan din po ito sa review*. So, *nare-review din po ito ng aking Division Chief hanggang makarating po sa head of ICFAO.*

Ms. Ferrer. Yes, yes. In short, *lahat kayo ng auditors, based din sa judgment ninyo, sa opinyon ninyo, na itong document na ito ay hindi naayon sa circular 4.8.5.*

Ms. Kapunan. Asked and answered, Your Honor.

Ms. Ferrer. Not yet, Your Honor, because she said there were reviews that were undertaken.

So, *lahat kayo, kasali iyong mga superiors mo, ano, ito iyong opinyon ninyo, ano, na ito ay hindi naayon sa circular 4.8.5, specifically?*

Ms. Kapunan. Your Honor, please. I object again. Counsel uses the word “opinion,” whereas this witness says “professional judgment,” Your Honor. They are two different things. Opinion is not professional judgment.

Ms. Ferrer. No, Your Honor.

The Presiding Officer. Besides—Counsels, please, besides, Witness already answered that that is not only her personal judgment and/or opinion, but also that of her superiors who reviewed...

Ms. Kapunan. Yes, Your Honor.

The Presiding Officer. ...her findings resulting in the Notice of Disallowance.

You did not sign the Notice of Disallowance, correct, Xylene?

Ms. Del Campo. ... *Hindi po, pero mayroon po sa office namin iyong second original copy, may countersign po kami. Pero ang ini-issue namin sa agency is iyong may sign lang po ng aming—*

The Presiding Officer. So, *pataas—presumably, ‘pag pinirmahan iyan ultimately at inisyu (issue), nag-agree sila sa findings mo at iyon din ang pananaw nila?*

Ms. Del Campo. *Opo.*

The Presiding Officer. You may proceed, Counsel.

Ms. Ferrer. Okay. So, *sinasabi n’yo ho na iyon po iyong pananaw po ng inyong mga superiors at ng sarili mo din, ano? Mayroon ho bang guidelines iyong COA na nagsasabi na ganito dapat iyong assessment ninyo pagdating ho diyan sa submission ng documents evidencing success of information gathering? May mga clarificatory issuances ba iyong COA niyan?*

Ms. Del Campo. We base po our audit sa joint circular.

Ms. Ferrer. Joint circular *lang talaga?* Okay. So, okay. *Punta ho tayo doon sa item No. 2, Ms. Xylene. Okay. Item No. 2, okay. “The ND provides: No. 2, Purchases of supplies and provisions of medical/food aid totaling P199 million, presented in table 2, were supported only by acknowledgment receipts.” Nakikita n’yo ho ba iyan?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. So, *ito hong Table 2 na ito, nakalagay, ang total ho niya, purchase of supplies, P117 million; provisions of medical and food aid, P82 million; iyong total ho niya, P199 million. Tama ho?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. And *dinis-allow (disallow) n’yo siya* because acknowledgment receipts *lang* iyong supporting documents.

Ms. Del Campo. *Dahil nga po we cannot—opo.*

Ms. Ferrer. *Iyon lang—i-ano n'yo muna iyong tanong ko po. Doon lang ho muna kayo sumagot, ano?*

So, acknowledgment receipts lang, so disallowed, *tama ho?*

Ms. Del Campo. Yes po, because—

Ms. Ferrer. *Mamaya na. Tatanungin ko din.* Wait for the question, Xylene.

So, *sabi doon sa next paragraph—okay, may next paragraph po, tingnan n'yo ho—*“Although the joint circular”—*Nakita n'yo ho iyan?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. “Although the joint circular does not prescribe specificity to the documentary evidence of payments to be submitted to substantiate the disbursements made from the CF, this office, pursuant to item 6.2.3.7 of the joint circular, may require other supporting documents that we deem necessary for the proper evaluation of liquidation documents submitted.” *Nakita n'yo po iyan?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Iyong next sentence, sinasabi ho,* “To ascertain the validity of such purchases of supplies and provision of medical and food aid, we deem it necessary that they be substantiated with appropriate documents such as official receipts or sales invoices.” *Sinabi po iyan?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So, in short, *mas gugustuhin n'yo na mayroon talagang* official receipts and invoices *na nakalakip doon sa submission ng OVP.*

Ms. Del Campo. To ascertain *po na talagang naibili ito ng* supplies and medical and food aid.

Ms. Ferrer. Okay, *sige.* Thank you. Of course, the answer is clear, *ano?* So okay, *ano?* *Pero* if you can recall *doon sa ND ng fourth quarter ninyo noong 2022—puwede nating i-flash back, i-flash ulit, oo—tinanggal ho doon iyong requirement ng* official receipts and invoices. *Tama ho ba?* Do you recall that?

Ms. Del Campo. *Kasi po iyong sa—*

Ms. Ferrer. *Hindi.* Just answer my question, Ms. Xylene.

Ms. Kapunan. Your Honor, please. Can Counsel for the Respondent show...

Ms. Ferrer. Yes, it will be shown.

Ms. Kapunan. ... the particular provision, Your Honor?

The Presiding Officer. Kindly flash it on the screen.

Ms. Ferrer. Okay. So, *doon sa fourth quarter ng 2022, 'no, wala—Doon sa ND ninyo, tinanggal na ninyo iyong requirement ninyo for* sales invoices and receipts, *hindi ba?*

Ms. Kapunan. Counsel, *wala din sa* screen, Counsel. Can you please confront the witness with the document?

Ms. Ferrer. Yes, they are working on it. *Nandoon na, nandoon na.*

The Presiding Officer. Xylene, do you remember? Can you answer? Can you answer, Xylene?

Ms. Del Campo. *Wala po siya doon, pero puwede ko po bang i-clarify iyong answer?*

The Presiding Officer. Let the opposing Counsel seek that, but the question being asked first is *kung nandoon o wala.* So, *wala na siya doon sa* Notice of Disallowance?

Ms. Del Campo. *Wala na po.*

Ms. Ferrer. *Oo, pero nandoon naman siya sa Notice of Suspension dati, ano, iyong 2022?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. ... Okay. So, ngayon, Ms. Xylene, I understand, *baka familiar na ho dito si opposing Counsel, alam n'yo ho ba iyong COA Circular No. 92-385?*

Ms. Del Campo. *Opo. Iyon po ba iyong pinakita kay—iyon po ba iyong—puwede pong ipakita?*

Ms. Ferrer. *Sige, ipapakita ho namin sa inyo. Sige ho.*

The Presiding Officer. Kindly show the witness.

Ms. Ferrer. Okay. Hello. Ito—

Ms. Kapunan. Your Honor, please, before she asks the question, Your Honor, for everybody to refresh their memories, this particular Circular was presented by Attorney Poa to Attorney Wamil. And we had manifested that this Circular, dated 1992, has been superseded, has been amended, has been revoked by the current joint Circular, joint Circular of five government agencies, not only one, Your Honor.

The Presiding Officer. I remember that manifestation, that it was impliedly repealed, although it was not specifically mentioned in the repealing clause of the JMC. Yes.

Witness may answer.

Ms. Ferrer. Yes, Your Honor, but I have different questions.

Okay. So, *pakibasa ho, 'no.* With the indulgence of the opposing Counsel, *ipapabasa lang ho namin iyong* certain provisions, *iyong* fourth paragraph *po.*

Ms. Kapunan. Your Honor, please, before this witness answers, Your Honor.

The Presiding Officer. Yes, Attorney Kapunan?

Ms. Kapunan. May we know this line of questioning? Because this witness precisely is being presented with a document and required or directed to read provisions or paragraphs of a document that is no longer in force and effect, Your Honor.

The Presiding Officer. Let's give her some leeway, Counsel...

Ms. Ferrer. She will know later the question, Your Honor.

The Presiding Officer. ...we will see where she will lead to.

Ms. Ferrer. So, paragraph 4, Your Honor, please—Witness.

Ms. Del Campo. "Whereas, these intelligence and confidential activities by their very nature are highly sensitive and confidential operations or missions the details of which cannot be divulged without posing a threat to national security or to the success of the mission."

Ms. Ferrer. Can you continue with paragraph 5, Xylene?

Ms. Del Campo. "Whereas, as now being required, the submission of receipts, bills, or commercial invoices in support of disbursement from these funds for rental of safehouses, purchase of meals or supplies, and other expenses might create a leak of information that may threaten the confidentiality of the intelligence operations, endanger the lives and safety of the agents and employees of the government agencies, and result to a failure of the mission."

Ms. Ferrer. So, paragraph 6. Sorry, *medyo magbabasa ka.* Paragraph 6.

Ms. Del Campo. "Whereas, in many instances, it is impractical and sometimes impossible to obtain such receipts, bills, or commercial invoices during intelligence operations."

Ms. Ferrer. Last *na ho, 'no?* Paragraph 7.

Ms. Del Campo. "Whereas, by its very nature, the use of intelligence and/or confidential funds requires an approach allowing more flexibility in intelligence operations."

Ms. Ferrer. Okay. So, *sinabi ho ng* good Counsel *natin na* this is a 1992 Circular, outdated *na iyan*. *Pero*, agree *ho kayo sa sinasabi niya na* confidential operations are highly sensitive?

Ms. Del Campo. *Opo*.

Ms. Ferrer. *Totoo pa naman ho iyon hanggang ngayon, hindi ba po?*

Ms. Del Campo. *Opo, tama po*.

Ms. Ferrer. Okay. *At ayon sa Circular, may mga detalye na hindi natin puwedeng i-disclose dahil dito ho nakasalalay iyong success ng ating confidential operation?*

Ms. Del Campo. Based *po sa* document *na ito*.

Ms. Ferrer. *Pero as of today, totoo pa naman ho iyon—applicable ho iyon sa tingin n'yo ho?*

Ms. Del Campo. *Pag—opo sa intelligence*.

Ms. Ferrer. Okay, okay. And confidential activities also?

Ms. Kapunan. Your Honor, please, the answer was, "*Opo, sa intelligence*."

Ms. Ferrer. Hindi. I'm asking her about confidential ano po, Your Honor, operations.

Applicable din ho iyan pagdating sa mga confidential operations?

Ms. Del Campo. *Opo, puwede din po*.

Ms. Ferrer. Okay. *Salamat*.

Now, based on those statements *na binasa ho ninyo, nire-recognize ho ng COA*, based *lang ho diyan sa* statement *na iyan, na iyong* submission of receipts, bills, and/or commercial invoices in support of certain expenses might create a leak of information that may threaten the confidentiality of the intelligence operations. Based *lang ho dito sa binasa n'yo ho?*

Ms. Del Campo. Based *po dito sa* Circular *na ito*.

Ms. Ferrer. Okay. So, *sa tingin n'yo ho iyong mga konsepto ho na na-introduce po ng Circular na ito ay applicable pa ho sa panahong ito?*

Ms. Kapunan. Objection, Your Honor.

The Presiding Officer. What is the objection?

Ms. Kapunan. Your Honor please, this Counsel is trying to elicit from this witness an opinion that indirectly runs counter to the express provision in the joint Circular of 2015, Your Honor, that all of these, everything she has said, all the paragraphs that she has read precisely. Your Honor, if I can—

Ms. Ferrer. Your Honor—

Ms. Kapunan. I will state this later, Your Honor. But precisely, Your Honor, the joint Circular, if we are to read the rationale for the joint Circular, was precisely in recognition of the fact that this Circular and several other Circulars of intelligence and confidential government agencies are inaccurate and inconsistent with each other. Thus, the rationale of joint Circular 2015 was precisely to make it one whole joint Circular of five agencies on intelligence and confidential funds. She is now saying, Your Honor—

The Presiding Officer. I understand the point of Attorney Kapunan. However, the question is quite simple for the witness. Although this may have indeed been impliedly repealed, again, impliedly repealed by the joint memorandum Circular, are the concepts stated herein still applicable today, and are you still using it?

To abbreviate the proceedings, Ms. Xylene, *iyong kawalan ba ng resibo na sinasabing okay lang sa Circular na ito, okay pa rin ba hanggang ngayon sa joint memorandum Circular o hindi na?*

Ms. Del Campo. Under *po kasi sa* Joint Memorandum Circular, under 6.2.3.7, we can request *po* other documents necessary for the proper evaluation *po noong* under 6.2.3.7 *po...*

The Presiding Officer. I agree...

Ms. Del Campo. ...other documents necessary in the audit *po*.

The Presiding Officer. ...you can request for other documents, but the joint Circular does not say that you should demand and ask for receipts.

Ms. Del Campo. *Opo*.

The Presiding Officer. *Wala doon iyon.*

Ms. Ferrer. Your Honor.

The Presiding Officer. Yes, Attorney Kristine.

Ms. Ferrer. Just a quick manifestation, Your Honor.

The Presiding Officer. You may proceed, Attorney Kristine.

Ms. Ferrer. Your Honor, can the Counsel for the Prosecutors be reminded not to make an argument—not to argue for the witness, Your Honor? Because she is citing Circular, she is citing laws, which is not allowed during cross-examination, and that is indirectly teaching her witness how to answer my questions.

So, please, Your Honor, can the Court direct the Counsel not to make these arguments in court? Because these are not allowed under the *Rules of Court*, Your Honor. This is not a place where we are—this is not the time where we are supposed to expound or to state our oral arguments in this case. So, please, Your Honor.

Ms. Kapunan. Your Honor, please, if I may.

The Presiding Officer. This is part of the seeming generational divide tension that the Court is trying to avoid. So, let's leave it at that, Counsel.

Ms. Kapunan. Yes, Your Honor. I was just going to say that I accept.

The Presiding Officer. Let's leave it at that.

Ms. Kapunan. I accept what she said, Your Honor.

Ms. Ferrer. Thank you, thank you—

The Presiding Officer. Ah, good!

Ms. Kapunan. I will refrain from lecturing her, Your Honor.

Ms. Ferrer. No—

The Presiding Officer. Counsel, please.

Ms. Ferrer. That is all out of order, Your Honor, please.

The Presiding Officer. Counsel, please.

Kindly proceed, Attorney Kristine.

Ms. Ferrer. Okay, thank you. Thank you, Your Honor.

Okay. *Sige*. I will go back to the podium.

So, in relation to the question that you were asked by the Chair. Earlier, you said that *hindi naman* required *ng* circular *iyong mga* invoices and receipts, *tama ho*?

Ms. Del Campo. *Ang* requirement *po* is other documents deemed necessary *sa* audit *po*.

Ms. Ferrer. Yes, but answer my question; *hindi* required *iyong* invoices and receipts. *Sinabi mo iyan kanina*.

Ms. Del Campo. *Opo, hindi po siya naka-enumerate doon.*

Ms. Ferrer. Okay, thank you. In fact, *iyong* Item 4.12 *ng* JC—*kung may copy ka ho diyan, paki-ano na lang ho, pakitingin*—Item 4.12, please. Okay. It says that disbursements from CF shall

be supported with documentary evidence of payment, among others, which shall be submitted to the ICFAO in a sealed envelope signed by SDO. So, *sinasabi dito* documentary evidence of payment, *tama ho?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Without specifying the kind of document that the agency should submit, *tama?*

Ms. Del Campo. *Opo, wala siyang ini-specify. Ang nakalagay lang po,* documents evidencing payment.

Ms. Ferrer. Okay. So, *kung iyong intention ho ng Circular ay i-require iyong invoices and receipts, bakit sa tingin ninyo hindi ho nakalagay sa Circular iyon?*

Ms. Kapunan. Your Honor, please, we object to the question.

The Presiding Officer. What is the basis of the objection, Counsel?

Ms. Kapunan. Argumentative, speculative.

The Presiding Officer. Sustained.

Ms. Ferrer. Okay. *Sige po.*

The Presiding Officer. For being argumentative.

Ms. Ferrer. Yes, Your Honor. I will move on.

Okay, Celine—Xylene *pala*, sorry. *Kasi* Celine Dion. Xylene. Okay, Xylene, 'no?

The Circular involves surveillance activities, *tama?*

Ms. Del Campo. Confidential and intelligence activities *po.*

Ms. Ferrer. Oo. Yes, surveillance activities. Familiar *ho ba kayo sa mga* surveillance activities?

Ms. Kapunan. Excuse me, Your Honor. Asked and answered earlier.

Ms. Ferrer. *Hindi ho, tinatanong ko ho,* Your Honor, *kung familiar ho sila kung anong klaseng mga* surveillance—*kung ano ho ang mga* surveillance activities.

The Presiding Officer. Witness may answer. She evaluated those earlier and identified some of the things read by Counsel as surveillance. So she is competent to answer.

Xylene, please answer the question.

Ms. Del Campo. *Puwede po ulit pakiulit iyong tanong?*

The Presiding Officer. Familiar *po ba kayo sa mga* surveillance operations? *Mga klase, uri,* I believe, *ng* surveillance operations?

Ms. Del Campo. *May kaunti po akong alam sa* surveillance activities *po.*

The Presiding Officer. Okay.

Ms. Ferrer. Okay. *Sige.* I will just move on to another point, Your Honor. So—okay, *natapos na tayo doon sa* invoices and receipts.

Kayo ho ay Certified Public Accountant *ho,* Ms. Celine—Xylene?

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So, familiar *ho kayo sa* Tax Code, National Internal Revenue Code?

Ms. Del Campo. *Hindi po ako nag-practice ng sa bandang* tax *ho.*

Ms. Ferrer. *Pero pinag-aralan ho natin iyan sa* college, *noong—sa* accountancy *ho, hindi ba?*

Ms. Kapunan. Your Honor.

Ms. Ferrer. *Kasama po—*

Ms. Kapunan. Your Honor, we object to this line of questioning already. First, she asked this witness earlier if this witness is familiar with criminal laws. Objection from Prosecution, sustained by the Presiding Officer. Now, she is asking this witness—are you familiar with—

Ms. Ferrer. Tax Code.

Ms. Kapunan. The Tax Code, Your Honor.

Ms. Ferrer. Because she is a CPA, Your Honor.

Ms. Kapunan. We will make the same objection, Your Honor, beyond the scope of direct—

The Presiding Officer. We will note the objection. We will see where she takes this, Counsel. We will give her some leeway since she is on cross.

Ms. Ferrer. Yes. Thank you. Thank you, Your Honor.

So, *iyong* Tax Code *ho*, *nasa* curriculum *ho natin iyan noong* college *po*, *hindi ba po*, *noong* nagte-take up *tayo ng* Accountancy?

Ms. Del Campo. Yes *po*, Taxation and Law.

Ms. Ferrer. Okay. *Salamat po*.

Now, familiar *ho kayo sa* Section 34 *ho ng* Tax Code? *Sige—*

Ms. Del Campo. *Hindi ko na po gaanong maalala.*

Ms. Ferrer. *Hindi n'yo na maalala, 'no? Ipa-flash ho natin iyan sa screen.*

Please, Section 34.

Ms. Kapunan. Can Counsel just proceed to the question, Your Honor?

Ms. Ferrer. That's it. That's it, Your Honor. That Section 34, *ipa-flash ho natin, 'no?*

Section 34(b) says: "Substantiation Requirements. No deduction from gross income shall be allowed under subsection (a) hereof unless the taxpayer shall substantiate with sufficient evidence, such as official receipts or other "adequate records," the amount of the expense being deducted, and the direct connection or relation of the expense being deducted to the development, management, operation and/or conduct of trade, business, or profession of the taxpayer."

Kita n'yo ho iyan?

Ms. Kapunan. Your Honor, please.

The Presiding Officer. Counsel?

Ms. Kapunan. We will object already to this line of questioning. It is totally immaterial, irrelevant, and beyond the scope of cross-examination.

Ms. Ferrer. There was no question yet, Your Honor.

Ms. Kapunan. Your Honor—

The Presiding Officer. Let us wait for the question, Counsel. I think I know where Counsel is leading to.

Ms. Ferrer. Thank you. Thank you, Your Honor.

The Presiding Officer. Attorney Kristine, go to your question.

Ms. Ferrer. Okay. So, Section 34(b) refers to the deductibility of expenses under the Tax Code; you can recall that?

Ms. Del Campo. *Opo.*

Ms. Ferrer. Yes. Okay.

Ms. Kapunan. Now, we make our objection, Your Honor. What's your—Is that your question?

Ms. Ferrer. *Wala pa.*

Ms. Kapunan. No. You said—

The Presiding Officer. I think she is laying the basis for her question, Counsel.

Ms. Ferrer. *Wala pa ho.* I am laying the basis *ho*.

Okay. So—

Ms. Kapunan. What is the question?

Ms. Ferrer. Wait *lang ho*.

In fact, Section 34(b), *iyong binasa natin*—

The Presiding Officer. Patience is a virtue, Counsel. Let us give her some—

Ms. Ferrer. Yeah.

The Presiding Officer. Let her lay the predicate.

Ms. Ferrer. In fact, Section 34(b) of the NIRC considers other “adequate records” to support the deductibility of expenses, *hindi ba ho*?

Kung titingnan n'yo lang ho, base lang ho sa Tax Code.

Ms. Kapunan. Is that already the question?

The Presiding Officer. No. Asked and answered, Counsel. Move to your point.

Ms. Kapunan. What is—

Ms. Ferrer. Yes. *Ano ho iyong sagot?*

Ms. Del Campo. *Paulit po iyong tanong. Puwede pong pakiulit?*

Ms. Ferrer. Okay. Based *ho diyan sa sinayt* (cite) *ho natin na provision ng Tax Code*, okay, Section 34(b) considers “adequate records” as sufficient support for the deductibility of expenses or business expenses under the Tax Code.

Ms. Del Campo. Based *po diyan*.

Ms. Ferrer. Based *po diyan*. Okay.

Ms. Kapunan. The document is the best evidence, Your Honor.

The Presiding Officer. Yes, Counsel. Let her proceed, Counsel.

Ms. Ferrer. Thank you, Your Honor. It does not require an invoice—*nakalagay ho diyan*, “invoice.” *Dapat mag-submit ho tayo ng invoice.*

Ms. Kapunan. Again, may I object now? Is that a question already or should I wait for your question?

Ms. Ferrer. Yes, that's a question, Your Honor. That's a question. That's a question, Your Honor.

Ms. Kapunan. Okay. That is your question.

Ms. Ferrer. *Nakalagay ho ba diyan na requirement na dapat may invoice para magiging deductible iyong expense?*

Ms. Del Campo. *Nakalagay po, “such as official—”*

Ms. Kapunan. Your Honor, please.

The Presiding Officer. Attorney Lorna, yes. What is your objection?

Ms. Kapunan. This is immaterial, irrelevant, beyond the scope. This is the National Internal Revenue Code for taxpayers. What is relevant here is the payment of taxes, what is allowed as deductions, what are documents allowed to substantiate findings here. It refers to gross income,

Your Honor. What does gross income have to do with confidential funds of the Office of the Vice President and the DepEd, Your Honor?

The Presiding Officer. Since it is 11:55, let the Presiding Officer go to the point. I think Attorney Kristine is going toward—Attorney, Xylene, *nasa Tax Code para sa anumang dahilan o purpose ay puwede kang mag-present ng “adequate records” maliban sa resibo. Alam n’yo iyan bilang accountant.*

Ms. Del Campo. *Opo.*

The Presiding Officer. *Sa trabaho n’yo po ba ngayon sa COA, sa paghahanap, ayon sa pag-cite ninyo ng provision kanina, ng iba pang dokumento bilang suporta sa paggastos ng Confidential Fund, tiningnan n’yo ba, maliban sa official receipt, “adequate records” na ginagamit din naman sa NIRC kung applicable iyan sa COA?*

Ms. Del Campo. *Puwede pong pakiulit iyong tanong?*

The Presiding Officer. *Applicable rin ba ang “adequate records,” maliban sa resibo sa COA at hindi lamang dito sa NIRC? Bilang accountant. Kaya nga siguro required na accountant kayong lahat o abogado, hindi ba?*

Ms. Del Campo. *Opo.*

The Presiding Officer. *So, puwedeng adequate record?*

Ms. Del Campo. *Opo, na maa-asertain namin kung talagang nagamit ito for confidential expense.*

The Presiding Officer. *Puwede kayong magbigay ng isang ehemplo ng adequate record? Maliban sa resibo, ha, maliban sa OR. Anong isang ehemplo ng adequate record base sa karanasan ninyo sa ibang national government agencies na nagli-liquidate ng confidential and intelligence funds?*

Ms. Del Campo. *May mga sina-submit po sila na gaya po ng acknowledgment receipt at saka po iyong mga reimbursement expense receipts po.*

The Presiding Officer. *So, iyan iyong papasok sa “adequate records” na katanggap-tanggap para sa inyo, maliban sa official receipt?*

Ms. Del Campo. *Kasama rin po iyong official receipt. Iyon po.*

The Presiding Officer. *Puwede bang gamitin ang other record, adequate record sa pagbili ng bagay-bagay?*

Ms. Del Campo. *Opo, puwede po.*

The Presiding Officer. *So, tables, chairs, puwedeng adequate record, at hindi kailangang official receipt sa lahat ng panahon depende sa kalagayan at sitwasyon.*

Ms. Del Campo. *Pero po kasi ito po ay nagpe-pertain sa purchases, so mas sufficient po sa amin kung maipapakita iyong sales invoice at official receipts po.*

The Presiding Officer. *Pero posible bang may “adequate records” iyon o wala? Posible bang may iba pang record, sa karanasan ninyo sa ibang agencies na gumagamit ng intelligence at confidential funds?*

Ms. Del Campo. *Resibo lang po talaga para mapatunayan namin na talagang binili iyon for tables and chairs.*

The Presiding Officer. *Pag purchase?*

Ms. Del Campo. *Opo.*

The Presiding Officer. *Hindi pag reward, hindi pag information?*

Ms. Del Campo. *Opo, puwede po iyong acknowledgment receipts doon.*

The Presiding Officer. *At iyon ang papasok sa “adequate records”?*

Ms. Del Campo. *Opo, tama po.*

The Presiding Officer. Okay. Attorney Kristine.

Ms. Ferrer. Yes, Your Honor. I'll move on.

The Presiding Officer. You want to move on to the next point?

Ms. Ferrer. Yes. Yes po.

The Presiding Officer. Okay.

Ms. Ferrer. Okay. So, *napag-usapan ho natin iyong ORs and sales invoices, hindi ba po?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. As a CPA, *siyempre* as COA Auditor, *pamilyar ho kayo kung ano iyong mga contents noon doon sa ORs and invoices. Pamilyar ho kayo ano iyong mga details na nandoon, hindi ba po?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So, *nakalagay doon sa ORs and invoices, halos pare-pareho lang ho iyan, the date of transaction, hindi ba ho?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Iyong seller's details, nakalagay doon iyong registered name, registered business address, and the tax identification of the seller. Nakalagay ho doon, hindi ba po?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. *Nakalagay din ho doon iyong description ng goods, hindi ba po? Or in case of services, kung ano ho iyong nature ng services provided, nakalagay ho doon.*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So, *nakalagay din ho doon iyong buyer's information, 'no, iyong pangalan ng buyer or ng client, iyong address, at saka iyong tax identification number ng client. Tama ho?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. Now, let's apply this invoice—these details that are required in an invoice or OR in an actual confidential transaction.

Ms. Kapunan. Your Honor.

The Presiding Officer. Counsel for the Prosecution.

Ms. Kapunan. We object to this line of questioning, Your Honor. We are now going to the realm of the hypothetical. She has presented a hypothetical OR knowing that there is zero, no OR, not a single OR was submitted to the office of the COA-ICFAO. Now, she is talking about a sample, a sample hypothetical OR. What is the line—where are we going here, Your Honor?

Ms. Ferrer. *Wala pang question, Your Honor.*

Ms. Kapunan. Because if we are going to this line of hypotheticals, Your Honor, we might not finish today, we might finish next week, August 14, which is what they want probably, Your Honor.

The Presiding Officer. Counsel, I will give Attorney Kristine some leeway on this. Let's see where she will go.

Ms. Ferrer. Yes, thank you, Your Honor.

Okay. So, *ipagpalagay na ho natin 'yung transaction rental of safehouse. Okay. So, assuming nag-require ho kayo, ICFAO, ng invoice or ng OR, so, ano ho ba 'yung—kasi hindi ba ho sabi n'yo dito sa findings n'yo na kailangan natin ng ORs at ng invoice. Tapos, naalala n'yo ho nilagay n'yo ho dito na puwede naman hong may mga information na dapat tanggalin, hindi ba po? Nakalagay ho doon sa ND.*

Ms. Del Campo. *Iyong hinihingan po namin ng additional documents gaya ng OR and—*

Ms. Ferrer. *Hindi, hindi ho.* I will direct you to the ND.

The Presiding Officer. Which ND, Counsel?

Ms. Ferrer. The second ND, Your Honor.

The Presiding Officer. The August 8 ND?

Ms. Ferrer. Yes *po*, yes *po*. Okay. *Babasahin ko 'yung portion na related po dito.* No. 2, 'yung second paragraph *po*, *pakitingin na lang ho*, Ms. Xylene, 'no. Okay. *Iyong*, "Though—" *itong under item No. 2*, okay, 'yung sa second paragraph, *hindi ba may table doon?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Nasusundan ho n'yo 'yung*, "Though this Office—" *paki-reflect na lang ho sa itaas, sa overhead—"*Though this Office recognizes—" *nakikita n'yo ba ho iyan?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. "...that by the very nature of the CF where identities of those involved, that is the informants, for whom the supplies were used—" *nasusundan n'yo ho—"*owners of safehouses, or owners of rented vehicles used for confidential activities, and the details which can be disclosed evidencing validity should be submitted to warrant reasonable and adequate substantiation—" Sorry, sorry, let's go back, 'no. "...those involved, that is the informants—" okay. *Ulit, ulit*, sorry.

"Though this Office recognizes that by the very nature of the CF where identities of those involved, that is the informants, for whom supplies were used, owners of safehouses, or owners of rented vehicles used for confidential activities, and the very details of the confidential activities are to be reasonably safeguarded—" *nakikita n'yo ba ho iyan?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. *Oo.* "...reasonably safeguarded, other details,—" *sinabi n'yo ho dito—"*other details which can be disclosed evidencing the validity should be submitted to warrant reasonable and adequate substantiation of the claimed confidential expenses in relation to Item 4.12 of the Joint Circular.

Ms. Kapunan. Your Honor, please.

Ms. Ferrer. I have not yet propounded my question, Your Honor.

The Presiding Officer. There is no question yet, Counsel.

Ms. Kapunan. No, Your Honor, this does not relate to the question. This relates to the document being flashed. The question is—

Ms. Ferrer. I am laying the basis.

Ms. Kapunan. This is not an August 8 ND.

Ms. Ferrer. I was saying, Your Honor, this was the second ND.

The Presiding Officer. Sorry, this is the—

Ms. Kapunan. Is that the one being flashed on the screen?

Ms. Ferrer. Second ND.

The Presiding Officer. This is the March 31?

Ms. Ferrer. Yes, it is the March 31, Your Honor, but the witness—

Ms. Kapunan. So, it is misleading, Your Honor. She said August 8 ND.

Ms. Ferrer. No, I said second ND, I did not say August 8.

The Presiding Officer. Attorney Xylene, are you referring to the March 31, 2026?

Ms. Ferrer. Yes, Your Honor. I am referring to the March 31, 2026 ND.

Ms. Del Campo. Yes *po*, 'yung sa ND dated March 31, 2026.

The Presiding Officer. So, she knows what she was looking at, Counsel.

Ms. Ferrer. Yes.

The Presiding Officer. It was the Presiding Officer's mistake when I referred to it as August 8.

Ms. Ferrer. Yes. Thank you, Your Honor.

So, *nakalagay ho diyan, ano?* Okay. So, *balik ho tayo doon sa requirement ng invoice at OR. Assuming nga iyon rent of safehouse ho iyon, 'no?* So, *base doon sa mga items or sa mga information na sinabi n'yo ho kanina, ano ho ba 'yung puwedeng tanggalin natin doon sa invoice?*

Ms. Del Campo. *Iyong—*

Ms. Ferrer. *Hindi, tatanungin ho kita. Iisa-isahin ko ho ito. Ano ho 'yung puwedeng tatanggalin ho natin doon sa invoice? Okay, lessor's registered name. Example, ABC Apartments. Halimbawa, kasi kailangan namin mag-submit ng invoice, 'no? Mag-submit kami ng invoice—*

Ms. Kapunan. Your Honor, please.

Ms. Ferrer. Wait lang ho, Your Honor, *hindi pa ho ako—*

The Presiding Officer. Kindly finish your question, Counsel.

Ms. Ferrer. *Mag-submit ho kami ng invoice. Sabi n'yo ho, you recognize that there are information that are sensitive, tama ho ba? So, kapag nag-submit ho kami ng invoice involving—as rental of a safehouse, ano ho ba 'yung puwede naming tanggalin? Okay, lessor's registered name, ABC Apartments, kunwari, puwedeng tanggalin?*

Ms. Del Campo. *Puwede po bang mag—may ika-clarify lang po ako?*

The Presiding Officer. Now, before you answer. Attorney Xylene, before you answer—yes, Attorney Kapunan, you were saying something?

Ms. Kapunan. Your Honor, this line of questioning already is, No. 1, argumentative; No. 2, hypothetical, Your Honor.

Ms. Ferrer. No—

Ms. Kapunan. Because this witness has testified—

The Presiding Officer. It is based on the ND. And I think some members of the Court would also like to find out what is acceptable and what is not, given the confidential nature of this. I think even one of the Senator-Judges will be pursuing this point later. So, it might abbreviate the proceedings if you are able to answer now.

Ms. Kapunan. We submit, Your Honor.

The Presiding Officer. *Ano 'yung katanggap-tanggap na laman ng invoice, Xylene, kung dapat itago na confidential ang ibang mga impormasyon?*

Ms. Del Campo. *Puwede po bang i-explain ko lang po muna 'yung nasa ND?*

The Presiding Officer. *Opo, siges po.*

Ms. Del Campo. *Kasi po ang hinihingan lang po namin ng official receipt and invoice, iyon lang pong expense pertaining to purchase of supplies and provision of medical and food aid. Hindi po nabanggit 'yung sa rental ng safehouses.*

The Presiding Officer. So, sa rental, hindi kailangan?

Ms. Del Campo. *Hindi po. Ang hinihingan lang po namin ng official receipts at ng sales invoice is 'yung purchase of supplies and provision of medical and food aid.*

The Presiding Officer. *Na ginamit sa pagbigay ng reward?*

Ms. Del Campo. *Doon po sa third quarter, hindi na siya reward, naka-reflect na siya as supplies.*

The Presiding Officer. *Ah, as supply na?*

Ms. Del Campo. *Opo, kaya—doon po. Pero 'yung sa rental of safehouse, in-accept namin 'yung acknowledgment receipt.*

The Presiding Officer. *So, sa pananaw mo, hindi kailangan maging confidential 'yung binilhan ng supplies?*

Ms. Del Campo. *Kasi po ang confidential—hindi ba po kapag bumibili tayo ng supplies, ng food, ng medicine, standard procedure po 'yung mayroong resibo na matatanggap from the establishment kung saan po natin binili itong mga supplies, food, and medicines?*

The Presiding Officer. *At sa pananaw mo nga, hindi dapat confidential 'yung binilhan?*

Ms. Del Campo. *Iyong pinagbilhan po. Kasi 'yung sa paggagamitan 'yung confidential expenses.*

The Presiding Officer. *Okay. You may proceed, Counsel.*

Ms. Ferrer. *Okay. So, sige ibahin na lang po natin, gawin nating supplies. Halimbawa, pagkain, supplier ng pagkain, ano?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. *Okay. Ano ho 'yung puwedeng tanggalin doon? Let's say, the supplier's name, let's say, ABC Catering, puwedeng tanggalin?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. *Okay, tanggalin natin, 'no?*

Iyong location ho, 'yung business address po ni ABC Catering. Let's say, Ground Floor Multinational Bank Corporation Center, 6805 Ayala Avenue, Makati City, puwedeng tanggalin?

Ms. Del Campo. *Hindi naman po confidential 'yung mismong establishment na nagkuwan noon. Ang pinaka ... dito, pinaggamitan. And doon po sa resibo na iyon, hindi naman po siya confidential information.*

Ms. Ferrer. *Just answer the question.*

Ms. Kapunan. *Asked and answered, Your Honor.*

Ms. Ferrer. *Hindi ho puwedeng—puwedeng hindi tanggalin 'yung address ng supplier ng pagkain?*

Ms. Kapunan. *Asked and answered, Your Honor.*

The Presiding Officer. *Asked and answered.*

Ms. Ferrer. *Not yet, Your Honor. Not yet.*

The Presiding Officer. *Counsel, asked and answered because she said—*

Ms. Kapunan. *It's asked and answered.*

Ms. Ferrer. *So, ang answer n'yo ho doon ay hindi?*

The Presiding Officer. *Counsels, please. She said that when it pertains to the purchase of supplies, food, medicines, chairs, if at all computers, the name of the entity where they purchased it is not confidential. Pero kung saan ginamit iyon, kung sino ang pinagbigyan, sino ang pinakain, saan pinakain, iyon 'yung confidential. Tama ba, Xylene?*

Ms. Del Campo. *Opo, tama po.*

The Presiding Officer. *So, 'yung invoice o resibo ng pagkain, medical supplies—ng supplies, kailangan may resibo. Iyon ang interpretasyon mo ng joint circular?*

Ms. Del Campo. *Opo, para ma-ascertain namin na talagang ginamit iyon for purchases of supplies, food, and medicines po.*

The Presiding Officer. *So, sa bagay na ito, uulitin ko, sa pananaw mo, sa interpretasyon mo, sa ginamit mong pag-audit, kapagka supplies, hindi ka tatanggap ng other adequate document; resibo talaga hahanapin mo.*

Ms. Del Campo. *Opo, para mapatunayan na pinambili po talaga ito noong supplies.*

The Presiding Officer. And this is the same standard you're applying to other government agencies, not only the OVP and the DepEd?

Ms. Del Campo. *Opo.*

The Presiding Officer. You may proceed, Counsel.

Ms. Ferrer. Okay. So, *sinabi—pagkain ho 'yung example natin, 'no? So, sino ho ba dapat ang may alam kung confidential dapat ang information? Si COA ho ba o si agency? Who is in a better position to know whether an information is confidential?*

Ms. Del Campo. *Puwede pong pakiulit 'yung tanong?*

Ms. Ferrer. Okay.

Ms. Kapunan. Question is vague, Your Honor.

Ms. Ferrer. *Sige, okay. Example pagkain, 'no? Pagkain. Okay. Kung kami ho agency, sa tingin namin dapat confidential 'yung supplier namin kasi baka lasunin. Baka may matunton, 'no? Matutunton 'yung supplier namin. Tapos tinanggal namin 'yung address. Tinanggal namin 'yung address, tinanggal namin 'yung ibang details doon. Sinabmit (submit) namin sa COA. Acceptable pa rin ho ba sa COA iyon?*

Ms. Del Campo. *Hindi naman po confidential 'yung mismong supplier.*

Ms. Ferrer. *Sa inyo ho. Pero kung sa—*

Ms. Kapunan. Asked and answered, Your Honor.

Ms. Ferrer. Okay.

Ms. Kapunan. *Hindi naman confidential iyon.*

The Presiding Officer. Asked and answered. Don't argue with the witness, Counsel.

Ms. Ferrer. Okay. Yes, Your Honor. So, *sa tingin n'yo hindi confidential iyon, pero maaaring sa agency, confidential ho iyon para sa kanila.*

Ms. Kapunan. Argumentative, Your Honor. Asked and answered. It is not confidential.

The Presiding Officer. Move on to the next point, Counsel.

Ms. Ferrer. Your Honor, I'm asking for possibility, Your Honor.

Ms. Kapunan. There is already a ruling from the Presiding Officer.

The Presiding Officer. Move to the next point, Counsel.

Ms. Ferrer. Okay. So, in short, *kayo ho 'yung nagde-decide ngayon kung ano ho 'yung confidential na information at hindi? Kasi sinabi n'yo ho, sa tingin n'yo hindi naman siya confidential.*

Ms. Kapunan. Misleading, Your Honor.

Ms. Ferrer. *Hindi ho—*

The Presiding Officer. Witness may answer.

Ms. Ferrer. Yes.

Ms. Del Campo. *Kasi nga po 'yung pinaggamitan, hindi naman po 'yung nag-provide.*

Ms. Ferrer. Okay. So, okay *lang na ma-expose 'yung supplier sa instance na iyon, 'no?* Okay *lang na mailagay 'yung address ni ABC supplier.*

Ms. Kapunan. Your Honor, please. Again, this is already argumentative.

The Presiding Officer. Asked and answered, Counsel, and argumentative.

Ms. Kapunan. Asked and answered.

Ms. Ferrer. Yes, we take—

Ms. Kapunan. There is nothing confidential about where you buy supplies.

The Presiding Officer. Asked and answered, Counsel...

Ms. Kapunan. Your Honor, please, this line of questioning—

The Presiding Officer. ...whether you agree with that, with the answer of Xylene, that was the answer she gave.

Ms. Kapunan. Continuing objection, Your Honor, if it will apply again to medicines, if it will apply again to supplies, chairs, and tables. We will have a continuing objection to this line of questioning, Your Honor.

The Presiding Officer. We're not yet there, Counsel.

Ms. Ferrer. Okay.

The Presiding Officer. Attorney Kristine, you may proceed.

Ms. Ferrer. Yes *po*, Your Honor. Thank you *po*.

So, you are saying the COA is in a better position to judge whether an information is confidential or not. *Wala hong karapatan si agency?*

Ms. Kapunan. Argumentative, Your Honor.

Ms. Ferrer. With regard to the food, Your Honor, we are on the example of the supplier of food. Okay. *Sa instance ho na iyan, sa tingin n'yo ho, hindi ho siya confidential, hindi ba ho?* So, *kayo ho 'yung mas nakakaalam na ito mas*—you are in a better judgment *sa bagay ho na iyan?*

Ms. Del Campo. *Kasi po doon sa food po, 'yung tao na—'yung tao mismo na bumili, iyon 'yung confidential. Ganoon po. Hindi po 'yung—*

Ms. Ferrer. *Hindi ho iyan 'yung tanong ko eh.*

Ms. Kapunan. The question is vague, Your Honor.

Ms. Ferrer. *Iyong tanong—*

Ms. Kapunan. Your Honor please, the question is vague.

The Presiding Officer. Xylene, *ang tanong sa iyo ay may karapatan ba iyang ahensiya magsabi na ito confidential? Kayo lang ba ang may karapatan? Kasi, I can actually answer. Tell me if you agree. You review the submissions of the agencies, correct?*

Ms. Del Campo. *Opo.*

The Presiding Officer. *'Pag may observation kayo, mag-e-AOM kayo, and they can say, "Ah, hindi, confidential ito." And then you can agree or disagree, correct?*

Ms. Del Campo. Based on the evaluation *po noong magiging response nila.*

The Presiding Officer. And given the difference in the Notice of Suspension and Notice of Disallowance, as pointed out by Counsel earlier *na may mga tinanggal na kayo, may mga binawas kayo, hindi ba?*

Ms. Del Campo. *Opo.*

The Presiding Officer. *Kasi napaliwanag nila.*

Ms. Del Campo. *Opo.*

The Presiding Officer. *So, minsan sinasabi n'yo sa unang tingin mo, hindi confidential ito. Biglang nagpaliwanag sila, confidential iyon. Binawas n'yo o binabawas n'yo?*

Ms. Del Campo. *Opo, base po sa evaluation noong response nila kung na-answer na po nila 'yung issues raised doon sa AOM or sa—*

The Presiding Officer. *Na-answer or napaliwanag nila or nakumbinsi kayo na confidential ito. Therefore, hindi kailangan ng resibo o invoice.*

Ms. Del Campo. *Opo.*

The Presiding Officer. *Tama?*

Ms. Del Campo. *Opo.*

The Presiding Officer. But your determination is anyway appealable if, at all, to the Supreme Court. The Commission or the Supreme Court.

Ms. Del Campo. *'Pag 'yung sa COA po, opo. 'Pag may decision, may remedy pa po na umakyat sa Supreme Court.*

The Presiding Officer. Yes, okay. Counsel, move on.

Ms. Ferrer. *So, in short, sa sagot mo na iyan, ibig sabihin, kayo ho talaga 'yung nagde-determine na ito, hindi dapat ito confidential kasi nga, kagaya noong supplies, medicine, and food. Iyon po 'yung naging basis n'yo ng ND n'yo, hindi ba po?*

Ms. Kapunan. Your Honor, please, I think this was the question itself of the Presiding Officer, asked and answered.

The Presiding Officer. Already answered, Counsel.

Ms. Ferrer. Yes, the answer is—we want to put it on record, Your Honor, the answer.

Ms. Kapunan. Asked and answered, Your Honor.

The Presiding Officer. Already answered. She agrees, Counsel.

Ms. Ferrer. She agrees. So—

Ms. Kapunan. She already agrees.

Ms. Ferrer. Okay, I will move on, Your Honor.

Ms. Kapunan. Can we move on, Your Honor?

Ms. Ferrer. Now, Ms. Xylene, who determines the safeguard to be implemented in order to secure the success of an agency's confidential operations? Part *ba ho iyon ng audit n'yo na kung ano 'yung mga hindi dapat dina-divulge or dina-divulge ng agency? Part ho ba ng COA-ICFAO audit iyon?* With regard to their confidential operations.

Ms. Kapunan. Your Honor, again, this is asked and answered.

Ms. Ferrer. No, Your Honor. I object, Your Honor.

Ms. Kapunan. By rephrasing the question—Your Honor, by rephrasing the question—

Ms. Ferrer. This is a different question, Your Honor.

The Presiding Officer. Kindly wait for Counsel for the Prosecutors.

Yes, Attorney Kapunan.

Ms. Kapunan. Your Honor, these are the same questions rephrased differently, Your Honor. Asked and answered.

Ms. Ferrer. It is not, Your Honor. *Kasi nga kanina*, who determines whether—

The Presiding Officer. The Court will allow it.

Attorney Xylene, please answer.

Ms. Del Campo. *Puwede pong pakiulit 'yung tanong?*

Ms. Ferrer. Okay, *uulitin ko po, ah.* Who determines—*sino ho ba 'yung nagde-determine kung ano ho dapat 'yung mga safeguards, mga panuntunan na i-implement dapat ng agency para ma-secure po 'yung success ng confidential operations?* In short, *sino ho dapat 'yung nagde-determine na itong information na ito, confidential; ito, hindi?*

Ms. Del Campo. *Iyon po is—dapat po sa agency mayroon silang sound and effective internal control.*

Ms. Ferrer. Okay, so *salamat po.* So, *sa agency na iyon, sa agency dapat.* And si COA-ICFAO merely audits liquidation documents relative to the confidential funds, *tama po ba?*

Ms. Del Campo. *We base po sa liquidation documents submitted at based po sa joint circular 'yung pag-evaluate namin per liquidation document submitted.*

Ms. Ferrer. Yes, okay. Thank you for that. So, *si COA-ICFAO, in that sense, you do not determine which information is confidential or not, correct? Kasi nagbe-base lang naman ho kayo sa liquidation documents.*

Ms. Del Campo. *We base our audit po sa liquidation documents submitted to us. We rely po doon sa pag-conduct ng audit.*

Ms. Ferrer. *Salamat po.* Now, *si COA-ICFAO po ba ay privy sa confidential operations ng agency? Kasali ho ba kayo doon sa mga confidential operations po ng OVP, for example?*

Ms. Del Campo. *We base lang po our audit doon sa liquidation documents submitted to us.*

Ms. Ferrer. So, in short, just answer the question, *kasali ho ba kayo sa confidential operations ng OVP?*

Ms. Kapunan. Answered, Your Honor. They based it on the documents.

Ms. Ferrer. *Wala hong* answer, Your Honor.

The Presiding Officer. She did not answer, Counsel.

Ms. Ferrer. She did not answer yes or no *na—*

Ms. Kapunan. Based on the documents.

The Presiding Officer. Xylene, just answer it. *Hindi kayo kasama, hindi ba?*

Ms. Del Campo. *Hindi po.* Base lang po kami sa documents.

The Presiding Officer. So just say that *hindi kayo kasama.*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Salamat po, Your Honor.* It is 12:16, Your Honor. Do you want to—Okay lang po ako. I can continue.

The Presiding Officer. Thank you for pointing that out, Counsel.

Ms. Ferrer. Okay. *Kasi po next point na lang po ito, ano.*

The Presiding Officer. Because my colleagues have been asking—

Ms. Kapunan. Your Honor, may we know if the cross-examination will take another two hours, three hours?

Ms. Ferrer. More likely, Your Honor, this is —

The Presiding Officer. Let's see. But we cannot compel, neither can we force or pressure, Counsel to limit her cross-examination. She has enough leeway to test the credibility of the witness. We shall take a lunch break and shall resume at 1:00 p.m. with the cross-examination of Xylene, thereafter the interventions of the Senator-Judges. The first to register is Senator-Judge Padilla, thereafter Senator-Judge Hontiveros. Kindly take note of the sequence.

SUSPENSION OF TRIAL

With the permission of the Court, the trial was suspended.

It was 12:17 p.m.

RESUMPTION OF TRIAL

At 1:02 p.m., the trial was resumed.

MANIFESTATION OF COUNSEL FOR THE RESPONDENT

Attorney Ferrer requested that the Court remind the Counsel for the Panel of Prosecutors to refrain from making side comments such as "I was about to spank her" or "I was about to lecture her," stressing that such remarks have no place in the courtroom and that all counsels, being lawyers and professionals, should respect one another.

The Presiding Officer acknowledged the request and noted that Attorney Kapunan had already withdrawn the statement earlier. Attorney Kapunan added that the records would reflect her assurance to conduct herself appropriately.

CROSS-EXAMINATION OF THE WITNESS

(Continuation)

Attorney Ferrer continued her cross-examination of the witness, as follows:

Ms. Ferrer. Hello, Xylene.

Ms. Del Campo. Good afternoon *po*.

Ms. Ferrer. I hope you're fine.

Ms. Del Campo. *Opo*.

Ms. Ferrer. Okay *ka pa naman*, 'no? So, let's go to the liquidation of confidential funds. That is under Section 6.2.3 of the JC.

Ms. Del Campo. *Puwede pong—*

Ms. Ferrer. Yes, I will ask my counsel to give you a copy of the JC, please.

The Presiding Officer. Assisting counsel may approach, assisting counsel for the prosecutors may likewise approach to view the document.

Ms. Ferrer. Kindly peruse the JC under 6.2.3.

Ms. Del Campo. *Opo*.

Ms. Ferrer. Okay. That provision enumerates the liquidation documents that should be submitted to the ICFAO, right?

Ms. Del Campo. *Opo, tama po*.

Ms. Ferrer. Okay. First is liquidation report, correct?

Ms. Del Campo. *Opo*.

Ms. Ferrer. Next, certified copy of the check and paid DV or disbursement voucher of the cash advance drawn for the CF being liquidated, signed and/or approved by the head of office, with certification by the agency accountant, stamped and printed on the DV. Is that correct?

Ms. Del Campo. *Opo, tama po*.

Ms. Ferrer. Okay. And No. 3, documentary evidence of payments and certification from the HOA, and there is a format for that under Annex B of the JC, correct?

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Then physical and financial plan.

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. And then certified copy of accomplishment report and its proof of submission to the Office of the President, the Senate President, and House Speaker. Is that correct?

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. And then copy of the transmittal letter of the DV and supporting documents pertaining to the cash advance being liquidated, *tapos iyan ay may receiving copy ng COA audit team leader.*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. So, *lahat naman ho iyan*, based *sa inyong audit*, *na-submit ho iyan ng Office of the Vice President for the fourth quarter of 2022 as well as the first to third quarters of 2023.*

Ms. Del Campo. *Opo.*

Ms. Ferrer. *Na-submit din ho iyan* when it comes to the liquidation of confidential funds of the DepEd for the first to third quarter of 2023.

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. Thank you po. So precisely *nga iyon nga iyong nag-come up ho kayo—nag-come up ho kayo ng audit findings ninyo* in the form of the notices of disallowance.

Ms. Del Campo. *Opo, doon na po ako pumasok sa notices of disallowance.*

Ms. Ferrer. Okay. So can we go back to the second ND? Ralph, can you please give a copy to the witness? That is dated March 1, 2026.

The Presiding Officer. I think it's 31.

Ms. Ferrer. Ah, 31, Your Honor. I stand corrected. March 31, 2026.

Okay, do we have that copy already? Let's go to paragraph 2, Xylene. Paragraph 2, it says there, "Based on the results of our evaluation with due consideration to subsequent information given under oath during the hearing of the Committee on Good Government and Public Accountability of the House of Representatives, the amount of 375 million is hereby disallowed in audit." *Nakita ninyo ho ba iyan?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. So I am just curious, Xylene, isn't it that the audit of confidential expenses be based on the liquidation documents submitted by the agency?

Ms. Del Campo. *Puwede rin po kaming mag-rely sa available information po.*

Ms. Ferrer. *Mag-rely sa available information?*

Ms. Del Campo. Yes po. And *iyong information po na ito is galing doon sa Committee on Good Government and Public Accountability.*

Ms. Ferrer. Ah, yes. I just cited that. I will propound questions later. But *nakalagay ho ba sa JC na puwede kayong mag-rely specifically doon sa committee hearing na ginawa ng CGGPA (Committee on Good Government and Public Accountability)?*

Ms. Del Campo. *Puwede po siyang pumasok doon sa 6.2.3.7 na other supporting documents or necessary for the audit. Doon po siya papasok.*

Ms. Ferrer. *Doon siya papasok sa other supporting documents?*

Ms. Del Campo. *Opo, kasi parang additional information po.*

Ms. Ferrer. Ah, okay. But isn't that a hearing *na wala namang—ano ba iyong documents na nanggagaling doon?* Anyway, I'll withdraw my question.

Pero naalala mo iyong nag-testify dito si Wamil? Si COA Auditor Wamil. Naalala mo iyon, the day before you testified?

Ms. Del Campo. *Opo, nag-testify po siya. Pero ano pong—*

Ms. Ferrer. Okay. I am about to ask you a question. So *noong* August 5, 2026, *nag-testify* si Attorney Wamil and he was asked by the good Senator Erwin Tulfo. Okay, and the good Senator said—*nasa ano po iyan, Journal—*"But I am saying every agency *na mayroon pong intel or confidential fund*, do they have to undergo audit periodically or random *lang?* *Dahil marami po tayong ahensiya ng gobyerno na may intelligence/ confidential fund na hindi naman dapat.*"

And Attorney Wamil said, "*Ang audit po namin ay based doon sa liquidation documents na sinubmit (submit) po nila.*"

So would you agree with me that the TSNs that form part of the CGGPA hearings were not part of the liquidation documents that were submitted by the OVP?

Ms. Del Campo. *Hindi po siya naging part ng submission pero—*

Ms. Ferrer. *Okay lang. Okay na iyon.* You can answer me with "yes" or "no." So *hindi ho part iyon sa liquidation documents ng OVP?*

Ms. Kapunan. Your Honor, this question is misleading. This witness never testified that it is part of the submissions or documents submitted by the OVP or DepEd by way of liquidation of confidential funds. She never testified that.

The Presiding Officer. I think counsel is quoting paragraph 2 of the notice of disqualification that they took into account based on the results—with due consideration, they took into consideration the Committee on Good Government and Public Accountability report.

Witness may answer.

Ms. Del Campo. Thank you, Your Honor. *Puwede pong pakiulit iyong tanong?*

Ms. Ferrer. *Sige. Agree ho ba kayo na iyong mga transcript of stenographic notes doon sa CGGPA hearing, Committee on Good Government and Public Accountability, hindi po kasama doon sa liquidation documents na sinubmit (submit) po ng OVP, Office of the Vice President?*

Ms. Del Campo. *Hindi po kasama sa submission.*

Ms. Ferrer. Okay, *salamat po. Hindi din po kasama doon sa sinubmit na liquidation documents po ng DepEd?*

Ms. Del Campo. *Hindi din po.*

Ms. Ferrer. Okay. Thank you.

Let's go back to the notice of disallowance, please. Can we go to the opening statement? *Iyong "We have audited the submitted liquidation reports." Nakita ninyo ho iyan?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So that opening statement says: "We have audited the submitted liquidation reports and its supporting documents for the cash advances of confidential fund of the OVP for the period February 6 to 30 of the calendar year 2023 as detailed below." I am reading it right?

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So based *dito*, *iyong audit ninyo* are based *lang doon sa submitted documents.*

Ms. Del Campo. *Opo, based po doon sa submitted documents.*

Ms. Ferrer. Okay. Thank you. Now, *doon po tayo sa ND. May nakalagay*—you can go over *ho, may nakalagay ho ba na word iyan na “misuse of funds”?* Ground *po ba iyon ng* disallowance? If you go over the ND.

Ms. Del Campo. *Wala po dito iyang word na “misuse” pero* during the—

Ms. Ferrer. I'll ask you later if I have questions on that. Okay, thank you. So *wala ho doon.* How about the word “corruption”? *Mayroon ho ba?*

Ms. Del Campo. Based *po dito sa* wordings *ng ND, walang nakalagay po.*

Ms. Ferrer. *Wala, okay.* How about “misappropriation”? *May nakalagay ho ba diyan?*

Ms. Del Campo. *Iyang mismong word po na iyon wala rito pero,* Mr. Presiding—

Ms. Kapunan. Your Honor, please.

Ms. Ferrer. *Iyon lang ho iyang tanong ko.*

The Presiding Officer. Kindly just answer the question, Ms. Xylene so that we can move forward faster. *Kung ano lang po iyang tanong.* Opposing counsel will have her chance at redirect.

Ms. Del Campo. Okay *po.* Thank you *po.*

Ms. Ferrer. Okay. So *doon tayo sa* acknowledgment receipts. Earlier, you testified that you reviewed the acknowledgment receipts, which form part of the liquidation documents *ng OVP at saka ng DepEd.*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. In fact, *nag-come up kayo noong* summary.

Ms. Del Campo. Yes *po,* during my evaluation *tinabyuleyt* (tabulate) *ko po iyang* acknowledgment receipts.

Ms. Ferrer. Okay. And you have reviewed 1,823 ARs for the OVP. *Tama ba iyang number na iyon?*

Ms. Del Campo. *Ang pagkakatanda ko po is hindi ko makukuwan iyang total pero ...*

Ms. Ferrer. *Pero* more or less *ganoon.*

Ms. Del Campo. ... 519 *sa* first, 530 and 774 *sa* third quarter.

The Presiding Officer. The Court will confirm 1,823 as manifested by the Counsel for the Panel of Prosecutors.

Ms. Ferrer. Okay. And for the DepEd, it's 1,824?

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. For a total of 3,647 ARs?

Ms. Del Campo. Yes *po,* for the 2023 *po ng* both OVP and DepEd.

Ms. Ferrer. Yes. I'm about to ask that— that pertains to the first three quarters of those two agencies. Correct?

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Now, of course, in identifying the ARs, *kahapon* you provided schedules.

Ms. Del Campo. *Iyang* tabulation *ko po.*

Ms. Ferrer. We will be showing these schedules, Your Honor, to the witness.

The Presiding Officer. When you say schedule, Counsel, you mean, dates.

Ms. Ferrer. The summary, the summaries, Your Honor, that they provided to us yesterday.

The Presiding Officer. With the dates.

Ms. Kapunan. They are not schedules, Your Honor.

Ms. Ferrer. Summaries. I stand corrected.

The Presiding Officer. Tables and summaries.

Ms. Kapunan. Their tabulations, Your Honor, there are two.

The Presiding Officer. Yes, tables and summaries.

Ms. Kapunan. Just to clarify, Honorable Presiding Officer.

The Presiding Officer. Yes, Attorney Kapunan.

Ms. Kapunan. The documents presented by this witness are of two natures: One is a tabulation, which is marked; and the other is a summary, the summary of the tabulations, Your Honor. Separately marked, Your Honor.

The Presiding Officer. Marked as dash (-) I ...

Ms. Kapunan. So, what is counsel referring to? The summary? The tabulation—or the tabulations?

Ms. Ferrer. I will be confronting the witness, Attorney Kapunan.

The Presiding Officer. The tabulation, I guess.

Ms. Ferrer. Yes.

The Presiding Officer. Proceed, Counsel.

Ms. Ferrer. Thank you, Your Honor.

So, you have identified this in open court, this summary and tabulations—okay. Okay, for the first quarter, that's February 1 to March 30, 2023—okay. Can you peruse this?

This was marked as Exhibit P-I-33 of the prosecution.

The Presiding Officer. So, that's the tabulation for the first quarter?

Ms. Ferrer. Is that the tabulation that you made for the first quarter of 2023?

Ms. Del Campo. *Opo, ito po iyong tabulation for the first quarter of 2023 ng DepEd.*

Ms. Ferrer. Okay, thank you. So, in this tabulation, you provided the date, the document, the particulars and the amount. *Tama?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. But you did not provide the place of payment.

Ms. Del Campo. *Wala pong—ang nilagay ko lang po, hanggang diyan.*

Ms. Ferrer. *Hanggang dito lang?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Importante ho ba iyong place of payment sa findings ng COA- ICFAO?*

Ms. Del Campo. *Ah, hindi po namin isinama iyon sa findings po namin.*

Ms. Ferrer. Okay, *hindi na ninyo isinama sa findings ninyo.* Such that, *kung may disbursements on the same date, and they occurred in different places, hindi na covered iyon ng findings ng COA-ICFAO?*

Ms. Del Campo. Because we presume regularity *po dahil doon sa certification na—certification under oath ng SDO that it was for confidential operations, and it is necessary, and for legal purposes po.*

Ms. Ferrer. Okay, thank you. Okay. I'm showing you another set of—do you call this summary or schedule?

Ms. Del Campo. Tabulation.



The Presiding Officer. Table.

Ms. Ferrer. Okay, tabulation. This was marked as your Exhibit P-I-32.

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. This tabulation pertains to? You're the one who—

Ms. Del Campo. Ah, this is *kuwan po* for OVP for the third quarter of 2023 *po*.

Ms. Ferrer. Okay. *Hindi rin nakalagay iyong lugar na*—place of payment in each of the tabulations that you made?

Ms. Del Campo. *Iyong mga acknowledgment receipts po kasi sa OVP, walang nakalagay na address.*

Ms. Ferrer. *Hindi*, I'm asking you—

Ms. Kapunan. Asked and answered, Your Honor.

Ms. Ferrer. *Hindi*, I'm asking her, Your Honor...

Ms. Kapunan. That is the answer.

Ms. Ferrer. ... and confirming *na wala ditong nakalagay na* place of payment.

Ms. Del Campo. *Opo, wala po. Wala po sa doc—*

Ms. Ferrer. Okay, walang nakalagay? Okay, thank you. And—sorry—I'll go back to this document, '*no. Wala din siyang pirma at pangalan mo?*

Ms. Del Campo. *Kasi po working paper ko lang po iyan.*

Ms. Ferrer. Working paper *mo ito?* Okay. *Wala din siyang heading?*

Ms. Del Campo. *Opo, hindi na po nailagay dito sa part na ito.*

Ms. Ferrer. *Hindi na nailagay. Hindi ka nalilito?*

Ms. Del Campo. *Kasi po iyong dates po* is pertaining to the third quarter.

Ms. Ferrer. Okay. All right. *Wala ding pirma, 'no, kasi nga working paper mo?*

Ms. Kapunan. Asked and answered, Your Honor.

The Presiding Officer. Asked and answered.

Ms. Kapunan. These are working papers, no signature needed.

The Presiding Officer. Asked and answered. Move on, Counsel.

Ms. Ferrer. Your Honor, please, the lawyer is—Counsel is answering for the witness.

Ms. Kapunan. Asked and answered.

Ms. Ferrer. I was asking for the signature.

Ms. Kapunan. Your Honor, please.

The Presiding Officer. Attorney Lorna, it's okay. Asked and answered. Counsel, move on. She already answered that it's her working paper and, therefore, did not sign it.

Ms. Ferrer. Okay, I'll move on. Yes, Your Honor.

Of course, *ito rin, 'no*, this one, this schedule P-I-34. *Kasi hindi ko ma-identify kung anong schedule ho iyan. Pakisabi ho.*

Ms. Kapunan. Again, Your Honor, it is a summary.

Ms. Del Campo. *Iyong may mga nakalagay po na* counterinsurgency, abuse protection—abuse prevention and control within schools, anti-illegal operations, at anti-extremism, it's for the Department of Education *po*.

Ms. Ferrer. Okay, pero—okay. Of course, it did not say the Department of Education.

Ms. Del Campo. *Opo, pero iyon po iyong ...*

Ms. Ferrer. Okay. Okay, *iyon iyon.*

Ms. Del Campo. ... *pine-pertain niya.*

Ms. Ferrer. Okay, *sige.*

And then, *itong P-I-35, ano ho ito? Kasi, nakalagay ho, "Counterinsurgency Programs, July 12 to September 30, 2023."*

Ms. Del Campo. *Ito po* is for the Department of Education for the third quarter *po ng* 2023.

Ms. Ferrer. Okay. So, *hindi nakalagay iyong* Department of Education *dito.*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Kasi nga working paper mo lang.*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Ito namang sa OVP, April 25 to June 30, 2023. Date of receipt of check — April 24, 2023.*

Now, by reading it, I don't seem to understand what this means. So, *ano—ano ho ito?*

Ms. Del Campo. *Ito po iyong summary ng tabulation po ng* Office of the Vice President, acknowledgment receipt for the period April 25 to June 30, 2023. *Dito po kasi, kaya ito naka-open and close parentheses na date of check April 24, kasi ito po iyong pagbe-base-an ko. Kasi iyong sa circular po, bawal ang reimbursement. So, guide ko po siya.*

Ms. Ferrer. Okay, *sige.* Thank you. So, anyway, you made the caption this way *kasi nga working paper mo lang, ikaw—naiintindihan mo naman siya.*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. *Wala ding lugar iyong place of payment na nilagay mo dito?*

Ms. Del Campo. *Opo, wala din po diyan at saka wala rin pong nakalagay sa mismong acknowledgment—*

Ms. Ferrer. *Hindi, ang dami nito, ano. So—I'm asking, ito mismong sa schedule na ito, walang nakalagay na lugar.*

Ms. Kapunan. Your Honor, please, if I may?

The Presiding Officer. Yes, Counsel.

Ms. Kapunan. Your Honor, please, I think this witness already answered and was stopped mid-sentence. She said, "*Walang nakalagay na lugar kasi wala naman nakalagay na lugar sa dokumentong sinubmit (submit) ng—*".

The Presiding Officer. Only for that particular one, Counsel.

Ms. Kapunan. Yes, Your Honor.

The Presiding Officer. Not for all. But I think I saw the documents, Counsel. All of the tabulations of the witness Xylene for all the quarters in 2023 for both DepEd and OVP do not contain either names...

Ms. Kapunan. Yes.

The Presiding Officer. ... nor places in the acknowledgment receipt.

Ms. Del Campo. Yes.

The Presiding Officer. Correct, Ma'am Xylene?

Ms. Del Campo. *Opo, wala pong nakalagay doon sa mismong tabulation ko.*

The Presiding Officer. None. It only contains the date, the activity, and the amount.

Ms. Del Campo. Yes *po* at saka *iyong—kung ano iyong* document, acknowledgment receipt.

The Presiding Officer. Yes, the nature of the document.

Ms. Del Campo. *Opo.*

The Presiding Officer. But again, no name, whether it's an alias or a real name, and no address.

Ms. Del Campo. *Opo, tama po.*

The Presiding Officer. Okay.

Ms. Ferrer. I'll continue, Your Honor, at the podium.

Okay. I'll continue with my questions.

Now, the ICFAO confines its audit on the face of the acknowledgment receipts, correct?

Ms. Del Campo. Yes, *po.*

Ms. Ferrer. Okay. That is to determine whether the AR supports the disbursements under audit. *Tama po?*

Ms. Del Campo. Yes *po*, ang *tsini-check po namin is iyong* acknowledgment receipt, *sinusuportahan ba niya iyong* activities sa accomplishment report.

Ms. Ferrer. Okay. Okay. In fact, *ano, si* Attorney Wamil, if you know, he confirmed on August 3, 2026 hearing that the ICFAO does not verify the identities of the payees reflected in the ARs. Are you aware of that?

Ms. Del Campo. We base *po* on the face of the document *po.*

Ms. Ferrer. Okay. In fact, when he was asked by the good Senator Erwin Tulfo on August 5, okay, about aliases, this is what he said—Attorney Wamil. This can be found in the *Journal*.

So, Senator Erwin Tulfo, "So if this is not allowed or prohibited, I mean, *bakit nang i-audit po ninyo ang confidential intelligence fund po ng OVP hindi ba ninyo—hindi ninyo hiningi ang tunay na pagkakakilanlan nina Piattos, McDonald's, Mickey Mouse at iba pa?*"

At ang sagot po ni Attorney Wamil, "*Katulad nga po ng sinabi ko sa aking previous testimony, ang focus po ng audit namin ay compliance audit. So, kung ano po iyong provision ng circular, doon lang po iyong— iyon lang po iyong ginagawa naming basis ng audit.*" Do you confirm that?

Ms. Del Campo. Yes *po.*

Ms. Ferrer. Okay.

Ms. Kapunan. Is there a question here?

The Presiding Officer. It was asked and the witness answered, Counsel.

Proceed, Attorney Kristine.

Ms. Ferrer. Asked and answered already. Thank you.

So, your audit is based on the provisions of the JC?

Ms. Kapunan. Asked and answered, Your Honor.

Ms. Ferrer. Okay. Compliance with the provisions of the JC?

Ms. Kapunan. Likewise, asked and answered, Your Honor.

The Presiding Officer. Asked and answered, Counsel.

Ms. Ferrer. Okay. Thank you.

Okay. So, as correctly said by Mr. Wamil, the JC does not mandate that you conduct the identities of the payees reflected in the AR. Do you confirm that?

Ms. Del Campo. *Pwede pong pakiulit?*

Ms. Ferrer. Okay. *Gaya ng sinabi ni Attorney Wamil, you do not conduct a verification of the identities of the payees reflected in the AR?*

Ms. Del Campo. *Opo, hindi po.*

Ms. Ferrer. Okay. *Kasi po kung gagawin ninyo iyan, you will be compelled to go out there and search for the 3,647 payees reflected in the ARs, correct?*

Ms. Del Campo. Can I clarify *po kung naging statement din po iyon ni Mr. Wamil?*

Ms. Ferrer. Okay. *Kasi kung ire-require ho kayo ng—tapos na, nasagot mo na iyong statement kanina.*

Ang next question, kasi ho kung ire-require ho kayo ng JC na isa-isa hong titingnan or ibe-verify iyong identities ng mga payees, recipients po ng AR, lalabas ho kayo doon, you will search for the 3,647 payees reflected in the AR, hindi ba?

Ms. Kapunan. Your Honor, please.

The Presiding Officer. Yes, Counsel.

Ms. Kapunan. Objection, this is speculative.

The Presiding Officer. If the witness knows.

Ms. Xylene, bakit hindi ninyo inaalang kung sino iyong mga totoong pagkakakilanlan ng mga taong nakalagay sa AR?

Ms. Del Campo. Because *po* what we do is compliance audit *po*. We base our audit *sa* documents *lang po*.

The Presiding Officer. Okay.

Ms. Ferrer. Okay. I will follow on that, Your Honor.

Precisely, you did not verify the identities of the three thousand six hundred payees that were reflected in the ARs that you audited?

Ms. Kapunan. Asked and answered, Your Honor.

Ms. Ferrer. *Hindi pa po*, Your Honor.

The Presiding Officer. Actually, Counsel, asked and answered. She said earlier that...

Ms. Kapunan. Based on documents, Your Honor.

The Presiding Officer. ...they presume the regularity. I think that was the answer to that question. They presume the regularity of the document submitted to them.

Ms. Ferrer. Okay. I will accept that, Your Honor. I was actually just adding the number of payees, Your Honor.

The Presiding Officer. Please proceed, Counsel.

Ms. Ferrer. Yes, thank you, Your Honor.

So, punta ho tayo ulit sa JC. May format ho ba iyong JC kung ano ho dapat iyong acknowledgment receipts?

Ms. Del Campo. *Ang nakalagay lang po sa joint circular is documents evidencing payments.*

Ms. Ferrer. No. *Ito po iyong tanong ko, ano? May format po ba iyong joint circular kung ano dapat iyong itsura po ng acknowledgment receipts?*

Ms. Del Campo. *Wala pong format iyong acknowledgment receipts sa joint circular.*

Ms. Ferrer. Okay. Thank you.

So, therefore, *kasi wala hong format iyong joint circular, pwede hong gumawa, may discretion ho iyong agency kung ano po dapat iyong nakalagay doon sa acknowledgment receipt nila?*

Ms. Del Campo. *Basta po makita namin sa dokumento iyong proof of payment doon sa recipients po, iyon po iyong itsine-check namin.*

Ms. Ferrer. Okay. Thank you.

Let's go to the names that were in the ARs.

So, *sabi ho ni* Attorney Wamil *noong* August 5, 2026 hearing, *sabi ho niya*, "The use of aliases is neither allowed nor prohibited in the ARs." The use of aliases in the ARs. Are you aware of that?

Ms. Del Campo. *Kasi po silent po ang joint circular sa alias po.*

Ms. Ferrer. Okay. Thank you. In fact, *kung nakinig ka ho or nakita mo ho sa TV, sinabi ho ng ating* good Senator Bam Aquino *noong* August 5, *sabi ho niya*: "Okay. *Dito naman sa tumanggap*, allowed *ba* *iyong* code names? Allowed *ba* *iyong* alias sa inyo?"

Ang sabi ho ni Attorney Wamil: "Based on the provision, it is neither allowed nor prohibited since silent *po* *iyong* joint circular."

Ms. Del Campo. *Opo, silent po ang joint circular.*

Ms. Ferrer. Okay. Now, do you confirm that the JC does not have a provision on names or aliases?

Ms. Kapunan. Asked and answered, Your Honor.

Ms. Ferrer. Your Honor—

Ms. Kapunan. Your Honor, please, excuse me.

The Presiding Officer. Yes, Counsel, Attorney Kapunan.

Ms. Kapunan. Precisely, this witness was asked if aliases are allowed. She said: "It is neither allowed nor disallowed." So it is silent, Your Honor. Now, she is asking the same question in another fashion.

The Presiding Officer. I will let it go this time for emphasis, Counsel.

But move on to your next point after that, Attorney Kristine.

Ms. Ferrer. Yes, Your Honor.

Do you confirm that the JC does not have provision on names or aliases? *Kasi iyong kanina*, silent *ho* *iyong* *sinabi*. So *wala ho*, *walang* provision on names or aliases.

Ms. Del Campo. *Wala pong nakalagay sa joint circular, as to the alias po.*

Ms. Ferrer. Okay. And this is precisely why the ICFAO has no findings on the alleged use of names or aliases.

Ms. Del Campo. *Opo. Ang mahalaga po kasi is naibigay talaga ito sa totoong tao na for allowable confidential expenses.*

Ms. Ferrer. *Ang tanong ko ho, wala hong finding si ICFAO on the names, on the use of fictitious names or aliases. Nasa Notices of Disallowance po ba iyon?*

Ms. Del Campo. *Wala pong nakalagay sa Notice of Disallowance.*

Ms. Ferrer. *Wala. Okay.*

So I am showing you the first ND, August—that's the August 2024 Notice of Disallowance. Just a run-through, Your Honor.

Okay. *May hawak na po kayo ngayon?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Nakikita ninyo ba ho* *iyong* name *diyan na* Mary Grace Piattos?

Ms. Del Campo. *Wala po.*

Ms. Ferrer. How about Renan Piattos?

Ms. Del Campo. *Wala din po.*

Ms. Ferrer. Andy C. Lim?

Ms. Del Campo. *Wala po.*

Ms. Ferrer. Patty Ting?

Ms. Del Campo. *Wala po.*

Ms. Ferrer. Okay. Thank you. Now, let's go to the second notice of disallowance.

Kindly flash that. That's dated March 31, 2026.

Okay. During your direct examination, the good Counsel flashed on the screen sample ARs showing the following names.

Does she have a copy of the second ND?

Now, I will ask you if the following names are in the second Notice of Disallowance. That's dated March 31, 2026: Pia Piattos-Lim, *mayroon ho ba diyan?*

Ms. Del Campo. *Wala po.*

Ms. Ferrer. Ralph Josh Bacon?

Ms. Del Campo. *Wala din po.*

Ms. Ferrer. Anne Ongpauco?

Ms. Del Campo. *Wala po.*

Ms. Ferrer. Diane Maple Lapid?

Ms. Del Campo. *Wala din po.*

Ms. Ferrer. Miggy Mayo?

Ms. Del Campo. *Wala po.*

Ms. Ferrer. Kokoy Villamin?

Ms. Del Campo. *Wala po.*

Ms. Ferrer. Denise Tanya Escudero?

Ms. Del Campo. *Wala po sa Notice of Disallowance.*

Ms. Ferrer. Kristine Applegate Estrada?

Ms. Del Campo. *Wala din po.*

Ms. Ferrer. Okay. Okay, *so wala ho kayong findings doon, gaya ng sinabi ninyo ho kanina.* Okay.

So may tanong ho ako sa inyo. Kung iyong pangalan ho ba—if the name appears to be funny, does that automatically mean that the name is fictitious? Kasi nga may mga pinlash (flash) po na ARs dito.

Ms. Kapunan. Your Honor, please. The question is misleading. The point of flashing these acknowledgment receipts were not the names. The names were incidental, that the names were funny or "fruit-salady" or names of congressmen or senators, Your Honor, is immaterial. They were flashed because of the manner by which the funds were used for medicines, Your Honor.

Ms. Ferrer. Your Honor—

The Presiding Officer. Counsel, Counsel—

Ms. Ferrer. Counsel is explaining again.

The Presiding Officer. Attorney Kapunan, you have to admit you had fun—You had fun with the names too, when you were using them.

Ms. Kapunan. We had so much fun, Your Honor, but—

The Presiding Officer. Exactly, so let her—

Ms. Ferrer. That's why—

The Presiding Officer. Let her cross the witness based on those and utilize it as well.

Ms. Ferrer. Please, Attorney Kapunan.

Yeah. So *ayun po*, 'no? *Kung nakakatawa ho ba iyong pangalan*, automatic fictitious *na iyon?*

Ms. Kapunan. Your Honor, again, "fictitious"—

The Presiding Officer. Yes, Counsel.

Ms. Kapunan. Just for the record, fictitious is her own conclusion. We have made no such conclusion as regards to the name except, perhaps, that they are funny.

Ms. Ferrer. Your Honor—

The Presiding Officer. Well, Counsel, actually, that is not entirely accurate. Because in the complaint, you did allude to the fact that some of the names are fictitious based on the PSA documents that you attached as an annex to the complaint. Although you're not yet there, you haven't gotten there yet.

Please continue, Attorney Kristine.

Ms. Ferrer. Yes.

The Presiding Officer. Attorney Kapunan, give her her share of fun with the names.

Ms. Kapunan. May I be allowed, Your Honor, to sit down while she's having fun, Your Honor?

The Presiding Officer. Yes, Attorney Kapunan, you may do so.

Attorney Kristine, please proceed.

Ms. Ferrer. Okay, I will continue my question, Your Honor.

If a name appears to be funny, does it mean it's fictitious?

Ms. Del Campo. *Hindi ko po siya masasagot kasi—*

Ms. Ferrer. *Hindi mo siya masasagot*, meaning?

Ms. Del Campo. *Kasi hindi ko—wala po namang—iyong sa name po kasi hindi ko masasagot kung—*

Ms. Ferrer. *Totoo o hindi?*

Ms. Del Campo. *Oo. Opo, tama.*

Ms. Ferrer. Okay. So, in short, *hindi mo masasabi na porke't nakakatawa iyong pangalan eh peke na iyon. Iyon ho ba iyong sinasabi ninyo?*

Ms. Del Campo. *Parang hindi po ako makakasagot doon sa tanong na ganoon.*

Ms. Ferrer. Okay, *basta walang findings na ganoon*, 'no?

The Presiding Officer. To clarify, let me help you a bit, Attorney Kristine.

Wala kayong binanggit tungkol sa mga pangalang nakakatuwa o nakakatawa sa dalawang Notice of Disallowance, Xylene. Wala, hindi ba?

Ms. Del Campo. *Wala po.*

The Presiding Officer. *Wala rin sa anumang AOM binanggit iyon, hindi ba?*

Ms. Del Campo. *Wala din po.*

The Presiding Officer. *Kahit iyong mga lugar kung saan binayaran, wala kayong binanggit sa AOM o sa Notice of Disallowance man.*

Ms. Del Campo. *Opo, wala po.*

The Presiding Officer. Okay. Thank you.

Please proceed, Attorney Kristine.

Ms. Ferrer. Yes. Thank you, Your Honor.

So, now let's go to the CGGPA hearings. Okay. *Nandoon ka ho noong* September 18, 2024, *na hearing sa* CGGPA?

Ms. Del Campo. *Nag-attend po ako ng mga meetings pero hindi ko na po matandaan iyong exact date.*

Ms. Ferrer. Okay. *Ito iyong nandoon si* Attorney Camora. *Hindi ninyo matandaan?*

Ms. Del Campo. *Nag-a-attend po pero hindi ko na matandaan iyong exact date po.*

Ms. Ferrer. Okay. So, in that hearing, are you aware that she was asked by Representative Suansing about the grounds for disallowance under the second Notice of Disallowance? Did you know that?

Ms. Kapunan. Your Honor, please.

Ms. Del Campo. *Puwede po bang—*

Ms. Kapunan. Excuse me.

Ms. Ferrer. Yes, we will flash the TSN. Don't worry, Counsel.

The Presiding Officer. It's okay if you don't recall, Xylene.

Ms. Del Campo. *Hindi ko na po maaalala iyong exact na nangyari.*

Ms. Kapunan. May we just be clarified. Is counsel referring to a September—?

Ms. Del Campo. September 18, 2024 hearing.

The Presiding Officer. Of the Committee on Good Government.

Ms. Ferrer. Okay. Let's flash page 29 of the TSN on that hearing. Pages 29 and 30. Please, tech. Okay *na ho?*

Okay. So, in that hearing, Attorney Camora said: "Yes, Good morning, Madam Chair. As to the 2022 Notice of Disallowance, there were three." *Kasi nga tinanong siya kung ano iyong grounds.*

Then the Chairperson *sabi*: "Ma'am, *pakilakasan po iyong boses ninyo; hindi marinig.*"

"Ms. Camora: Okay, there were three items that are part of the Notice of Disallowance. The first one is non-submission of documents on the payment of rewards; the second one is charging some items that are not compliant under the rules, joint circular; and the third one is non-submission of the revised Accomplishment Report on the OVP to the three regulatory offices, which are the Office of the President, the Senate President, and the Speaker of the House of Representatives. Because they submitted the original one and they made an amendment."

And then Representative Suansing said: "Mr. Chair, if COA ..."

And then the Chairperson said: "Please proceed, Congresswoman Suansing."

"Representative Suansing: May I please be enlightened to explain to us because it seems a little bit technical as to how it was explained by COA. *Kung puwede hong maipaliwanag sa atin* in non-technical terms as to the grounds for disallowance."

"Chairperson: COA, *paki-simplify*. Please explain it in layman's term."

"Ms. Camora: Yes. Basically, the disallowances are because *hindi po nag-submit ng* required documents under the joint circular."

Do you confirm that?

Ms. Del Campo. *Yes po, based po sa document—*

Ms. Ferrer. *Na sinabi niya iyan?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So, okay, let's go to the April 14, 2026 hearing sa COJ, Committee on Justice, *nandoon ho kayo?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay.

Ms. Del Campo. *...pero hindi ko na rin po gaanong maalala iyong specifics.*

Ms. Ferrer. *Sige, okay lang.* We will flash the relevant TSN for that. We are referring to Page 194 of the COJ TSN dated April 14, 2026.

Kindly flash it on the screen—194. Okay. So, in that hearing, Representative De Lima asked Attorney Camora if there is anything in the COA decision dated April 10, 2026, stating the alleged misuse of funds. Okay. Just to lay the basis. *Dito sa hearing na ito, tinanong ho si Attorney Camora na kung may desisyon na ba iyong COA doon sa appeal ni Respondent. Tama ho? Maalala ninyo lang.*

Ms. Del Campo. *Iyon po ba iyong sa—*

Ms. Ferrer. April 14 na hearing.

Ms. Del Campo. *...pero pertaining po ito doon sa fourth Quarter 2022 ng OVP?*

Ms. Ferrer. Yes, *sakto po.*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So *tinanong siya, sinabi niya may desisyon na nga*, dated April 10. And then, Representative De Lima propounded some questions which are found on Page 194 of the TSN. So, *sabi ho ni Representative De Lima, "Mayroon din ho bang nakasabi*, although I know *na sabi nga po... nilinaw po ni... ng ating Chair na let's wait for the copy, iyong talagang official copy of the decision, although you have it already, but we want really iyong pinaka-official, in the sense na nandiyan iyong hard copy..." Attorney Camora said, "Opo."* Representative De Lima, *"...ay natatandaan ninyo ho ba kung sa decision na iyan ay may nakasabi doon na mali talaga iyong paggamit ng mga confidential fund sa OVP at hindi alinsunod sa circular, sa Joint Circular?"* Ms. Camora, said, *"Madam Chair, it's...sandali lang po, ulit."* Then, Representative De Lima, *"Hindi sa mga tamang gamit ng confidential funds, as prescribed under the Joint Circular."* And then, Ms. Camora, said, *"Nakalagay po, "In this case, the accomplishment report on the Utilization of Confidential and Intelligence Funds, the DEPs and the Certification submitted failed to comply with the guidelines and conditions set forth under the Joint Circular po."*

Ms. Kapunan. Your Honor, please.

The Presiding Officer. Yes?

Ms. Kapunan. If I may interject at this moment?

The Presiding Officer. What is the interjection of Atty. Kapunan?

Ms. Kapunan. Your Honor, please. Counsel is reading from transcripts. She is reading from transcripts which we have judicial notice of these transcripts, Your Honor. But she is reading statements of other people. And asking this witness about statements of Camora, about statements of other people, Your Honor, just by her being present there, Your Honor. Now, if that is their intention, then they should present that witness here because that witness can testify on her personal knowledge. You are asking this witness, who was just there, she can state that a meeting actually occurred and she was there. But if you are going to ask her to confirm for what purpose, Your Honor. These transcripts will show the presence of Camora. It will show her presence.

The Presiding Officer. I would like to thank Attorney Kapunan. You did not make an objection, but I would have sustained it.



Attorney Kristine, Counsel for the Respondent, this was one of the warnings of the Presiding Officer, at that time, directed at the Prosecution, actually, when they asked for the Court to take judicial notice of it— not to use the transcripts to read into the record certain things that is not being testified to by a witness that has personal knowledge over it.

If you recall, our interjections in relation to the Lascañas affidavit, this is similar to that. So, unless, you are referring to the witness herself, who testified there, kindly present the witness so that you are reading the statements of, because this is only as to tenor, as to the fact that Camora said this. You can confront the witness through another way, without reading certain statements made, because the opposing Counsel might just do this to you at some point, which I will also not allow, to be fair.

Ms. Kapunan. Thank you, Your Honor.

Ms. Ferrer. Yes, I understand, Your Honor, but the witness already confirmed that she was at the hearing. I am just asking if she remembers that these statements were being made.

The Presiding Officer. It's a way and technique, Counsel.

Ms. Ferrer. Anyway, Your Honor, we will just—

The Presiding Officer. Attorney Kapunan might just do that with the transcripts at some point, which I also will not allow. So—

Ms. Kapunan. No, Your Honor, I will—

Ms. Ferrer. We will just ask the question at the right time, Your Honor.

The Presiding Officer. Kindly do so at the right time and with the right witness, Counsel.

Ms. Kapunan. At the right time? Your Honor, please, at the right time and to the right witness. This is not the right witness, Your Honor.

The Presiding Officer. Yes. Just as the Presiding Officer stated. Move on, Attorney Kristine.

Ms. Ferrer. Okay. *Punta ho tayo sa time frame ng expenditures.* Okay. *Nakalagay ho ba sa JC na may minimum number of days na dapat i-utilize po iyong confidential funds?*

Ms. Del Campo. *Mayroon pong nakalagay sa Joint Circular, hanapin ko lang po dito.*

Doon po sa item 6.1.5, "that cash advances shall be limited to the requirements for three months." Tapos, iyon po, the disbursement voucher—doon po, nasa 6.1.5.

Ms. Ferrer. Okay. *Sige, salamat po.* You're referring to the cash that is being provided by the agency which should be limited only for three months. *Tama?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. *Pero nakalagay ho ba sa JC na sa loob ng three months na iyan dapat i-utilize ninyo, let's say within—Ah, dapat i-utilize ninyo ng hindi iiksi ng sampung araw. Dapat mayroong at least 30 days na utilization. May ganoon ho ba?*

Ms. Del Campo. *Wala pong naka-specify sa Joint Circular.*

Ms. Ferrer. Okay. *Wala pong naka-specify doon.* In fact, the determination of time and speed of utilization is outside the scope of the COA-ICFAO audit, correct?

Ms. Del Campo. *Puwede pong paulit?*

Ms. Ferrer. Okay. *Kung gaano kabilis ginastos iyong pera, hindi na ho sakop iyon ng audit ng ICFAO?*

Ms. Kapunan. Your Honor, please what does Counsel mean by "gaano kabilis"?

The Presiding Officer. Let me do it, Counsel. Is the fact that the respondent spent the last quarter confidential funds in 11 days found in any of your AOMs or notices of disallowance?

Ms. Del Campo. *Nabanggit lang po siya doon sa AOM na binanggit po doon na it was spent in 11 days.*

The Presiding Officer. *Pero walang finding in relation to it violating the memorandum circular?*

Ms. Del Campo. *Wala po. Nakalagay lang po na statement na it was used for 11 days.*

The Presiding Officer. As a statement of fact?

Ms. Del Campo. *Opo.*

The Presiding Officer. Okay. Move on, Counsel.

Ms. Ferrer. Okay. Thank you.

Now, *punta naman tayo doon sa DepEd*, for the first to third quarters of 2023.

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. So, with respect to the DepEd confidential funds, *nasabi ninyo rin kahapon na may credit notice na No. 2024-162 dated August 8, 2024. Tama?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. *Iyong amount noon ay P75 million?*

Ms. Del Campo. *Opo*, for the two quarters.

Ms. Ferrer. Okay. And the credit notice was signed by the Chairperson Gamaliel Cordoba?

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. So, the issuance of credit notice means that the confidential expenses totaling P75 million were already allowed in audit, correct?

Ms. Del Campo. *Opo*, based *po noong naisyu* (issue) *ko iyan.*

Ms. Ferrer. Based *doon sa* credit notice. Okay.

So, *bale, iyong findings ho ni Attorney Wamil—Okay, balik ho tayo doon sa AOM No. 2024-015. Paki-flash ho ulit. Iyong AOM No. 2024-015 dated February 1, covering the first and second quarter of 2023, binalewala na ho iyon ng COA?*

Ms. Del Campo. *Hindi po sa binalewala, pero noong in-evaluate po namin iyong kanilang response, na-comply po iyong requirements ng Joint Circular.*

Ms. Ferrer. *Iyon nga. Kinansel (cancel) na iyon. Kumbaga, hindi na in-adopt ni COA iyon, iyong findings na iyon?*

Ms. Del Campo. *Opo*, kasi nga during the evaluation, *na-comply na iyong mga issues raised sa AOM.*

Ms. Ferrer. Okay. So, *ibig sabihin—can we go to Page 3 of the AOM?*

Iyong Page 3 kasi, nakalagay doon iyong mga Accomplishment Reports. We have observed that there was a lengthy direct examination here on the part of Attorney Wamil. So ito lahat ng nakalagay sa accomplishment reports, itong Counter-Insurgency Program, Abuse Prevention and Control Within Schools, Anti-Illegal Activities Operations, Anti-Extremism/Terrorism Programs—all of the amounts spent here were already allowed in audit?

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. Thank you. As to the third quarter *naman*, pending *pa iyong AOM, hindi ba po?*

Ms. Del Campo. *Opo*, under evaluation and review *pa po iyong response.*

Ms. Ferrer. Okay. So *wala pang* notice of disallowance?

Ms. Del Campo. *Wala pa po kaming nilalabas na any...*

Ms. Ferrer. *Wala? Walang* notice of suspension, of course?

Ms. Del Campo. *Wala pa po.*

Ms. Ferrer. Okay. *Noong* direct examination *ho ni* Attorney Wamil *noong* August 4—I do not know *kung* you were here—he was asked about internal controls of the OVP and DepEd. *At sinabi po niya*, based—which I quote—I will not ask the witness if she heard it, Your Honor, that is my caveat.

Ms. Kapunan. Your Honor, please, again, before Counsel proceeds with this line of questioning, there is only one witness here, Your Honor. There are not two. Attorney Wamil is not here. They had that opportunity to ask these questions from Attorney Wamil.

Now, to ask these questions from this witness about what Attorney Wamil said, Your Honor, I think it is—I was going to say, but I will say it anyway—it's an absolute waste of time of this Honorable Court, Your Honor. To ask these questions, to ask this witness to confirm, "Did you hear what Attorney Wamil said?..."

Ms. Ferrer. No, I will not ask that...

Ms. Kapunan. "...Did you see what he said on TV?" Your Honor, please, you can ask this question directly from this witness. Unless you want to call Attorney Wamil again to the witness stand and ask questions you did not ask before, Your Honor.

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Counsel, the Presiding Officer will allow it because it is part of cross to try to test the credibility of the witness in relation to statements made by a co-worker, or at least former—a co-worker still, who turned over documents to her pertaining to the OVP and the DepEd.

Kindly proceed with your question, because I'm sure the witness will ask you to repeat your question again anyway, Attorney.

Ms. Ferrer. Yes, thank you, Your Honor. Actually, the good Counsel, Attorney Kapunan, is preempting my question. *Wala pa nga ho akong* question.

The Presiding Officer. Kindly ask your question.

Ms. Ferrer. *At sinabi ko hindi dahil narinig niya iyon o hindi, hindi ho iyon iyong* question *ko*.

So, on August 4, *tinanong si* Attorney Wamil about his opinion on the internal controls of the DepEd and the Vice President. Okay. *Ito iyong sinabi ni* Attorney Kapunan, "*Nakita ba natin sa mga dokumento na isinabmit* (submit) *ng Vice President at ng Secretary of DepEd, nakita ba natin iyong mga internal controls?*" *Sabi ni* Attorney Wamil, "*Opo. Since based on the documents po, may deficiencies pa ... na noted, so, it can be inferred,*" *sabi ho niya, "na hindi strong iyong kanilang internal control."*

Now, does the COA-ICFAO evaluate the internal control of an agency?

Ms. Del Campo. *Iyong sa internal control po ng agency, nasa responsibility po kasi ng head of agency to institute internal control po.*

Ms. Ferrer. Okay. So, in short, *anong sagot ninyo doon?* Yes or no *po?* *Sakop ba ng audit ng COA-ICFAO iyong evaluation ng internal control ng OVP?*

Ms. Del Campo. *Ang magiging kuwan lang po namin doon, participation is sa pag-evaluate ng documents. Makikita po kasi iyong—*

Ms. Ferrer. No, just answer—sorry.

Ms. Kapunan. She is answering, Your Honor. Allow her to answer.

The Presiding Officer. I think witness—let the witness answer, Counsel.

Ms. Ferrer. Okay, Your Honor.

Ms. Del Campo. Based *po kasi, hindi ba, doon sa evaluation ng documents, makikita kasi doon na hindi maganda iyong internal control, gaya nga po nang nasabi, kasi hindi naging compliant doon sa Joint Circular po.*

Ms. Ferrer. Okay. But is that finding on internal control, is that something that you can find

in the Notices of Disallowance? *Nakalagay ho ba doon na, "Iyong internal control ninyo mahina, dapat baguhin ninyo kasi hindi kayo nag-comply ng documents? Nakalagay ho ba doon?"*

Ms. Del Campo. *Hindi po siya nakalagay na word pero iyon po iyong nasa recommendation para ma-comply nila iyong documents at sa susunod na— puwede po bang makahiram ng copy ng AOM para lang po may kuwan ako?*

The Presiding Officer. Kindly show notice of disallowance or AOM to Ms. Xylene.

Ms. Ferrer. No, I'm referring to the NDs, Ms. Witness.

The Presiding Officer. The notice of disallowance, Ms. Xylene.

Ms. Ferrer. Yes. Yes, Your Honor.

Ms. Del Campo. *Ano po ba iyong—*

Ms. Ferrer. *Ang tanong ko lang, simple lang ho iyong tanong ko, nandoon ho ba sa findings ninyo? Okay, ikaklaro ko, Your Honor. Nakalagay ho ba doon sa findings ninyo, very specific na ito, na "Uy, OVP, mahina iyong internal control ninyo kaya dini-disallow namin itong expense na ito"?*

Ms. Del Campo. *Hindi po siya nakalagay doon na mahina iyong internal control, pero dahil nga po hindi naging compliant with the Joint Circular, nare-reflect po doon na may kakulangan sa internal control.*

Ms. Ferrer. So, in short, *hindi ho nakalagay doon iyong internal control. Iyon lang ho iyong tanong ko, Ms. Xylene, 'no.*

Okay. *Iyon bang ICFAO nag-conduct ho ba ng fieldwork sa satellite offices ng OVP? Pumunta ho ba kayo doon?*

Ms. Del Campo. Based lang po kami sa documents.

Ms. Ferrer. *Sa dokumento lang talaga, ano? How about sa DepEd? Pumunta ho ba kayo sa tanggapan ng DepEd?*

Ms. Del Campo. *Hindi po, based lang po sa submissions nila na documents.*

Ms. Ferrer. *Siyempre hindi ho kayo—Okay. Ito ha, question lang ho ito, ano. Out of curiosity, nakapag-observe po ba kayo ng confidential operations ng OVP?*

Ms. Del Campo. *Gaya nga po nang nasabi ko, we based lang po sa documents na na-submit sa amin.*

Ms. Ferrer. *Sa document lang po, ano. How about sa DepEd po?*

Ms. Del Campo. *Ganoon din po, based lang po doon sa documents na na-receive namin.*

Ms. Ferrer. Okay. *Salamat. So as mentioned earlier, may dalawang notices na tayo of disallowance. Iyong first notice natin, iyong December 2022, iyong fourth quarter, aware naman ho kayo na na-appeal ho iyon sa commission proper, 'no?*

Ms. Del Campo. Yes po, *na-furnish-an po kami ng petition for review.*

Ms. Ferrer. *Oo, kasi signatory ka doon sa answer na pinayl (file) ng ICFAO?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. All right. And on April 10, the commission proper issued a decision, *tama?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. And then *nag-file ho iyong Respondent doon, si Respondent Vice President, ng motion for reconsideration? Sinabi ninyo kahapon.*

Ms. Del Campo. *Opo, na-furnish-an po ang office namin.*

Ms. Ferrer. Okay. So *iyong motion for reconsideration ngayon pending pa ho iyon? Walang resolution?*

Ms. Del Campo. *Sa pagkakaalam ko po, wala pa po kasi—*

Ms. Ferrer. Go ahead. *Kasi wala ka pang nare-receive na resolution?*

Ms. Del Campo. Usually *po kasi 'pag may decision na fi-furnish-an iyong office namin. Wala pa pong nafi-furnish sa amin.*

Ms. Ferrer. Okay. So, *sa inyo pong palagay, based ho sa inyong karanasan as auditor, the Supreme Court may affirm, modify, or reverse the COA decision?*

Ms. Del Campo. *Puwede pong pakiulit? Hindi po ...*

Ms. Ferrer. Okay, *sige. Base sa inyong karanasan, kasi 12 years na ho kayong auditor, iyong mga ina-appeal pong ganito, halimbawa nag-appeal ho si Respondent Vice President doon sa Supreme Court, puwede hong i-affirm—you know what affirm is—puwede hong i-modify, baguhin, at puwede hong—modify, meaning may pagbabago, at i-reverse, baligtarin iyong COA decision. Iyon po iyong mga posibilidad 'pag nag-appeal ho tayo sa Supreme Court.*

Ms. Kapunan. Your Honor, please, the question is misleading. Counsel is misleading because that is not what the law is. There is no such thing as appeal to the Supreme Court. There is petition for *certiorari* on grave abuse, Your Honor.

The Presiding Officer. The witness may answer, Counsel.

Ms. Ferrer. Yes, I will correct my—I will specify, Your Honor.

The Presiding Officer. We're not dealing with strictly legal matters here. I doubt if she understands the difference between Rules 45 and 65 of the Rules of Court.

Ms. Ferrer. Because the witness is a layman, Your Honor.

The Presiding Officer. If she knows. Whatever you know, Xylene, in relation to the question.

Ms. Del Campo. *Iyong sa pagkakaalam ko lang po, ang pina-file po sa Supreme Court is petition for certiorari.*

Ms. Ferrer. Yes. Okay. *Ang tanong ko doon is, ang maaring maging output or resulta, pwedeng ma-affirm iyon ng Supreme Court, pwedeng ma-modify, at pwedeng i-reverse. Iyon po iyong mga posibilidad, hindi po ba?*

Ms. Kapunan. Your Honor, these are legal remedies.

The Presiding Officer. Witness would not know, Counsel. She's not competent.

Ms. Kapunan. Witness will not know. Incompetent.

The Presiding Officer. Move on, Counsel.

Ms. Ferrer. Okay. I will move on, Your Honor.

So, *punta ho tayo sa second disallowance—Notice of Disallowance. Iyong date po noon, March 31, 2026. Okay. Na-receive ho siya noong April 20, 2026, at sinabi ninyo ho kahapon na may 180 days pa para mag-appeal iyong Respondent*

Ms. Del Campo. Opo.

Ms. Ferrer. ... *at kung sinuman ang nakapangalan doon sa notice na iyon.*

Ms. Del Campo. Opo.

Ms. Ferrer. *At sinabi ninyo ho kahapon na the Respondent is well within the reglementary period to file her appeal.*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. So, in short, *iyong first and second notices na ito, wala pang final and executory dito.*

Ms. Del Campo. *Iyong sa final and executory po na iyon, iyon pong sa—*

Ms. Ferrer. *Hindi.* Okay. *Sige*, I will modify my question.

The Presiding Officer. Rephrase, Counsel.

Ms. Ferrer. Okay. When does a Notice of Disallowance become final and executory?

Ms. Del Campo. *Iyong sa COA-ICFAO po kasi*, once *nag-issue kami ng disallowance*, under the Joint Circular *po*, *kailangan itong i-restore sa books*, so *magiging part ito ng unliquidated cash advance at ang nakalagay po dito is ire-restitute na po iyong amount*.

Ms. Ferrer. Kindly listen to my question, *ha*.

Ms. Kapunan. That's her answer, Your Honor.

Ms. Ferrer. *Hindi.* Ang question *ko ho*, when does the notice of disallowance become final and executory? *Sa iyong—iyong answer mo is based doon sa—?*

Ms. Del Campo. Based *po kasi sa—*

Ms. Ferrer. *Sa ND.* So, *pag-issue ng ND*, final and executory *na iyon?*

Ms. Del Campo. *Hindi po*, may demand to restitute *po*. *Pero iyon nga*, mayroon pang remedy, which is *mag-file po ng appeal sa commission proper*.

Ms. Ferrer. Okay. Isn't it that a notice of disallowance becomes final and executory upon issuance of a notice of finality of decision? Aware *ho kayo niyan*, *kasi nagpa-practice ho kayo sa ICFAO*.

Ms. Del Campo. *Iyong notice of finality of decision po*, *doon—*

Ms. Ferrer. Okay. So, in fact—kindly flash it on the screen, please? That is under item 3.21 of the joint circular, *nakalagay ho*, 'no? If you can go over the item, notice of finality of decision, *nakalagay ho*, a written notification that a decision of the Commission on Audit has become final and executory. Agree *ho ba kayo sa definition na iyan?*

Ms. Del Campo. *Opo*.

Ms. Ferrer. Okay. So, in this case, *wala pa ho tayong nare-receive na notice of finality of decision?*

Ms. Del Campo. *Wala pa po*.

Ms. Ferrer. Okay. *Salamat*. Now, *tinanong ho kayo kahapon* about misappropriation. *Naalala ninyo ho*, under 8.3 ng JC? *Sige*, go ahead, just look for it.

Ms. Del Campo. *Opo*.

Ms. Ferrer. Okay. So, *tinanong ho kayo na—*you were asked as to when does a *prima facie* presumption of misappropriation for personal benefit by an accountable officer arise under section or item 8.3 of the JC? And *ang sagot ninyo ho*, you equated that with failure to liquidate. *Tama ho?*

Ms. Del Campo. *Opo*.

Ms. Ferrer. Okay. *At ang sinabi ninyo ho*, when we say "failure to liquidate," correct me if I am wrong, *sinabi ninyo ho*, when there is submission of incomplete documents. *Iyon ho ang sinabi ninyo kahapon. Tama ho ba iyong pag-intindi ko?*

Ms. Del Campo. *Pwede pong pakiulit?*

Ms. Ferrer. Okay. *Sinabi ho sa inyo kahapon*, *tinanong ho kayo*, when is there failure to liquidate? *Sinabi ninyo ho*, *pag may incomplete submission ng documents*, there is failure to liquidate. *Tama po ba?*

Ms. Del Campo. Can I clarify *po?* *Baka—*

Ms. Ferrer. *Sige*, *uulitin ko na lang ang tanong sa iyo ngayon*. *Kailan ho ba natin masasabi*, under 8.3 ng JC, that there is a failure to liquidate?

Ms. Del Campo. *Kasi po dito sa OVP*, *kapag po kasi iyong notice of disallowance na-issue na*, *babalik siya as part ng unliquidated cash advance ng SDO*.

Ms. Ferrer. Okay. I will stop you there. Sorry. *Kailan ho masasabi na may failure to liquidate? Kahapon ho sinabi ninyo "kahit nag-liquidate pero may incomplete submission ng documents." Totoo po ba iyon? Pinapanindigan ninyo o binabago ninyo iyong statement na iyan ngayon?*

Ms. Del Campo. *Ang kuwan ko po doon is iyong failure to liquidate is, iyon nga po, pag na-ND na siya at naibalik na ito sa books, so may magpo-form part ng unliquidated cash advance, so lalabas siya na failure to liquidate.*

Ms. Ferrer. So—okay. Kahit iyong reason ng ND is incomplete submission of documents.

Ms. Del Campo. *Kasi nga po —*

Ms. Ferrer. *Hindi.* Just answer me. *Para ano lang tayo, 'no? Kahit na—*

Ms. Kapunan. Your Honor, argumentative already. This witness was asked what you mean by failure to liquidate, and she answered.

Ms. Ferrer. *Kaya nga ho.*

Ms. Kapunan. You're now arguing with the witness, Your Honor.

The Presiding Officer. Modify your question, Counsel.

Ms. Ferrer. Okay. *So sinabi ninyo that, you know, there's failure to liquidate pag mayroon ng ND. Okay. So, follow-up question, kahit iyong ND, iyong ground niya is incomplete submission of document, mayroon pa ring failure to liquidate, tama?*

Ms. Del Campo. *Opo, kasi nga magiging form siya ng unliquidated cash advance ng SDO.*

Ms. Ferrer. Thank you. Okay. So, *diyan sa 8.3, nakita ninyo ba ho may citation ho iyan sa gilid? Iyong Supreme Court case na Antonio Martinez versus People and Sandiganbayan, G.R. No. 126413, dated August 20, 1999, nakita ninyo ba iyong citation na iyan?*

Ms. Del Campo. *Hindi ko po siya nabasa.*

Ms. Ferrer. *Ah, hindi ninyo po siya nabasa.* Okay. Okay, so do you know that that case involves a former OIC and acting mayor of Caloocan City who failed to submit liquidation of his cash advances upon demand by the treasurer?

Ms. Kapunan. Asked and answered, Your Honor. This witness says she does not know this case.

The Presiding Officer. She did not read it, Counsel.

Ms. Ferrer. Okay. So, in short, *iyong citation diyan sa 8.3, hindi ninyo alam iyong legal basis kasi hindi ninyo nabasa iyong Martinez case.*

Ms. Kapunan. Asked and answered, Your Honor.

Ms. Ferrer. Okay, *hindi.*

The Presiding Officer. Asked and answered.

Ms. Ferrer. I will take that as a "no," Your Honor.

Now—okay. Do you agree that the COA is an independent constitutional commission?

Ms. Del Campo. Yes *po.*

Ms. Ferrer. Okay. It was established under Article IX-D of the Constitution.

Ms. Kapunan. Improper for cross, Your Honor.

Ms. Ferrer. Your Honor, she's from COA. So —

The Presiding Officer. Assisting Counsel, kindly give the paper that fell.

If she knows. Xylene, if you know.

Ms. Del Campo. Yes *po*, COA is an independent body *po.*

Ms. Ferrer. Okay. So in that case, COA should be free from political pressure, *tama*? In your opinion.

Ms. Del Campo. COA *po* is an independent body. *Wala—Opo*, independent.

Ms. Ferrer. Free *dapat siya* from legislative interference?

Ms. Del Campo. *Opo*, independent *po ang* COA.

Ms. Ferrer. And free *dapat siya* from executive control.

Ms. Kapunan. Your Honor, please, asked and answered.

Ms. Ferrer. No, Your Honor.

Ms. Kapunan. "Independent body," that's what independent body means.

Ms. Ferrer. Your Honor, please, we are asking—

The Presiding Officer. I'll give her some leeway for emphasis, Counsel.

Please answer the question, Xylene. Independent from the executive?

Ms. Del Campo. Yes *po*.

Ms. Ferrer. Okay. So it is important that the COA's findings be solely based on its procedures and evidence. Do you agree with that?

Ms. Del Campo. Yes *po*.

Ms. Ferrer. Okay. And any information that is obtained outside should be verified by appropriate audit procedures, *tama*?

Ms. Del Campo. *Opo*.

Ms. Kapunan. Your Honor, please. The question is vague. What does counsel mean?

Ms. Ferrer. Asked and answered, Your Honor.

The Presiding Officer. Asked and answered. And I know where she's going at. Get to it, Counsel.

Ms. Ferrer. Yes. Okay. And yet, *iyong* second ND *po ninyo*, in-adopt *ninyo po* *iyong* supposed results of investigation *doon sa* CGGPA hearings, *tama*?

Ms. Del Campo. *Kasi po ito po —*

Ms. Ferrer. *Hindi, ang tama*, yes or no *lang po*.

Ms. Kapunan. Your Honor, excuse me. Don't answer. The question is misleading. This witness is being asked if she adopted the findings. No, Your Honor. This witness just said that there was an implied—there was an admission by Gina Acosta herself. What findings is she talking about?

Ms. Ferrer. Your Honor, please.

The Presiding Officer. I think she's referring to the notice of disallowance ...

Ms. Ferrer. Yes.

The Presiding Officer. ... of March 31, 2026, where it's stated in the second paragraph that they—after evaluation and with due consideration of the evidence given during the CGGPA hearings. I think that's what you're leading to, Counsel. It's a valid question.

Ms. Ferrer. Yes, Your Honor. Actually, I was about to quote the findings in the ND had the good counsel not stopped me from doing so.

The Presiding Officer. It's a valid question because they quoted it themselves in the notice of disallowance.

Ms. Ferrer. Yes, Your Honor. So *ito ho bang mga* findings *ninyo* with respect to Lachica, *natanong ninyo po ba si Lachica kung totoo ito*?

Ms. Del Campo. We based *lang po sa naging* admission under oath *ni* Ms. Gina Acosta *doon sa* hearing.

Ms. Ferrer. Okay. How about *si* Colonel Nolasco? *Tinanong ninyo ho ba kung tama* *iyong mga pinagsasabi* about *sa kaniya doon sa* hearing *ng* CGGPA?

Ms. Del Campo. We based *lang po doon sa naging* admission under oath *noong* CGGPA hearings.

Ms. Ferrer. Okay. *Salamat po.* Okay, let's go back to Joint Circular No. 2015-001. Now, of course, you admitted earlier that this governs the auditing of confidential funds and it is the audit guideline followed by COA in auditing confidential funds.

Ms. Del Campo. Yes, *po, ito pong* Joint Circular.

Ms. Ferrer. So, under the JC, confidential expenses pertain to surveillance activities in civilian government agencies intended to support the mandate or operations of the agency. *Nakalagay ho ba iyan doon?*

Ms. Del Campo. Yes, *po*, under 3.9.

Ms. Ferrer. Okay. The JC also requires liquidation documents of the confidential funds to be submitted to the COA in a sealed envelope. *Nakasarado ho dapat iyon, 'no'?*

Ms. Del Campo. *Opo.*

Ms. Ferrer. Okay. At *iyong* authorized *lang na mag-receive noon ay* *iyong* state auditor *lang na in-charge doon sa* audit *ng* confidential funds, *tama po?*

Ms. Del Campo. *Hindi po.* *Ang nakalagay po* is ICFAO receiving.

Ms. Ferrer. Okay, ICFAO receiving.

Ms. Del Campo. *Hanapin ko po* *iyong* exact wording.

Ms. Ferrer. *Sige po.* Okay, go ahead.

Ms. Del Campo. *Ang nakalagay po rito*, ICFAO authorized receiving staff.

Ms. Ferrer. Okay, authorized receiving staff. *Hindi po ba iyan* *iyong* assigned auditor?

Ms. Del Campo. *Hindi po.*

Ms. Ferrer. Not necessarily. So, *iyong mga* documents *na iyon* are only to be examined by the COA-ICFAO under the JC.

Ms. Del Campo. Yes, *po, iyong mga* liquidation documents *po na sinasubmit. (submit).*

Ms. Ferrer. And *iyong* restriction *doon sa* JC, *siyempre, na-explain po ito sa inyo bilang* auditor, they are intended to prevent unauthorized disclosure of confidential information, *tama ho?*

Ms. Del Campo. *Dapat po ingatan namin din* *iyong laman ng mga dokumento na iyon.*

Ms. Ferrer. Okay. And the Joint Circular likewise requires the security officer to safeguard the confidential information from unauthorized disclosure. *Nakita ninyo ho iyan sa* JC?

Ms. Del Campo. *Iyon po* *iyong nakalagay na* definition *ng* security officer.

Ms. Ferrer. And yet, during the COJ hearing, you transmitted documents to the Committee on Justice.

Ms. Del Campo. This is requested *po* through a subpoena *po.*

Ms. Ferrer. Okay, requested through a subpoena. But, you know, you admit that you have submitted these documents. And the following were submitted to the COJ (Committee on Justice), letter (a), *paki-confirm na lang po*, "All submissions of the OVP to the COA concerning the liquidation of the OVP's CF or confidential funds for the fourth quarter of 2022." *Tama?*

Ms. Del Campo. *Ito po ba* *iyong* copy?

Ms. Ferrer. Yes, *iyon, sige.* We are flashing it on screen and we are providing you a copy of that letter. *Sige ho.* So, *paki-confirm na lang po, 'no.* So *iyong sinubmit ho rito sa* COJ, "All

the submissions of the OVP to the COA concerning liquidation of the OVP's CF for the fourth quarter of 2022 and the first to third quarter of 2023." *Tama, Xylene?*

Ms. Del Campo. *Opo, tama.*

Ms. Ferrer. Okay. *Iyong* next item is "All the submissions of the DepEd to the COA concerning the liquidation of the DepEd's CF for the first to third quarter of 2023." *Tama?*

Ms. Del Campo. *Opo, tama.*

Ms. Ferrer. Okay. The third item is "All the issuances, resolutions, and resolutions of the COA in relation to the liquidation of the OVP's and DepEd's confidential funds, *tama?*"

Ms. Del Campo. Based *po rito sa* transmittal, *opo.*

Ms. Ferrer. Okay. And *inilagay pa rin ho doon sa* transmittal *ninyo sa* Page 5, second to the last paragraph on Page 5, the letter states "Considering that the documents pertain to confidential expenses, we respectfully request that appropriate measures be undertaken to protect the confidentiality of the information." *Tama?*

Ms. Del Campo. Yes *po.*

Ms. Ferrer. Okay. So, under the JC, is the House of Representatives Committee on Justice among the persons authorized to handle the audit of the confidential funds of the OVP and the DepEd?

Ms. Del Campo. *Gaya nga po ng sabi ko,* requested *po ito* through a subpoena *po.*

Ms. Ferrer. *Pakisagot lang ho ng tanong ko, 'no?* Authorized *ho ba sila* to handle the audit? I'm referring to the audit itself. I'm not referring to the subpoena. Authorized *ho ba si* House of Representatives Committee on Justice to handle the audit of confidential funds of the OVP and the DepEd under the JC?

Ms. Del Campo. Under the joint circular *po,* responsibility *po ng* ICFAO *na mag-conduct ng* post-audit *ng* liquidation documents *ng* confidential and intelligence fund.

Ms. Ferrer. Okay. So—

Ms. Kapunan. Your Honor, while—

Ms. Ferrer. Asked and answered, Your Honor.

Ms. Kapunan. Your Honor, please.

The Presiding Officer. Yes, Attorney Kapunan.

Ms. Kapunan. The admonition of this Honorable Presiding Officer, Your Honor, is to be patient, Your Honor. In line of—

The Presiding Officer. Not admonition, request.

Ms. Kapunan. Your Honor, I have been patient, but in line with these continuing questions, first, bringing in the House of Representatives, bringing in this Senate, Your Honor, we are—

The Presiding Officer. Counsel.

Ms. Kapunan. It's in response to are we auditing—Your Honor, please, if they're making a point that this witness, that the COA witnesses here, Your Honor, are here to testify because they're scared of the budget for their agency, or they're scared of this congressman, Your Honor, this is already beyond cross-examine.

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. While this Honorable Presiding Officer has given much leeway, Your Honor, let us confine ourselves to what was—precisely, the definition of cross-examination is what was taken up during direct and what may be relevant. What may be relevant, Your Honor. This is beyond relevance, Your Honor.

The Presiding Officer. Counsel.

Ms. Kapunan. This is already immaterial and irrelevant. If they want to show—if that is their strategy, if that is their defense, Your Honor, present a witness.

The Presiding Officer. No, it's not an objection, Attorney Kristine, I think it's more of a manifestation. But the Presiding Officer would ask you to move forward.

Ms. Ferrer. Yes, Your Honor.

The Presiding Officer. I think the Senator-Judges and the Court see your point and where you're going at in relation to this.

Ms. Ferrer. Yes, I will.

The Presiding Officer. You can move on to your next point, Counsel.

Ms. Ferrer. Actually, Your Honor, just a quick manifestation. The counsel is preempting my questions. I will not be asking questions on the budget, Your Honor. That's not the line of my questions that I will ask, Your Honor.

Ms. Kapunan. That is not the point, Your Honor.

Ms. Ferrer. Can I continue, Your Honor, please? Thank you.

The Presiding Officer. Kindly wind up with this point, Attorney Kristine.

Ms. Ferrer. Yes.

Ms. Kapunan. Yes.

Ms. Ferrer. Okay. So, *sa sinabi ninyo ho*, si COA-ICFAO *lamang ang may karapatan na mag-audit ng confidential funds of the OVP and the DepEd, tama ho?*

Ms. Del Campo. Based on the joint circular *po*, it is the responsibility of the ICFAO *po*.

Ms. Ferrer. Okay. So, *si* House of Representatives Committee on Justice cannot review the decisions and actions taken by the COA.

Ms. Kapunan. Excuse me.

The Presiding Officer. Asked and answered, Counsel. Only COA ICFAO can do it.

Ms. Kapunan. I think the ruling of the Presiding is to go to another point.

Ms. Ferrer. This is another point, Your Honor.

Ms. Kapunan. Your Honor, the Presiding Officer has ruled.

The Presiding Officer. Counsel please, counsels please. I would consider it asked and answered. Only COA ICFAO can, and it's quite obvious. We can even take judicial notice of that as part of the law, that the House does not have any power nor jurisdiction, nor the Senate for that matter, to review the findings of an independent constitutional commission, which under the law, she answered to can only be appealed via petition for certiorari under 45, citing Rule 65 to the Supreme Court.

Move on, Counsel.

Ms. Ferrer. Okay. I will take that as an answer, Your Honor.

The Presiding Officer. Yes.

Ms. Ferrer. I was about to elaborate but okay, I will take that as an answer.

The Presiding Officer. The Court takes judicial notice and knowledge of that, Counsel.

By the way, for the information of the senator-judges, per the Senate President, we shall convene session at 4:00 p.m....

We will try to finish with this witness, the cross, redirect, re-cross if any, and the interventions of Senator-Judges, so that we can let Xylene rest already, and be done with her testimony within today, hopefully. Hopefully.

So, for the information of the Senator-Judges, session will be called at 4:00 p.m.

Ms. Kapunan. Thank you, Your Honor.

The Presiding Officer. Attorney Kristine?

Ms. Ferrer. Your Honor, I am done with the cross-examination.

The Presiding Officer. Thank you, Attorney Kristine.

Attorney Lorna.

Ms. Kapunan. With the permission of this Honorable Court.

The Presiding Officer. You may proceed when you are ready with your redirect, Counsel.

That we are ending at four o'clock does not give you permission to consume the time until four o'clock, Attorney Lorna, so that we still have time for the Senator-Judges. Please proceed.

REDIRECT EXAMINATION OF THE WITNESS

Attorney Kapunan conducted the redirect examination of the witness as follows:

Ms. Kapunan. Excuse me. I will just remove my candy. Okay.

Madam Witness, this morning, four hours ago, you were asked, Madam Witness, about the process, the routing process in your office...

Ms. Del Campo. *Opo.*

Ms. Kapunan. ... and this was done in connection with a question on the chain of custody, on the integrity of the process.

Ang tanong sa iyo, naiwanan nga ng mga dokumentong ito, relevant to this liquidation of confidential funds, sa office of the COA-ICFAO.

Ms. Del Campo. *Opo, tama po.*

Ms. Kapunan. *Iniwani ni Attorney Wamil.*

Ms. Del Campo. *Opo.*

Ms. Kapunan. And then by virtue of a directive to you by the office, you took over national agencies, correct?

Ms. Del Campo. Yes *po.*

Ms. Kapunan. Among them, the Office of the Vice President and the DepEd.

Ms. Del Campo. *Opo, tama po.*

Ms. Kapunan. Correct. Now, when you took over this function of evaluating the confidential funds of the Office of the Vice President at ng DepEd, *iyong mga dokumentong minana mo, ito ba ay certified documents lahat ng isang Davin Baccay?*

Ms. Del Campo. *Puwede pong pakiulit? Paano pong certified ni—?*

Ms. Kapunan. Okay. How are you able to ascertain *na iyong mga dokumentong iniwanan sa office ng ICFAO* are the very same documents *na tinern* (turn) over *sa office ni Attorney Wamil?*

Ms. Del Campo. *Noong ibinigay po sa akin ito at tsinek (check) ko rin po iyong nilalaman nito based doon sa transmittal letters po. So, na-check ko po na kung ano iyong na-audit po ni Mr. Wamil, ito rin po iyong naibigay sa akin.*

Ms. Kapunan. So, *walang nadagdag na dokumento?*

Ms. Del Campo. *Wala po.*

Ms. Kapunan. *Walang binawasan na dokumento?*

Ms. Del Campo. *Wala po.*

Ms. Kapunan. *Wala kayong pinalitan, sinabstitsut (substitute) na dokumento?*

Ms. Del Campo. *Wala po.*

Ms. Kapunan. In other words, the integrity, the completeness of all those documents left by Attorney Wamil with the office of the ICFAO remained complete?

Ms. Del Campo. Yes po, tama po.

Ms. Kapunan. *Ano naman, ibig sabihin ng routing? Kasi, Counsel here made mention of initials. Ano iyong mga initials na iyon?*

Ms. Del Campo. *Iyong mga initials po na nasa baba, iyong sa AOM po, kung sino po iyong Action Officer, tapos sino po iyong mga nag-review na Division Chief, hanggang makadating po doon sa aming Officer-in-Charge. Kaya iyon po iyong mga nag-review doon sa AOM na iyon.*

Ms. Kapunan. In other words, Madam Witness, *hindi lang ikaw ang nag-decide ng AOM, ng Notice of Suspension, at ng Notice of Disallowance. You are not the only person who decided?*

Ms. Del Campo. Yes po, kasi dumadaan po ito sa review process from the Action Officer, to the Division Chief, to the Officer-in-Charge ng ICFAO po.

Ms. Kapunan. Okay. So, *hindi mo lang professional judgment ito?*

Ms. Ferrer. Your Honor, please, the question is leading.

Ms. Kapunan. Your Honor, please—

The Presiding Officer. We will allow it. We will allow it. I think that was already answered too, by the witness earlier, as well.

Ms. Del Campo. Yes po.

Ms. Kapunan. Okay. *Ngayon, iyong routing slip na iyan, doon ba dumadaan ang mga dokumento?*

Ms. Del Campo. Opo.

Ms. Kapunan. Okay. *At sa mga taong minensyon (mention) mo, mayroon bang nakalagay diyan, mayroon bang puwedeng idagdag? Sino ang first initial doon? Sino nga ba iyong first initial doon?*

Ms. Del Campo. *Iyong Action Officer po, iyong RCW, si Roderick po.*

Ms. Kapunan. *Iyong Action Officer ba iyan eh puwedeng magdagdag, magbawas, mag-substitute ng mga dokumento other than iyong isinabmit (submit) ng Office of the Vice President at ng DepEd by way of liquidation ng confidential funds?*

Ms. Del Campo. *Hindi po.*

Ms. Kapunan. Okay. So, *iyong susunod doon, iyong Action Officer, sino ang susunod doon?*

Ms. Del Campo. *Iyong Division Chief po.*

Ms. Kapunan. Okay. *Iyong Division Chief na iyan, 'pag binigay ang dokumento at iyong evaluation mo at iyong Action Officer, darating naman sa Division Chief. Mayroon bang nangyayaring misteryo diyan sa mga dokumentong from one—from you, to the Action Officer, to the reviewing—*

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. *Mayroon bang dinadagdag, sina-substitute, or pinapalitan diyan? ...*

The Presiding Officer. Let her finish, Counsel.

Ms. Kapunan. ... *sa mga documents na sina-submit ng Office of the Vice President at ng DepEd?*

The Presiding Officer. Yes, Counsel for Respondent, what is your objection?

Ms. Ferrer. Misleading, Your Honor, "*may nangyari bang misteryo diyan.*"

The Presiding Officer. Kindly reform, Counsel.

I think we all know where you're headed towards, Counsel. Kindly reform. You can get it from the witness.

Ms. Kapunan. *Sa mga dokumentong isinabmit* (submit) ng Vice President and DepEd, after it leaves you and goes to the next person, the Action Officer, and then the Reviewing Officer, are there other documents that are allowed to be inserted there or substituted other than what was actually submitted by the Office of the Vice President *at ng DepEd para sa liquidation ng confidential funds?*

Ms. Del Campo. *Iyong mga dokumento lang po na iyon, wala na pong nadadagdag, walang nababawas.*

Ms. Kapunan. So, *ang ini-impay sa question ng Defense Counsel is, sa chain of custody ay hindi sila sigurado sa chain of custody?*

Ms. Ferrer. Your Honor, please. Your Honor, please.

Ms. Kapunan. This is my redirect, Your Honor. She was the one who brought it up on cross.

The Presiding Officer. Kindly let Attorney Kapunan finish, Counsel.

Ms. Kapunan. This was brought up on cross, Your Honor, implying, and I'm asking a redirect based on—they were the ones that brought out who are these people here.

The Presiding Officer. Proceed to your question, Attorney Kapunan.

Ms. Kapunan. Okay. *Masasabi mo ba na itong chain of custody ay may interruption ng dokumento? Mayroon bang substitution, mayroon bang alteration itong dokumento na isinabmit (submit) ng Vice President at ng DepEd?*

Ms. Del Campo. *Hindi po kasi iyong opisina rin po namin is, kami lang po iyong nandoon and may nakabantay po rito na security guard 24 hours. And iyong document po na ito, nakalagay po ito sa cabinet na naka-lock.*

Ms. Kapunan. Okay. So, this COA-ICFAO, *ang nakakaalam lang ng mga confidential documents ay COA-ICFAO. Mayroong mga ibang divisions ang COA?*

Ms. Del Campo. *Nasa loob po kasi kami ng Office of the Chairperson, pero iyong sa amin is, nakatago po iyong mga dokumento namin.*

Ms. Kapunan. Okay. Now, Madam Witness, you were presented with several activities, *at sabi ng Counsel for Respondent, in-enumerate niya, itong specifically protective intelligence operation and places of engagement. Tinanong sa iyo, 'pag ba ang mga security guards ng Presidente eh in-inspect, na-inspect daw ang routes prior to departure and arrival of the President—of the Vice President, I'm sorry—for possible threats for criminal groups, iyong mga security guards ng Vice President, ini-inspect iyong ruta. "Dadaan dito ang Vice President, Office of the Vice President—Vice President or DepEd—daraan dito, tingnan nga natin kung may Komunista dito. Tingnan nga natin kung may NPA dito. Tingnan nga natin kung may terorista dito." Iyan ba ay parte....*

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. I haven't finished.

The Presiding Officer. Let her finish, Counsel.

Ms. Kapunan. Is that part of confidential activity or confidential funds?

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Counsel for Respondent.

Ms. Ferrer. The good Counsel is adding facts to the question. Can she not cite the exact wordings, Your Honor?

Ms. Kapunan. Your Honor, please. This is redirect.

You opened the door, Counsel.

Ms. Ferrer. She can refer to the *Record*, Your Honor.

Ms. Kapunan. Counsel, you opened the door. You said—In fact, you asked her: “Is this part of the—” Your Honor, please. “Is this part of the regular—”

The Presiding Officer. Counsel for Respondent, please. You read parts, you read parts of the PIO—What do you call it, Xylene?

Ms. Kapunan. PIOR, Your Honor.

The Presiding Officer. PIOR.

Ms. Ferrer. But, Your Honor, please. She can just refer to the records, so that nothing will be added.

The Presiding Officer. Which includes NPA, terrorist groups. And, in fact, mentions the word “criminalities,” which I am not so sure about, but “criminalities,” correct?

Xylene, correct?

Ms. Kapunan. Yes.

Ms. Del Campo. *Opo, nabanggit po.*

Ms. Kapunan. She said that, Your Honor.

The Presiding Officer. So, the question is—you mentioned earlier that these are part of confidential functions, not regular functions of the OVP, correct?

Ms. Kapunan. That was the question of Counsel for Respondent.

The Presiding Officer. Exactly. She responded to that answer.

Ms. Kapunan. I don’t understand, Your Honor

The Presiding Officer. Now, what is your question, Attorney Kapunan?

Ms. Kapunan. My question here is—Okay. *Itong Office of the Vice President ay na-confirm mo na may confidential funds.*

Ms. Del Campo. *Opo, mayroon po.*

Ms. Kapunan. *Sige.* But in the Commission on Audit, outside COA-ICFAO, are you aware that the Office of the Vice President has funds outside the confidential funds, her confidential funds?

Ms. Del Campo. *Nasa part na po iyon ng regular audit. Ang sa ICFAO lang po is iyong sa confidential funds lang po.*

Ms. Kapunan. So, *nasa*—she has—you’re saying that the Vice President, OVP, the DepEd Secretary has funds other than—

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Already answered, Counsel.

Ms. Kapunan. She answered.

Ms. Ferrer. Misleading, Your Honor. She didn’t say that, that they have funds. She said she has no knowledge because that is not the scope of her audit.

Ms. Kapunan. No, Your Honor. She said, Your Honor, that there are—

The Presiding Officer. She said that it is not the subject—

Ms. Kapunan. There are funds subject of regular audit. Regular funds.

Ms. Del Campo. Yes *po*, may regular funds.

Ms. Kapunan. Of the Vice President herself?

Ms. Del Campo. *Opo.*

Ms. Kapunan. And this is subject, Madam Witness, to regular audit.

Ms. Del Campo. Yes *po*.

Ms. Kapunan. And being subject to regular audit, it is not part of the COA-ICFAO confidential funds audit. Correct?

Ms. Del Campo. Yes *po, tama po*.

Ms. Kapunan. Okay. Would you know that the Office of the Vice President has regular funds or special funds for security personnel? Are you aware of that, Madam Witness?

Ms. Del Campo. *Dahil nga po ang sa amin lang is confidential funds, hindi po ako aware doon sa regular funds po ng OVP.*

Ms. Kapunan. Okay. Regular fund. The security personnel—and it is here in your circular. It says: “Salaries for staff is not part of the allowable expense of confidential funds,” correct? You mentioned that before.

Ms. Del Campo. *Nasa 4.11 po iyang mga hindi dapat paggamitan ng CF at IF.*

Ms. Kapunan. Salaries, wages, overtime, additional compensation, allowances, *et cetera*, of government—salaries, benefits, additional compensation, allowance, or other fringe benefits of officials and employees who are employed by the government in whatever capacity or elected officials, except when authorized by law.

The Office of the Vice President is—it is of public knowledge that the Office of the Vice President has no less than 300, 400 security guards. Are you aware of that? Public knowledge.

Ms. Del Campo. *Narinig ko po sa news.*

Ms. Kapunan. Yes. And if these security guards are being paid salaries, should these salaries be debited or reimbursed from confidential funds?

Ms. Del Campo. *Iyang salaries po, hindi po siya puwedeng i-charge sa confidential fund.*

Ms. Kapunan. Okay. So, *itong activity na sinabi na* to check security, to check—surveillance, surveillance *daw*, to surveillance, to make surveillance of the routes of the Vice President when she arrives to an engagement, when she leaves for an engagement, when she attends engagement, Christmas parties, whatever.

The Presiding Officer. Counsel for Respondent, yes?

Ms. Kapunan. Ocular—

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. I haven't finished.

The Presiding Officer. Okay.

Ms. Kapunan. Okay. And Counsel mentioned ocular inspection and casing of venue prior to activity. Now, prior to an activity. Should this be part—Madam Witness, if this is a function being done by her personal security guards, should this be considered as part of confidential funds activity? Your Honor, this clearing the road.

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Counsel for Respondent.

Ms. Ferrer. The report does not say that it was done by the security guards. Your Honor, there's nothing in there.

Ms. Kapunan. I'm asking her now, Your Honor.

Ms. Ferrer. That's asking for an opinion, Your Honor.

The Presiding Officer. No, no. Let's clarify one thing first. The Vice President has no security guards.

Ms. Kapunan. She has a security personnel, Your Honor.

The Presiding Officer. She has a VPSG.

Ms. Kapunan. Yes, Your Honor.

The Presiding Officer. Vice Presidential Security Group, which was, I think later on, placed under the Presidential Security Command, under the unified command of the Presidential Security Command. So, the question—

Ms. Kapunan. Yes, Your Honor. I will reform.

The Presiding Officer. Kindly reform, Counsel.

Ms. Kapunan. If it is the VPSG that does this activity of, quote, "ocular inspection, casing of the venue, clearing of routes prior to arrival and departure," would that be reimbursable if they are paid separately from another fund? Can that be part of the liquidation of confidential funds, Madam Witness?

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Counsel for Respondent.

Ms. Ferrer. The witness is incompetent to answer that, because the Liquidation Report does not state that these were paid to the VPSG.

Ms. Kapunan. It's a question, Your Honor.

The Presiding Officer. If she knows, Counsel.

Ms. Kapunan. If she knows.

The Presiding Officer. Xylene, if you know.

Ms. Del Campo. *Puwede pong pakiulit? Sorry po.*

Ms. Kapunan. *Iyong VP*, I said, and as correctly pointed out by the Presiding Judge, the VP does have a complement, and they're called Vice—VPSG.

Ms. Del Campo. *Opo.*

Ms. Kapunan. You're aware of that, Madam Witness, and as you said, public knowledge that she has something like 400. My question to you is—and you already confirmed that the VP herself has funds outside these confidential funds.

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Yes, Counsel.

Ms. Kapunan. There is no question yet.

Ms. Ferrer. Misleading, Your Honor. She did not say that she confirmed that there were funds of the VP outside of the confidential funds.

The Presiding Officer. Well, anyway, Counsel, the Senate passes the budget of all the offices of government, and we are well aware that the Office of the Vice President has other funds. We need not belabor the point on objections from either side. We're aware of the existence of other funds of the Office of the Vice President, as well as the DepEd. In fact, the DepEd has the highest budgetary allocation in any GAA.

Ms. Kapunan. Your Honor, please. If I may?

The Presiding Officer. Continue, Counsel.

Ms. Kapunan. Yes, if I may, Your Honor. Counsel keeps objecting to my questions, but she herself was the one who brought it up. In the first page of her own exhibit, it says here—and you asked the question. She asked the question, Mr. Presiding Judge, Your Honor. She says, "What

is the scope? This report—" quote-unquote. You read this. She read this, Mr. Presiding Judge, Your Honor.

Ms. Ferrer. I confirm that. Yes, Your Honor.

The Presiding Officer. Move on, Counsel.

Ms. Kapunan. The scope pertains to the narrative of events and accomplishments of the VPSG—VPSG—in terms of the protective intel during the engagement of Vice President Sara Duterte for the first quarter. So, these activities are the activities...

The Presiding Officer. Move on, Counsel. Yes, the Chair already ruled in your favor.

Ms. Kapunan. ... of the VPSPG. So, she can answer, Your Honor.

The Presiding Officer. Yes, yes. Move forward, Counsel.

Ms. Ferrer. Yes, Your Honor, please.

Ms. Kapunan. Can you answer that question? If, as stated there, these are activities of the VPSG for the personal engagements of the Vice President, is this a proper matter—is this proper liquidation of the confidential funds of the Vice President?

Ms. Del Campo. Under the Joint Circular *po*, *iyong* confidential fund should only be used *doon sa* allowable expenses under Item 4.8 of the Joint Circular *po*.

The Presiding Officer. You did not answer the question, Xylene. Yes or no?

Ms. Del Campo. *Puwede pong pa-clarify ulit iyong tanong?*

Ms. Kapunan. *Kasama ba sa* proper liquidation *ang* personal engagements *ng* Vice President *at ang bayad* or the payment of compensation for the VP SPG for her—

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. For her activities relating to personal activities of the Vice President?

Ms. Del Campo. *Kung iyong* personal activities *po*, *hindi siya* chargeable to confidential funds.

Ms. Kapunan. Okay. Now, Madam Witness, Counsel asked you earlier about the mandate of the COA. And you are competent to testify on it. Okay. Correct?

Ms. Del Campo. *Opo. Opo.*

Ms. Kapunan. Now, I will tell you about—I will ask you about the mandate, the mandate of the Vice President. *Kasama ba sa mandato ng isang* Vice President—and I will read you the Constitution, "Performs executive, ceremonial and social services functions collaborating with stakeholders of organizations in both private and public sectors to develop and promote programs for the uplift of the Filipinos." In your opinion, in your professional judgment, *kasama ba sa mandato ng isang* Vice President *ang* confidential operations?

Ms. Del Campo. *Kung based po doon sa nakalagay sa mandato nila, hindi po.*

Ms. Kapunan. *Hindi po.* Okay. *Punta rin naman tayo sa DepEd. DepEd, nakalagay sa batas,* is in charge of basic, elementary and secondary education. That's the function. *Kasama ba sa mandato ng isang* Secretary of the Department of Education *ang* confidential activities?

Ms. Del Campo. *Kung based po doon sa mandato nila, hindi po.*

Ms. Kapunan. Okay. And yet, *itong Vice President Sara Duterte ay binigyan, binigyan ng* confidential funds. *Tama?*

Ms. Del Campo. *Opo, may budget po sila na confidential fund.*

Ms. Kapunan. *Magkano ang budget?* Again, *magkano ang budget ng Vice President sa* confidential funds?

Ms. Del Campo. *Noong fourth quarter po ng 2022, P125 million; and iyong first to fourth quarter ng '23, P500 million po. Iyong sa—pero ang nakuha lang po nila sa '23 is P375 million.*

And then sa DepEd naman po, P150 million, pero ang na-cash advance lang po is P100—ay, P112.5 million.

Ms. Kapunan. Okay. Let us now go to—so, *tama ka, wala sa mandato both ng Office of the Vice President at ng DepEd ang confidential activities.*

Now, let's go to *iyong sinabi ng Counsel for the Respondent na quoted from the PIORs, itong report na sinabmit* (submit). *Mayroon siyang sinabing activity—the activities read, Madam Witness, for the first quarter, were from—pertained to January 2 to January 10 of 2023, for the first PIOR. Okay, first report, January 2 to January 10, 2023. Pero sa pagkaalam natin, and please confirm, on that date, on this period, January 2 to 10, na napakahaba ng binasa na activities ng Counsel for Respondent, wala pang confidential funds ang Office of the Vice President during that period, January 2 to 10. And yet, Madam Witness, she is now saying that these activities—or according to Counsel—that these activities for January 2 to 10, cited in this report, are by way of liquidation for confidential funds. Paano nangyari iyan?* Can you explain to us, Madam Witness, how is it possible that a Vice President is claiming liquidation for activities before February 6, the period for which she was given these confidential funds, January 2 to 10? Did you note this in your report?

Ms. Del Campo. *Hindi po siya nakasama sa report kasi iyong PIOR isinabmit* (submit) *nila for—to support the payment of rewards po.*

Ms. Kapunan. Okay, let us now go. But based on this document, the activities cited by Counsel were for a period prior to receipt of the confidential funds that Vice President said, “This is in liquidation of the confidential funds I received.”

Going now to my next point, Madam Witness, allowed *ba ito? Parang* the activities—Christmas party, tree planting, council meetings, acceptance of awards, rewards, *et cetera*, by nature, are these part of confidential funds activity?

Ms. Del Campo. *Kung under the joint circular po, iyong allowable lang po na ma-charge sa confidential fund is iyong enumeration sa item 4.8 po.*

Ms. Kapunan. *At hindi ito enumerated doon?*

Ms. Del Campo. *Hindi po nakasama iyong nabanggit po ninyong activity.*

Ms. Kapunan. Okay. *Pero napakabait naman ng Vice President. Iyong giving of medicines, giving of groceries, giving of ayuda, hindi ba ano, hindi ba magandang activities iyan para sa isang Vice President?*

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. Preliminary, Your Honor.

The Presiding Officer. Let us hear the Counsel for the Respondent.

Yes, Attorney Kristine.

Ms. Ferrer. Your Honor, that is a misleading question and asking for an opinion—*hindi ba maganda iyan sa isang Vice President?*

The Presiding Officer. Sustained. Modify, Counsel.

Ms. Kapunan. Your Honor, please. I will reform, Your Honor.

This tree planting, this Christmas funds, this giving of assistance, giving of grocery, giving of medicines, are these funds, if properly accounted for, could they be gotten from either the President's social services fund or for what you said, there is another audit unit that audits her regular funds. Could the President, if you know—could the Vice President—have gotten all of this funding from her regular or social amelioration funds instead of the confidential funds which you said ...

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. ... which you said must be strictly complied with?

The Presiding Officer. Counsel for the Respondent.

Ms. Ferrer. That calls for an opinion, Your Honor, "She should have gotten it from amelioration fund."

The Presiding Officer. Let's let it continue if she knows.

Ms. Kapunan. It is within her competence.

The Presiding Officer. If she knows, Counsel.

Xylene, if you know.

Ms. Del Campo. *Kung iyong paggagamitan po is iyong nabanggit ninyo na activity, hindi po siya chargeable sa confidential fund po.*

Ms. Kapunan. Okay. Now, Madam Witness, you said that—you were shown or you were asked by Counsel for the Respondent certain activities, and she mentioned 4.8.6, which are among the activities that should be covered by confidential funds. "To uncover," 4.8.6, "to uncover and prevent illegal activities that pose a clear and present danger to the agency personnel, property, or other facilities under the resources." And using this provision, Counsel for the Respondent wants this provision to justify the expenses of the Vice President as listed—illegal activities, Communists, national terrorists. But I will read to you, Madam Witness, the portion that Counsel intentionally omitted. Because this provision, and please check your circular. Could you read the last portion of 4.8.6?

Ms. Del Campo. "Done in coordination with the appropriate law enforcement agencies."

Ms. Kapunan. In other words, Madam Witness, this particular provision says, yes, it is correct, it is proper to use confidential funds to uncover/prevent illegal activities that pose clear and present danger. That is correct. But there is another requirement that Counsel intentionally did not read. And that is that it must be done in coordination with the appropriate law enforcement agencies.

My question to you, Madam Witness, in all the submissions of the Office of the Vice President or the DepEd, as regards this uncovering and preventing illegal activities, did any of the submissions of the Vice President indicate which government agency they coordinated with as regards this uncovering or preventing of illegal activities?

Ms. Ferrer. Your Honor, please.

The Presiding Officer. Counsel for the Respondent?

Ms. Ferrer. The submissions of the President would answer that question, Your Honor.

The Presiding Officer. Vice President, Counsel.

Ms. Ferrer. Vice President, sorry.

The Presiding Officer. It was all submitted to Xylene. Let Xylene answer.

Xylene, were there any submissions that...

Ms. Kapunan. *Mayroon ba*—okay.

The Presiding Officer. ...it was coordinated with the respective law enforcement agencies?

Ms. Kapunan. *Mayroon bang isinabmit (submit) na dokumento ang Office of the Vice President na, "Madam COA, ito po iyong mga government agency na kasama namin na nag-implement nitong surveillance, nag-implement nitong—nag-implement nitong ibinigay naming information para uncovering on preventing illegal activities? Mayroon bang listahan o dokumento na sinabmit ng Office of the Vice President or ng DepEd showing precisely the appropriate law enforcement agencies they collaborated with?*

Ms. Del Campo. *Iyong sa DepEd po, iyong sa certification ng AFP to support the payment of rewards, may nakalagay po doon na coordination.*

Ms. Kapunan. Certification lang, okay. Sa Office of the Vice President?

Ms. Del Campo. *Doon po, mayroon po ang nakalagay na—doon sa PIORs nila, nakalagay po doon kung kanino sila naki-coordinate po. Mayroon doon sa PIORs iyong details.*

Ms. Kapunan. *Sino-sino ang mga national agencies na ito? At more important, ano ang evidence of success? Ano ang koneksiyon ng coordination or pag-cooperate ng OVP or DepEd sa success na sinabi mo na another requirement— an important requirement—in the liquidation of confidential funds? Mayroon bang dokumento showing the success of this collaboration with the government agencies?*

The Presiding Officer. That is a compounded question, Counsel. If I may.

Sabi ninyo sa DepEd, may dokumentong nagpapakita na may coordination sa AFP. Sa Office of the Vice President, may dokumento bang nagpapakita ng koordinasyon sa law enforcement agency? Sabi ninyo, oo. At kung maalala ko, Xylene, local police, hindi ba?

Ms. Del Campo. *Opo, nakalagay po doon sa PIORs nila.*

The Presiding Officer. Now, it is a compound question because now Counsel is asking you what is the proof of success of these coordinative efforts with law enforcement agencies. *May pruwera ba ng tagumpay noong mga operasyong iyon?*

Ms. Del Campo. *Iyon pong sa DepEd po, kinonsider (consider) ko po as documents evidencing success iyong sa certification ng AFP. Iyong sa OVP po, iyon po iyong hinanapan ko pa ng additional documentation na nagpapakita ng success.*

The Presiding Officer. *Partikular doon sa portion na nagbayad ng reward?*

Ms. Del Campo. *Opo.*

The Presiding Officer. *Hindi sa impormasyon?*

Ms. Del Campo. *Opo, tama po.*

The Presiding Officer. Okay.

Ms. Kapunan. Madam Witness, also Counsel referred you to 6.2.3, which is liquidation of cash advances for confidential funds. *At binasa niya isa-isa. Nag-submit ng—ito, liquidation report, nag-submit naman. Certified copy, et cetera of disbursement vouchers, evidence of documents, physical, financial plan. Lahat ng binasa dito sa 6.2.3 ay sinabi ng Counsel for the Respondent ay isinabmit (submit) naman. Eh kung compliance, post-audit compliance ang COA-ICFAO. Kung sinabmit (submit) naman itong mga dokumento, bakit mayroon pa rin AOM? Bakit may AOM leading to Notice of Suspension, leading to Notice of Disallowance if, in fact, as Counsel for the Respondent suggests, “Eh, kompleto naman kami ng submissions”?*

Ms. Del Campo. Based on the evaluation of each document po, may mga nakita po doon na hindi compliant with the joint circular po.

Ms. Kapunan. And kagaya ng ano? Just very briefly.

Ms. Del Campo. *Iyon po, gaya iyong sa OVP po, iyong payment of rewards which were not supported with documents evidencing success and iyong mga purchases po na hiningan ko ng other documents that deemed necessary in the audit po. And mayroon nga din po doon sa ND ng 2023 na reimbursement, which is hindi rin po siya compliant with the joint circular.*

Ms. Kapunan. So, iyong sinasabi na mali kayo, sinabi ninyo non-compliant, eh kumpleto naman ang checklist, eh hindi tama, iyon ang sinasabi mo, Madam Witness?

Ms. Del Campo. *Mayroon pong na-submit na dokumento pero after the evaluation of each document po, hindi pa rin po siya compliant with the joint circular.*

Ms. Kapunan. Okay. Let's go now to the last 6.2.3 na, again, hindi na naman kinowt (quote) ng Counsel for the Respondent. 6.2.3.7, refers to other supporting documents the ICFAO deems necessary for the proper evaluation of liquidation documents submitted. What does this mean, “other liquidation documents”? *Ang ini-imply ng Office of the Vice President at DepEd Counsels na, kasi sinabi ninyo, “limited to the documents.” Are you constrained? Kayo ba ay bawal tumingin o humingi pa ng iba pang dokumento para patunayan ang tinatawag na supporting*

documents *na inaakala ninyong kailangan* or necessary *para sa* proper evaluation *ng* liquidation documents submitted?

Ms. Del Campo. *Puwede po kaming humingi ng additional documents na makakatulong sa amin sa pag-evaluate po noong liquidation ng confidential fund.*

Ms. Kapunan. *Kagaya ng ano? Ano itong other supporting documents?*

Ms. Del Campo. *Gaya nga po iyong hiningi ko doon sa purchase of supplies and provision of medical and food aid, iyon pong receipts and sales invoice po, to ascertain na talagang pinambili ito ng supplies and food and medical aid.*

Ms. Kapunan. *At sinabihan ninyo sila, ano? Noong humingi kayo ng other supporting documents, mga ORs, mga sales invoice, nag-submit ba ang OVP at ang DepEd ng hinihingi ninyong other documents deemed necessary for the proper evaluation of the liquidation documents submitted? Nag-submit ba sila?*

Ms. Del Campo. *Part po ito noong Notice of Disallowance na nandoon pa sila sa period prescribed po para mag-appeal sa Commission Proper.*

Ms. Kapunan. *Ito ngayon, sinabi mo—You were confronted with your tabulation and your summaries na wala naman nakalagay na pangalan doon. Ang nakalagay lang doon date at saka amounts, correct?*

Ms. Del Campo. *Opo.*

Ms. Kapunan. *Okay. And in particular, mayroong pinakita sa iyo, as part of your summary, maroong mga acknowledgment receipts doon na ang date ay iisa lang.*

Ms. Del Campo. *Opo, tama po.*

Ms. Kapunan. *But disbursed in one day. Nakalagay iyon, “disbursed in one day,” tama?*

Ms. Del Campo. *Iyong kahapon po, opo.*

Ms. Kapunan. *Okay. Ngayon, in your joint circular, kasi pinag-usapan—in relation to that, pinag-usapan rin—Attorney Wamil and now you confirmed—pinag-usapan rin ang observation na mahina ang internal controls ng Office of the VP at ng DepEd. And patunayan diyan eh mayroon Disbursement Officer allegedly na nag-disburse ng several amounts in several places. Namention, in fact, sinabi ko “Superman,” pero sabi ng Presiding Officer, “physical impossibility” na lang ang gamitin ninyo—the physical impossibility of an authorized Special Disbursement Officer to distribute all of these funds in one day. Based on your opinion, professional opinion, does this indicate what they refer to as “lapse of internal controls,” that one, that a person solely authorized to disburse is not the only person actually disbursing? Would that be a lapse of internal controls?*

Ms. Del Campo. *Yes po. Kasi under the Joint Circular, it’s the responsibility ng head of agency to institute sound and effective internal control po.*

Ms. Kapunan. *And when the head of agency, in this instance, the Vice President, says to the SDO, to Ilagan—‘pag sinabi ng Vice President, or DepEd, who is the head of agency: “Ikaw, Special Disbursement Officer, huwag ikaw ang mag-disburse. Ibigay mo iyan sa—ano, security guard—sa security personnel,” knowing or she ought to know, she knows or ought to know as head of agency and as a lawyer, knows or ought to know that the person expressly authorized by law is the only person authorized to disburse public funds. Tama ba iyon? Is that an indication of tight internal controls?*

Ms. Del Campo. *Hindi po.*

Ms. Kapunan. *Going now to—Okay. As I mentioned earlier, pinakitaan ka ng Counsel for the Respondent ng mga PIORs, documents listing activities prior to the receipt of the confidential funds.*

Ms. Del Campo. *Opo.*

Ms. Kapunan. Okay. What now would your assessment be, what would COA's assessment be under the Joint Circular? Will this—what will your assessment be? Allowed *ba ito*?

Ms. Del Campo. Under *po kasi sa* Joint Circular, *kung itong* expenses is before the cash advance, *ito ay* reimbursement, which is a violation *po ng* item 6.1.2—Under *po sa* Joint Circular, *iyong sa* 6.1.2, *sabi po dito*: “in no case shall cash advance for CF and/or IF be utilized as reimbursement of the expenses prior to the granting of the cash advance” *po*.

Ms. Kapunan. Okay. So, these are disallowed expenses. And yet, knowing—knowing that *hindi naman* covered *ito ng kinash* (cash) advance *nila na* confidential funds, *sinabmit* (submit) *pala nila*, *ano iyan*, *sa palagay ko*—*Ano iyan*, *palusot ba iyan*? They are trying to get reimbursement or trying to use activities not covered by the ...

Ms. Ferrer. Your Honor, please.

Ms. Kapunan. ... specific period to justify the liquidation of confidential funds. Apart from what I have said, what is the—

The Presiding Officer. Counsel for Respondent.

Ms. Ferrer. Conclusion of fact, Your Honor, “*Palusot ba iyan?*”

Ms. Kapunan. That is my—

The Presiding Officer. Counsels. Counsels, please.

Ms. Kapunan. Why would you—

The Presiding Officer. On both sides. I think most of the questions being asked have already been answered by the witness repeatedly.

Kindly move to your next point, Attorney Kapunan, if you have other points for redirect so that we can wind up also with the recross and proceed to interjections, so that we can finish with this witness. We are going around repeatedly already on the same conclusions of the witness based on her findings.

Kindly move on, Counsel, please.

Ms. Kapunan. Your Honor, please. As I said earlier, at the start of this impeachment, one of the rules of cross-examination and direct examination or redirect is to know when to stop. This is where I stop, Your Honor. Thank you.

RECROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT

The Presiding Officer. Thank you very much, Counsel.

Counsel for the Respondent, recross.

Ms. Ferrer. Okay, recross. Xylene, *kanina*, *tinanong ka* about the VPSPG receiving rewards from the OVP, *kung ito nga ba ay nangyayari at kung bawal ito* under the JC and *sinabi mo na “bawal ho iyan,” hindi ba*, *sabi mo kanina?*

Okay. *May finding ba kayo sa* Notices of Disallowances *n'yo*, both first and second notices, *na iyong* VPSPG *ay nagre-receive ng* payments for rewards and purchase of information from the confidential funds of the Office of the Vice President? *May findings ho na ganoon?*

Ms. Del Campo. Under the Joint Circular *nga po*, *tama na iyong* payment of reward ...

Ms. Ferrer. Your Honor, please, can the witness—

The Presiding Officer. Kindly answer the question, Xylene. The question is simple.

Ms. Del Campo. *Wala po*.

Ms. Ferrer. How about *sa* DepEd, *may findings ba kayo na iyong* VPSPG *tumatanggap ng* rewards and payment for purchase of information from the confidential funds of the DepEd?

Ms. Del Campo. *Wala din po*.



Ms. Ferrer. Okay. So, *kanina, tinanong ka* about *sa* mandate ng OVP at DepEd, at *tinanong din ng ating* good Counsel *kung ito bang si* OVP, under its mandate, allowed *ba itong* mag-receive ng confidential funds, to which you said "*mukhang hindi ho.*"

Noong 2022, the fourth quarter of 2022, alam ho ba ninyo na ina-approve ng Office of the President ang confidential funds ng OVP?

Ms. Del Campo. Based *po sa* mga documents *na nasabmit* (submit) *sa amin, opo, mayroon pong* approval.

Ms. Ferrer. Okay. *Noong 2023 ho, nasa* General Appropriations Act *po iyong* confidential funds ng OVP. *Tama po?*

Ms. Del Campo. Based *po sa* mga submissions *sa amin, opo, nasa* GAA *po.*

Ms. Ferrer. Okay. In short, *ito po ay in-approve ng ating* Congress, *iyong* GAA. *Tama po?*

Ms. Del Campo. *Opo, tama po.*

Ms. Ferrer. Okay. Does the JC prohibit the Office of the Vice President from receiving confidential funds?

Ms. Del Campo. *Nakalagay po sa* JC *iyong mga* agencies *na may* confidential—

Ms. Ferrer. Just answer my question, directly. Simple lang naman ho, may prohibition ho ba sa JC on the Office of the Vice President receiving confidential funds?

Ms. Del Campo. *Wala po. Wala.*

Ms. Ferrer. How about the Department of Education, may pinagbabawal ba iyong JC na maka-receive ito ng confidential funds, iyong DepEd?

Ms. Del Campo. Based *sa* JC *po, wala po.*

Ms. Ferrer. Okay. So, *tinanong ho kayo kanina* about the OVP, or the SDO, in that regard, disbursing monies in one day in several places. *Sinabi ho isang araw, madaming mga pinaggastusan. Isang date lang iyon, iba't ibang lugar. May findings ho ba nito sa first ND ninyo?*

Ms. Del Campo. *Wala po, kasi we presumed regularity po doon sa* transaction *po.*

Ms. Ferrer. Okay, thank you. How about *sa* second ND *po ninyo, may findings ho ba nito?*

Ms. Del Campo. *Dahil nga po nag-base kami sa* Certification Under Oath ng SDO, *wala po.*

Ms. Ferrer. Okay. So—

The Presiding Officer. Okay.

Ms. Ferrer. Okay. Your Honor, I'm done, Your Honor.

The Presiding Officer. Thank you, Counsel.

QUESTIONS OF SENATOR-JUDGE PADILLA

Senator-Judge Padilla. *Maraming salamat po, Ginoong Tagapamahalang Hukom.*

Sa atin pong saksi, kayo po ay taga-Baguio?

Ms. Del Campo. Yes po, Your Honor.

Senator-Judge Padilla. *Saan po kayo sa* Baguio?

Ms. Del Campo. *Irisan po.*

Senator-Judge Padilla. *Irisan. Opo, ako po ay taga-Baguio rin.*

Saan po kayo nag-graduate, sa—?

Ms. Del Campo. *Saint Louis University po.*

Senator-Judge Padilla. *Ay, alumnus po ako niyan. Sa Boys High po ako.*

Dahil po diyan, hindi ko na lang po kayo pahihirapan. Tayo na lang po ay maging magkababayan sa Baguio.

Gusto ko lamang pong magbigay ng impormasyon na lang sa inyo. Opo, kasi naririnig ko iyong pag-uusap ninyo ng Prosecution at ng Defense tungkol doon sa success noong confidential fund. Ako po ay may mga ibibigay na information sa inyo. Puwede po kayong magsabi na lang ng "oo" o "hindi," kung naintindihan po ninyo. Alam ko namang maiintindihan mo, taga-Baguio ka eh.

Opo, noon pong pinag-uusapan natin iyong patungkol sa mga terorista, napag-uusapan po lagi ang ating Bise Presidente. Ang atin pong Bise Presidente magmula 2016 hanggang 2022, siya po ay naging mayor. Alam ninyo po ba iyon?

Ms. Del Campo. *Opo, mayor ng Davao.*

Senator-Judge Padilla. *Opo. Iyan, opo. Sa Davao po, mayroon po diyan na-identify na 55 na mga tinatawag na alternative at iyong mga Lumad schools na infiltrated ng terrorism. Nabalitaan ninyo po ba iyon?*

Ms. Del Campo. *Hindi ko po gaanong napakinggan po iyon. Hindi po ako aware doon.*

Senator-Judge Padilla. *Opo. At alam n'yo po ba rin na noong 2016 hanggang 2022, hanggang 2023, 12 percent po ng mga NPA rebels, surrenderees were minors, 12 to 17 years old?*

Ms. Del Campo. *Hindi po ako aware doon po.*

Senator-Judge Padilla. *Mauubos na po iyong aking—second round na lang po ako. Salamat, kabayan.*

QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. *Salamat po, Mr. Presiding Officer.*

Ms. Witness, Ms. Xylene, kahit pa po walang confidential at intelligence funds ang OVP, may budget naman po ang VPSG para sa security ng lahat ng Bise Presidente, hindi po ba?

Ms. Del Campo. *Under po yata sila ng—sa pagkakaalam ko po, under po sila ng AFP.*

Senator-Judge Hontiveros. *Under ng AFP. Ngayon, tatlong taon na pong walang intelligence and confidential funds ang OVP. Kung alam ninyo, may VPSPG pa naman pong naka-assign sa kanila para bantayan iyong kaniyang seguridad, hindi ba?*

Ms. Del Campo. *Sa pagkakaalam ko po—nabanggit po kanina ni Presiding Officer napunta siya sa PSC, Presidential Security Command po.*

Senator-Judge Hontiveros. *Okay. Ngayon, iyong mga activities na nandoon sa mga Protective Intelligence Operations Reports na pinakita kanina, may binigay bang mga ebidensiya ang OVP para patunayan na ginastusan nga po nila ang bawat isa noon?*

Ms. Del Campo. *Wala po, kasi in-attach lang po nila iyon as proof of success of information gathering and surveillance activities.*

Senator-Judge Hontiveros. *Okay. Na ayon sa inyo kanina ay hindi pa sasapat doon sa hinahanap ninyong mga proofs of success doon sa intelligence gathering activities na iyon.*

Ms. Del Campo. *Opo, tama po.*

Senator-Judge Hontiveros. *Okay. Ngayon, sa iba namang mga acknowledgment receipts, may nakalagay na purchase of medical and food aid at dati naman medicines. May resibo po ba silang ibinigay para ipakita na talagang ang binayaran o ang binili ay iyong mga gamot o iyong mga pagkain na iyan?*

Ms. Del Campo. *Wala po silang in-attach na any receipts or sales invoice, acknowledgment receipts po.*

Senator-Judge Hontiveros. Ah, kahit sales invoice wala, acknowledgment receipts lamang?

Ms. Del Campo. Opo.

Senator-Judge Hontiveros. So walang ebidensiya na talagang ang pinagkagastusan ay iyong mga gamot at iyong mga pagkain na iyon?

Ms. Del Campo. Opo, kasi based lang doon sa acknowledgment receipts po iyong sinabmit (submit) nila.

Senator-Judge Hontiveros. Na ayon sa COA ay hindi sapat na ebidensiya kung mga ARs lamang?

Ms. Del Campo. Opo, hindi po kasi namin ma-ascertain kung talagang pinambili ito ng supplies, medicines, and food po.

Senator-Judge Hontiveros. Kailangan ninyo resibo o invoices para ma-ascertain, masiguro na iyon talaga iyong pinagkagastusan?

Ms. Del Campo. Opo, tama po.

Senator-Judge Hontiveros. Okay. Ngayon po, Ms. Xylene, dati po tinawag ng LANDBANK managers na unusual iyong pag-encash ng milyon-milyong pisong—daan-daang milyong piso ng OVP at saka ng DepEd sa tig-i-isang araw. Sa audit po ninyo, mayroon po ba kayong nakitang illegal, improper, o irregular sa paggamit at sa pag-liquidate ng perang iyan?

Ms. Del Campo. Irregular po iyong paggamit nila kasi po hindi po ito compliant with the Joint Circular.

The Presiding Officer. Kindly wind up.

Senator-Judge Hontiveros. So just to close on this round, Mr. Presiding Officer, to wind up, irregular dahil?

Ms. Del Campo. Hindi po naging compliant with the joint—

Senator-Judge Hontiveros. Paanong naging hindi compliant?

Ms. Del Campo. Dahil po nga iyong sa payment of rewards were not supported with documents evidencing success, and iyon nga po, hindi nila na-provide iyong additional documents necessary para ma-ascertain iyong purchase of supplies, medical, and food aid. At saka po, mayroon din kaming naging findings sa disbursement—ay, sa reimbursement po.

Senator-Judge Hontiveros. Okay. I-follow up ko itong tanong at pati iyong punto ng reimbursement sa second round.

Salamat, Ms. Xylene. Salamat, Mr. Presiding Officer.

QUESTIONS OF SENATOR-JUDGE VILLANUEVA

The Presiding Officer. Senator-Judge Villanueva, you have two minutes. You may proceed when you are ready, unless Senator-Judge Lapid is ready.

Senator-Judge Villanueva will make use of the time.

Senator-Judge Villanueva. I will give way to Senator Lapid.

Mr. President, thank you.

Ms. Del Campo, sabi ninyo po, iyong COA conducted a compliance audit, at sa evaluation ninyo ng OVP's confidential expenses, which matters po did COA treat as questions of compliance with the Joint Circular? And which matters did COA recognize as falling within the operational judgment of the implementing agency?

Ms. Del Campo. Puwede pong paki-clarify po iyong question?

Senator-Judge Villanueva. Which matters po doon sa pag-conduct ng COA, treating it as questions of compliance with the Joint Circular, and which matters doon po sa paggawa ng COA, recognizing it as falling within the operational judgment ng Office of the Vice President?

Ms. Del Campo. *Iyong pag-e-evaluate po namin ng mga liquidation documents, ibini-base po namin iyon sa Joint Circular. Iyong sa Office of the Vice President po, iyong pag-liquidate po dapat nila, it is based po dapat sa joint—it should be compliant with the Joint Circular.*

Senator-Judge Villanueva. *Dapat pareho lang?*

Ms. Del Campo. *Opo.*

Senator-Judge Villanueva. So, when COA disagreed na iyong OVP's characterization that an activity was confidential, necessary, and successfully accomplished, what specific standards po iyong ina-apply ninyo?

Ms. Del Campo. The Joint Circular po ang basis ng aming audit.

Senator-Judge Villanueva. Wala na pong ibang separate COA guidelines?

Ms. Del Campo. Ginagamit din po namin iyong Rules and Regulations on Settlement of Accounts.

Senator-Judge Villanueva. I'm sorry?

Ms. Del Campo. The Rules and Regulations on Settlement of Accounts.

Senator-Judge Villanueva. And ito po, same standards applied consistently to all the transactions reviewed.

Ms. Del Campo. *Opo, tama po.*

Senator-Judge Villanueva. *Salamat po. Kapag nag-issue po ang COA ng Notice of Disallowance, maaari pa po ba itong ma-cure simply by correcting, replacing, or subsequently submitting supporting documents?*

Ms. Del Campo. *Iyong sa Notice of Disallowance po, appeal po sa Commission Proper ang remedy po ng isang agency.*

Senator-Judge Villanueva. So, kailangan kang dumaan, provided ng COA rules, para ma-lift o ma-reverse iyong ND, is that correct? Can you explain the process?

Ms. Del Campo. *Kapag nag-issue po kasi si ICFAO ng Notice of Disallowance, may demand na po to reconstitute the amount, pero may remedy pa din po iyong agency na mag-appeal po sa Commission Proper. Iyon—*

Senator-Judge Villanueva. Commission Proper or COA director?

Ms. Del Campo. Commission—iyong sa case po ng ICFAO, diretso na po kami—diretso na po sa Commission Proper ang appeal.

Senator-Judge Villanueva. *Tapos, puwedeng mag-MR?*

Ms. Del Campo. *Kung magkakaroon po ng decision, kung gaya nga po ng nangyari sa fourth quarter 2022 na mayroon silang—iyong decision is na-affirm iyong ND, opo, mayroon pa pong remedy na MR.*

Senator-Judge Villanueva. *Tapos, puwedeng mag-judicial review sa SC?*

Ms. Del Campo. *'Pag—Petition for Certiorari po.*

Senator-Judge Villanueva. Okay. So, iyon pong pag-correct o pag-submit ng additional document ay hindi, by itself, equivalent sa legal lifting or reversal ng ND.

Ms. Del Campo. *Depende po iyan sa evaluation na po ng—sa Commission Proper.*

Senator-Judge Villanueva. *Kailangang aksyunan ng Proper COA.*

Ms. Del Campo. *Opo.*

Senator-Judge Villanueva. *Malinaw po iyon. Last na po. Para malinaw po sa ating lahat. Kung ang isang agency ay nag-classify ng isang activity as confidential, bound po ba ang COA sa classification na ito o bilang constitutional audit body, hindi po?*

Ms. Del Campo. *Iyong sa confidentiality po, kapag naipasa naman po sa amin, iniingatan din po namin iyong mga documents na nasa-submit sa amin. And what we do po is iyong kung tama ba iyong paggamit noong confidential fund na ibinigay po sa isang ahensya.*

Senator-Judge Villanueva. *Ulitin ko po iyong tanong. Ulitin ko po iyong tanong: Hindi kayo bound? Hindi kayo bound na ang isang ahensiya, dineclare (declare), "Confidential funds ito." Hindi kayo bound dahil as a constitutional body, mayroon po kayong independent evaluation as Commission on Audit para iyong—malaman kung isang ngang activity at expenditure ay talagang confidential in nature at pasok ito sa definition at allowable uses under the Joint Circular.*

Ms. Del Campo. *Yes po, kasi itong confidential fund is pondo po ng bayan na kailangan ma-audit at magkaroon ng proper—maging—among tawag dito? Ma-check kung ito ay nagamit ba sa tama po.*

Senator-Judge Villanueva. *Again, hindi kayo bound? Kapag dinekleyr (declare) ng isang ahensiya, "Ito, confidential funds," hindi kayo bound?*

Ms. Del Campo. *Hindi po, kasi nga kailangan i-liquidate pa rin po properly.*

Senator-Judge Villanueva. *Tama po iyon, and I support that. Sa Constitution, Article IX-D, Section 2—1 and 2, "COA has the power and duty to examine, audit, and settle accounts involving government funds and the exclusive authority"—kayo ho 'yung may exclusive authority—"to define the scope of your audit." Is that correct?*

Ms. Del Campo. *Opo, tama po.*

Senator-Judge Villanueva. *So, ibig sabihin, ang polisiya po ninyo, hindi po sapat na tawaging confidential ng isang ahensiya ang isang activity, subject pa rin po ito sa independent audit determination ng Commission on Audit. Is that correct?*

Ms. Del Campo. *Yes po, tama po, dahil nga po ito ay pondo ng bayan at kailangan po na ma-audit ito nang tama.*

Senator-Judge Villanueva. *At noong ginawa po ninyo ito, ilang beses po silang nabigyan ng pagkakataon para sumagot?*

Ms. Del Campo. *Iyong sa First—Fourth Quarter '22, dumaan po ito ng AOM, naging NS, naging ND.*

Iyong sa 2023 naman po, AOM tapos naging ND dahil nga po may direct violation of the Joint Circular.

Senator-Judge Villanueva. *Salamat po sa pagklaro ng proseso. Salamat.*

Ms. Del Campo. *Thank you po.*

The Presiding Officer. *Senator-Judge Pangilinan, you may proceed with your interjection when you are ready. You have two minutes, Sir.*

QUESTIONS OF SENATOR-JUDGE PANGILINAN

Senator-Judge Pangilinan. *Thank you. Magandang hapon, Ma'am.*

Sa usapin noong December 21 to December 31, 2022 na ginastos 'yung P125 million, kapag hindi naubos iyong P125 million doon sa—by December 31, among mangyayari sa pondo?

Ms. Del Campo. *Babalik po iyon sa National Treasury.*

Senator-Judge Pangilinan. *So, ibig sabihin, hindi maibabalik as savings ng OVP; babalik sa National Treasury?*

Ms. Del Campo. *Opo.*

Senator-Judge Pangilinan. *I'm trying to understand bakit—hindi ba, ang ikli noong panahon, which you mentioned maikli iyong 11 days, but wala kayong finding.*

Ngayon, kung halimbawa nagsumite sila ng mga dokumento para mapatunayan na tama lahat noong ginastos noong 21 to 31, 'di walang issue, hindi ba? Kung na-submit nila 'yung mga hinihiling n'yong additional documents.

Ms. Del Campo. Yes po.

Senator-Judge Pangilinan. Okay. Pero dahil hindi nila sinumite, hindi n'yo alam kung tama nga ba 'yung gastos noong December 21 to December 31. Tama?

Ms. Del Campo. Opo, dahil hindi po nila na-explain mabuti.

Senator-Judge Pangilinan. Yes. Okay. Of course, hindi n'yo malalaman kung illegal o irregular, pero hindi n'yo rin malalaman kung legal o regular.

Ms. Del Campo. Doon po siya magfo-fall sa irregular kasi nga po hindi siya compliant with the Joint Circular.

Senator-Judge Pangilinan. Okay. Hindi n'yo malalaman kung napunta sa personal use o hindi, tama? That is why you are asking for more documents.

Ms. Del Campo. Opo, tama po.

Senator-Judge Pangilinan. Okay, okay. So, kaya siguro—well, so kung hindi niya nagastos, babalik.

Ms. Del Campo. Opo, sa National Treasury.

Senator-Judge Pangilinan. At hindi niya maaaring gastusin sa January.

Ms. Del Campo. Hindi na po.

Senator-Judge Pangilinan. Hindi rin niya maaaring gastusin before December 21.

Ms. Del Campo. Ay, hindi po, kasi bawal po ang reimbursement.

Senator-Judge Pangilinan. So, talagang doon mo lang magagastos.

Ms. Del Campo. Yes po, doon sa nakalagay na period of utilization of the cash advance.

Senator-Judge Pangilinan. Which could be valid dahil iyon nga lang ang panahon or invalid. Dangan nga lang, kaya kayo humihingi ng dagdag na dokumento, para malaman natin kung valid ba o hindi.

Ms. Del Campo. Opo, tama po.

Senator-Judge Pangilinan. Okay. Iyong usapin ng protective, ano, intelligence operations. Okay. Dati wala namang confidential funds ang OVP, tama? I mean—

Ms. Del Campo. Opo, magmula noong nag-start po ako sa ICFAO.

Senator-Judge Pangilinan. Pero dati mayroon nang protective services ang OVP.

Ms. Del Campo. Sa pagkakaalam ko po, walang—'yung under the PSG po 'ata sila.

Senator-Judge Pangilinan. Yes. So, 'yung gastos para sa security, dati sa PSG.

Ms. Del Campo. Opo.

Senator-Judge Pangilinan. Pero nga—pero dito, lumalabas, 'yung casing, security, appointment ay ginastos o ginamit 'yung confidential funds. Tama ba iyon?

Ms. Del Campo. Opo.

Senator-Judge Pangilinan. Next round na lang po.

The Presiding Officer. Thank you, Senator-Judge Pangilinan.

Senator-Judge Aquino may proceed with his interjection when he is ready. You have two minutes, Sir.

QUESTIONS OF SENATOR-JUDGE AQUINO

Senator-Judge Aquino. *Maraming salamat, Mr. Presiding Officer.*

Magandang araw po.

Ms. Del Campo. *Good afternoon po.*

Senator-Judge Aquino. *Okay. So, sa inyo pong determinasyon sa inyong opisina, mayroon pong mga disallowances tungkol po sa kategorya noong mga gastos, kung sino po 'yung nag-disburse, pero hindi po naging rason ng disallowance 'yung mga kakaibang pangalan. Tama po ba?*

Ms. Del Campo. *Opo, tama po.*

Senator-Judge Aquino. *Okay. Pero nakita po n'yo na may mga pangalan na kakaiba. May Piattos, may Bacon, Heart, Keso, at kung ano-ano. Hindi n'yo po naisip na baka red flag po ito?*

Ms. Del Campo. *Dahil nga po ang audit namin is compliance lang po, hindi na po namin bineripay (verify) 'yung identity noong nakatanggap po.*

Senator-Judge Aquino. *Hindi n'yo bineripay (verify), pero noong nakikita n'yo or noong nakikita mo, hindi mo ba naisip na posibleng red flag itong mga pangalan na ito?*

Ms. Del Campo. *We presume po kasi regularity, kasi po mayroong certification under oath 'yung SDO na this was used for the confidential operations of the agency and these are necessary and for legal purpose po 'yung naging paggastos ng confidential fund.*

Senator-Judge Aquino. *Okay. So, nag-consult na kasi 'yung iba naming abogado kay former Commissioner Heidi Mendoza. At sabi niya, kapag may mga kakaibang pangalan, the COA can trigger an investigation because of fraud. So, hindi n'yo po ginawa iyon, 'no? Walang usapin ng investigation because of fraud?*

Ms. Del Campo. *Iyong sa fraud audit po kasi, pinag-aaral—'yung possibility po, pinag-aaralan pa kasi kung magpo-fraud audit po, this is the first time. And 'yung documents po, 'yung transactions involving the OVP and DepEd po, contains voluminous documents na with sensitive information na 'pag naibigay po sa ibang opisina, baka po magiging exposed siya.*

Senator-Judge Aquino. *Okay. So, ulitin ko, ha. So, hindi kayo nag-trigger ng investigation of fraud, or nag-trigger kayo?*

Ms. Del Campo. *Wala pa po, pinag-aaralan pa po with the chairperson.*

Senator-Judge Aquino. *Ah, pinag-aaralan. So, it's possible na magkaroon pa ng investigation due to fraud?*

Ms. Del Campo. *Opo. Gaya nga po ng sinasabi ko, pinag-aaralan pa lang po, at kung kinakailangan po, puwede pong mag-fraud audit.*

Senator-Judge Aquino. *Okay. Let me ask about what is fraud, 'no? Ano 'yung fraudulent? Iyong paggamit ba ng alias ay fraudulent? Ito ba ay bawal or illegal?*

Ms. Del Campo. *Doon po sa Joint Circular, silent po kasi ang Joint Circular as to the use of alias po. Pero ang binabantayan po dito is dapat naibigay po ito sa totoong tao at nagamit sa tamang confidential expense.*

Senator-Judge Aquino. *Okay. Thank you. Thank you for that.*

So, kung nagamit ito sa talagang nakalagay doon, hindi ito fraudulent. Pero kung ito ay hindi naman nagamit doon sa nakalagay at, kunwari, nabulsa lang, fraudulent iyon. Correct, 'no?

Ms. Del Campo. *Opo, tama po.*

Senator-Judge Aquino. *Okay. So, 'yung bawat isang pangalan, dapat ba mayroon ding one-is-to-one na totoong tao sa likod noon? Or puwede, kunwari, may alokasyon ng P10 million, tapos hinati-hati sa tagti-P300,000 pero isang tao lang talaga iyon? Iyon po ba fraudulent?*

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Ms. Del Campo. *Ang kuwan ko po doon is isang tao lang 'yung nakatanggap based doon sa acknowledgment receipt po na iyon.*

Senator-Judge Aquino. *Okay. So, sa inyo pong professional opinion, kailangan po 'yung bawat AR ay may katumbas na totoong tao kung iyon man ang kaniyang pangalan, o mayroon siyang iba o mayroon siyang totoong pangalan. At 'yung nakalagay doon sa report na activity, iyon dapat talaga 'yung nagawa. Tama po ba?*

Ms. Del Campo. *Opo, tama po.*

Senator-Judge Aquino. *Okay. Are you aware, Madam Witness, na mayroon tayong batas na nagbabawal ng paggamit ng alias?*

Ms. Del Campo. *Hindi po ako—hindi po ako familiar doon sa law.*

Senator-Judge Aquino. *Okay. There is a law, actually, R.A. 6085, na nagbabawal ng paggamit ng alias, at nais din naming alamin kung ito ba ay pertinent dito sa usapin ng confidential and intelligence funds, at aalamin po namin iyan. Maybe for the second round.*

Maraming salamat, Madam Witness.

The Presiding Officer. *Thank you, Senator-Judge Aquino.*

Senator-Judge Erwin Tulfo, you may proceed with your interjections. You have two minutes, Sir.

QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E). *Magandang hapon po, Ginang Witness.*

Ms. Del Campo. *Good afternoon po.*

Senator-Judge Tulfo (E). *Para po sa kaalaman ng mga kababayan ho natin, 'pag sinabi ng COA, "disallowance," ano pong ibig sabihin po nito?*

Ms. Del Campo. *Sa disallowance po, ibig sabihin, hindi ito pinayagan sa audit po. So, sa ICFAO po, 'pag nag-issue na kami ng disallowance, may demand na po to—na ibalik 'yung pondo ng bayan.*

Senator-Judge Tulfo (E). *Okay. Na ibalik ang pondo.*

Sumagot naman po sila, ang OVP, noong nag-issue kayo ng disallowance? Sumagot ba—iyong mga kakulangan na dokumento naibigay ba nila?

Ms. Del Campo. *Ang naging remedy po nila is mag-appeal po sa Commission Proper.*

Senator-Judge Tulfo (E). *Ano pong nangyari doon sa Commission Proper?*

Ms. Del Campo. *Iyong sa 2022 transaction po, nagkaroon po ng desisyon ang Commission Proper at in-affirm po nila 'yung Notice of Disallowance.*

Senator-Judge Tulfo (E). *Okay, so sinabi n'yo kailangan ibalik po 'yung pondo, tama po ba, when you say "disallowed?"*

Ms. Del Campo. *Opo.*

Senator-Judge Tulfo (E). *Naibalik po ba?*

Ms. Del Campo. *Hindi po. Kasi ang remedy pa po nila na sa—puwede pa po silang ano, may remedy pa po sila na mag-appeal. So, iyon po. Tapos ang nangyari doon sa 2022, may decision, mayroon po silang ifinayl (file) na Motion for Reconsideration na pending resolution po.*

Senator-Judge Tulfo (E). *Sa COA po ba o sa SC?*

Ms. Del Campo. *Sa Commission Proper pa din po.*

Senator-Judge Tulfo (E). *Commission Proper. So, iyon po, nakalabas na po ba ng desisyon ang Commission Proper?*

Ms. Del Campo. *May pending MR pa po sila.*

Senator-Judge Tulfo (E). *May pending.*

Magkano po 'yung total na inaanatay natin na ibalik ng OVP at DepEd?

Ms. Del Campo. *Iyong sa OVP po, P73,287,000 'yung fourth quarter. Iyon po palang sa 2023, na-issue po kasi namin iyong ND is March 31, 2026. Within the prescribed period pa po sila ng 180 days to appeal po sa Commission Proper.*

Senator-Judge Tulfo (E). *Kaya nga po, ang tanong natin—bukod sa OVP, mayroon din po tayong pinag-uusapan sa DepEd, hindi po ba? Magkano po itong total, kung alam ho n'yo, ang kailangang ibalik, ang inaanatay n'yo?*

Ms. Del Campo. *Iyong sa DepEd po kasi, may na-issue kaming credit notice doon sa first and second quarter; tapos, 'yung sa third quarter po under review and evaluation pa po.*

Senator-Judge Tulfo (E). *Kaya nga po, magkano? Alam n'yo po ba?*

Ms. Del Campo. *Iyong sa DepEd po is P112.5 million.*

Senator-Judge Tulfo (E). *From 2022 to 2023 po iyon?*

Ms. Del Campo. *Wala po silang budget for '22. First to third quarters po ng '23 'yung sa DepEd.*

Senator-Judge Tulfo (E). *One hundred twelve. Sa DepEd po, magkano 'yung inaanatay n'yo?*

Ms. Del Campo. *Iyon po 'yung P112.5 million.*

Senator-Judge Tulfo (E). *Sa OVP po?*

Ms. Del Campo. *Sa OVP po is P375 plus P73.287 million po.*

Senator-Judge Tulfo (E). *So, magkano pong total lahat?*

Ms. Del Campo. *Hindi ko na po—mga four million—ay P400 plus.*

Senator-Judge Tulfo (E). *Four hundred fifty.*

Ms. Del Campo. *Opo.*

Senator-Judge Tulfo (E). *Okay. So, iyon ang inaanatay po n'yo.*

Ms. Del Campo. *Iyong sa OVP po, opo.*

Senator-Judge Tulfo (E). *So, hanggang ngayon, inaanatay po n'yo?*

Ms. Del Campo. *Opo kasi may mga remedies pa po sila na—*

Senator-Judge Tulfo (E). *Okay. All right.*

Maraming salamat po. Iyon lang po.

The Presiding Officer. Senator JV Ejercito, you may proceed with your interjections. You have two minutes, Sir. You may proceed when you're ready.

QUESTIONS OF SENATOR-JUDGE EJERCITO

Senator-Judge Ejercito. *Yes, magandang hapon.*

Ms. Del Campo. *Good afternoon po.*

Senator-Judge Ejercito. *Siguro first question lang, is it allowed for a disbursement to be validly spent and still be disallowed by COA? Iyong disbursement—sorry, disbursement to be validly spent and still be disallowed by COA for want of documentation. Iyong, kumbaga, posible ba na nagastos naman nang tama ang pondo, pero disallowed pa rin ito ng COA dahil kulang ang mga dokumentong nagpapatibay ng pagkakagastos?*

Ms. Del Campo. *Opo.*

Senator-Judge Ejercito. *So, posible pala iyon.*

Halimbawa, nawala ang resibo, ganoon, kaya hindi maipasa ng COA. Ibig sabihin, automatic na disallowed na ito pag nawala?

Ms. Del Campo. *Puwede pong pakiulit?*

Senator-Judge Ejercito. *Halimbawang nawala—ganoon ba 'yung ano, 'yung ibig n'yong sabihin, 'pag nawala 'yung resibo, automatic na madi-disallow ang ginastos dahil wala na itong maipapakita; wala nang katibayan?*

Ms. Del Campo. *Kung sa pagbabasehan po 'yung sa Joint Circular, 'yung sa disallowance po, kasi hindi siya naging compliant with the Joint Circular, kaya—*

Senator-Judge Ejercito. *Opo. Sige lang po.*

Ms. Del Campo. *Tapos doon po sa sinasabi n'yo na nawala 'yung resibo, doon po kasi hindi natin matse-check, maa-asertain kung talagang ginamit ba ito, kung sa purpose na iyon po without 'yung receipt na iyon.*

Senator-Judge Ejercito. *Tapos, napansin ko rin po sa 'yung testimony, 'yung period ng December and New Year season. Sa iyo bang eksperyensiya, ito ba ay normally na nagkakaroon ng increase sa paggastos ng—kasi ito 'yung tungkol sa confidential. At nagkaroon ng ano eh, ng parang pag-spike, 'no, noong Christmas season, base doon sa iyong presentation. Normal ba ito sa ibang ahensiya rin?*

Ms. Del Campo. *Iyon po kasi sa ibang ahensiya, as a general, doon po sila sa three-month period po. Doon po 'yung paggastos nila.*

Senator-Judge Ejercito. *So, 'yung sa, 'yung—kasi madalas kapag Christmas season, iyan 'yung peak season sa karamihan ng paggastos. So, 'yung sa confidential and other—itong pinag-uusapan nating mga pondo rito, ganoon din ba? Mayroon bang-normal ba na ganoon ang karamihan na ginagastos na panahon na lumalaki?*

Ms. Del Campo. *Hindi po.*

Senator-Judge Ejercito. *Tapos, 'yung COA nag-issue po ng Notice of Disallowance. Is it directing the officers namely—i-clarify lang, na ibalik lang 'yung pera on a personal capacity, kapag nag-issue kayo ng Notice of Disallowance?*

Ms. Del Campo. *Pinapabalik po doon sa mga persons liable po sa transaction, gaya nga po doon sa ND, 'yung Head of Agency, 'yung SDO, accountant, and—opo.*

Senator-Judge Ejercito. *Tapos, is it our understanding or correct that the agency, office with confidential funds cannot advance its payment, only to be reimbursed later? Puwede ba 'yung ganoon na i-reimburse na lang kung nauna nang gastusin?*

Ms. Del Campo. *Ang reimbursement po hindi po ito pinapayagan sa Joint Circular.*

Senator-Judge Ejercito. *Hindi po—so, ito disallowed kaagad?*

Ms. Del Campo. *Opo.*

Senator-Judge Ejercito. *Kasama po ito sa mga dinis-allow n'yo?*

Ms. Del Campo. *Kung may reimbursement po, opo.*

Senator-Judge Ejercito. *Last na po. In your experience sa inyo pong confidential fund expenses, have you come across with other agencies sa ibang ahensiya na nagastos 'yung ganito karami in such a period? Kasi mayroon doon 11 months na parang na-reiterate sa mga nabasa ko lang po na ganoon kabilis din po.*

Ms. Del Campo. *Iyong sa ibang agency po, hindi ko na po siya puwedeng i-disclose kasi part na po ng audit ng—*

Senator-Judge Ejercito. *That's all, Mr. Presiding Officer.*

The Presiding Officer. *Thank you, Senator-Judge Ejercito.*

Senator-Judge Raffy Tulfo, you may proceed when you're ready, Sir. You have two minutes. Thereafter, our Senate President, thereafter, Senator Lacson.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Madam Witness, *pag-usapan natin 'yung safehouses ng OVP. Based doon sa records ng House of Representatives noong 2022, 'yung OVP ay gumastos ng P16 million sa confidential funds para sa bayad o rental ng mga safehouses, correct?*

Ms. Del Campo. *Opo, tama po.*

Senator-Judge Tulfo (R). *At ilang safehouses ito?*

Ms. Del Campo. *Puwede po ba ma-check ko 'yung records ko?*

Senator-Judge Tulfo (R). *Go ahead po. Tulungan na lang kita para mas mapabilis, 34.*

Ms. Del Campo. *Opo, 34 na safehouses, P16 million.*

Senator-Judge Tulfo (R). *Sixteen million. Ilang araw?*

Ms. Del Campo. *Eleven days po.*

Senator-Judge Tulfo (R). *Eleven days. Okay. Kasi, Madam Witness, base sa 2022 real estate data, ang real estate property, halimbawa sa Forbes Park, P450,000 a month, i-divide mo iyan sa everyday just P15,000 a day. Corinthian, P200,000 a month, divided by that in per day, P6,666. Sa Ayala Alabang P290,000 per month, per day lalabas iyan na P9,666. Ito ba 'yung mga nirentahan ng OVP na safehouses nila, galing ba sa mga nasabi kong exclusive subdivisions?*

Ms. Del Campo. *Wala pong inilagay na addresses noong kanilang safe house. Iyong acknowledgment receipts lang po 'yung naging basehan namin doon sa payment of rental of safehouse.*

Senator-Judge Tulfo (R). *Pero hindi sinabi whether Forbes Park, Amanpulo, Boracay, mga ganoon, Dasmariñas, wala talaga?*

Ms. Del Campo. *Wala po.*

Senator-Judge Tulfo (R). *So, ibangga mo iyan sa mga ibang agencies na nagli-liquidate para sa kanilang mga safehouses. Mayroon bang ganoong klaseng mga amount na idineklara? Mayroon bang mga amount na ganoon?*

Ms. Del Campo. *Wala po. Hindi po ganoon kalaki.*

Senator-Judge Tulfo (R). *So, walang ganoon kalaki. So, what do you think of this? Is this excessive, abusive, or out-of-this-world amount, base po sa inyong experience?*

Ms. Del Campo. *Ito po kasi is hindi namin naging findings. Kasi po nag-rely lang po kami doon sa certification ng SDO na these were used for the disbursement of CF and necessary po ito and for legal purpose. Pero kung dito po, malaki po talaga siya for payment of rental of safehouse.*

Senator-Judge Tulfo (R). *Kasi lumilitaw parang P42,780 per day ang bayad ng OVP para sa kanilang mga rental properties noong 2022, sa halagang P16 million na-spend nila in the 11 days.*

Senator-Judge Tulfo (R). *Now, sa paggamit ng mga aliases, silent ang joint circular sa paggamit ng mga kengkoy na mga aliases para sa mga informants na tumatanggap ng confidential funds, right?*

Ms. Del Campo. *Opo, silent po ang joint circular.*

Senator-Judge Tulfo (R). *Silent din ba ang joint circular sa paggamit ng iisang signature sa napakaraming pangalan?*

Ms. Del Campo. *Wala pong naging provision ang joint circular doon sa mga pirma po.*

Senator-Judge Tulfo (R). *So okay lang gumamit ng isang pirma sa napakaraming informants, pangalan ng informants?*

Ms. Del Campo. *Dapat po ito ay maibigay sa totoong tao po. Iyon po ang importante sa joint circular.*

Senator-Judge Tulfo (R). *So therefore, dapat i-amend na lang iyong joint circular kasi naabuso eh?*

Ms. Del Campo. *Opo.*

Senator-Judge Tulfo (R). *Maraming salamat po.*

QUESTIONS OF SENATOR-JUDGE GATCHALIAN

The Senate President. Thank you, Mr. Presiding Officer.

Magandang hapon, Ms. Xylene. Tama po ba — narinig ko kahapon na kaya na-disallow iyong OVP for 2023 amounting to 375 million is dahil ibinigay ni Acosta kay Lachica iyong pera?

Ms. Del Campo. *Yes po, Your Honor.*

The Senate President. *Okay. So, lahat iyon dinis-allow, iyong 375?*

Ms. Del Campo. *Opo.*

The Senate President. *Tinitingnan ko rin itong transcripts ng House kung saan sinabi ni Acosta na iyong fourth quarter of 2022 ibinigay rin iyong 125 million kay Lachica. At on the same transcript, November 25, 2024, sinabi naman ni Fajarda na ibinigay iyong 37.5 million kay Colonel Nolasco. So, in both instances, iyong fourth quarter of 2022 at saka iyong buong DepEd confidential funds, ibinigay ng special disbursing officer sa iba. Kung ganyan rin ang sitwasyon, dapat ma-disallow rin iyong fourth quarter ng 2022 at buong DepEd confidential funds. Tama po ba?*

Ms. Del Campo. *Iyon po kasing sa disallowance ng sa DepEd, hindi ba po mayroon na kaming na-issue na credit notice? And dahil nga po sa additional information after namin ma-release iyon, August 2024 po kasi iyon, November 2024 nagkaroon ng CGPA. So pinag-aaralan pa po kasi this is the first time po kung sakali man na magre-reopen kami ng settled accounts. And ito po kasing reopening is with the authority of the COA chairperson kaya po pinag-aaralan po kung ito ay ire-reopen dahil nga po it is the first time and this involves voluminous documents na kailangang isa-isahin po.*

The Senate President. *Hindi, pero 'pag titingnan natin iyong circumstances pareho eh.*

Ms. Del Campo. *Opo, tama po.*

The Senate President. *Ibinigay iyong pera kay Lachica, ibinigay iyong pera kay Nolasco. Kung ganoon ang susundan natin na rasyonal, pwedeng ma-disallow rin iyong fourth quarter OVP at buong DepEd confidential funds. Tama?*

Ms. Del Campo. *Yes po, tama po.*

The Senate President. *So, puwedeng ma-disallow buong 612.5 million na confidential funds sa OVP at sa DepEd. Tama?*

Ms. Del Campo. *Yes po, tama po.*

The Senate President. *At iyan ay dapat ibalik ng mga accountable officers?*

Ms. Del Campo. *Opo, tama po.*

The Senate President. *Bakit mahalaga ang papel ng special disbursing officer?*

Ms. Del Campo. *Iyong special disbursing officer po kasi, siya iyong may responsibility to disburse iyong cash advance. And doon po kasi sa nangyari sa DepEd at saka sa OVP, noong irinansfer (transfer) po niya ito sa ibang tao, naputol na po iyong chain of accountability. Nawala na po iyong—wala na siyang personal knowledge kung talaga bang ibinigay—ginamit*

ito noong mga security officers na pinagbigyan for confidential activities po talaga. And mababalewala iyong certification na "this is for the confidential operations of the agency" po and legal and necessary iyong naging gastos po.

The Senate President. In your opinion ngayon na ibinigay ito sa non-special disbursing officer, anong puwedeng mangyari sa pondo na, sabi mo kahapon, public funds?

Ms. Del Campo. Dahil nga po naging mali iyong paggasta nito, kailangan pong ibalik ito sa pondo ng bayan.

The Senate President. Hindi, kung binigay sa non-SDO, anong puwedeng mangyari doon sa pondo?

Ms. Del Campo. Puwede po itong magamit sa hindi dapat paggamitan na hindi for confidential expenses. May risk po na ganoon.

The Senate President. All right. Thank you, Mr. Presiding Officer.

QUESTIONS OF SENATOR-JUDGE LACSON

Senator-Judge Lacson. Good afternoon, Xylene.

Ms. Del Campo. Good afternoon po.

Senator-Judge Lacson. I assume familiar ka doon sa Article IV, Section 15 ng inyong joint circular. Ayan, ipinlash (flash) ko na lang sa screen para ma-remind ka. Pay attention sa paragraph 15.2, paragraph 2 at saka paragraph 3. Pakibasa mo na lang para hindi ma-charge sa akin.

Ms. Del Campo. "That expenses were incurred in connection with the agency's intelligence or confidential operations and activities with supporting documents attached to the liquidation for CF and for the IF, documentary evidence of payment kept in a sealed envelope in the vault in the office of the SDO."

Senator-Judge Lacson. Sige, sa paragraph 3.

Ms. Del Campo. "That the details and supporting documents of transactions that are classified are in the custody of the agency and kept in its vault which may be inspected by ICFAO if the circumstances so demand."

Senator-Judge Lacson. Ang tanong ko, ginawa ninyo ba ito?

Ms. Del Campo. Iyong sa inspection po kasi ng vault, sa IF na po iyon. Sa use ng—

Senator-Judge Lacson. Hindi, ICFAO ito ah. Sinasabi, "if the circumstances so demand." Hindi ba dine-demand ng circumstances na inspeksyunin ninyo iyong vault dahil maraming aliases?

Ms. Del Campo. Iyong sa vault po kasi, nagpe-pertain po iyon sa intelligence fund, iyong may vault po sa office.

Senator-Judge Lacson. No, CF at saka IF ito. Hindi lang intelligence. Parehong treatment, Ms. Xylene. Four fifteen. Ang tanong ko lang, hindi ba dine-demand o dinemand (demand) ng circumstances na inspeksyunin ninyo iyong vault? Kasi kung maraming aliases na nagdududa kayo, hindi ba natural lamang logically isipin ninyo, "mainspeksyon nga iyong vault kung mayroon talagang mga totoong tao sa likod ng mga alias o aliases."

Ms. Del Campo. Ang pag-inspect po kasi is through the authority po of the chairperson.

Senator-Judge Lacson. I know. Hindi kayo kumuha ng authority?

Ms. Del Campo. Wala pa po.

Senator-Judge Lacson. Yeah. My point is, parang kulang iyong ginawa ninyong trabaho. Parang hindi kumpleto.

Ms. Del Campo. Kasi po may iba po kasing office na—

Senator-Judge Lacson. No, ICFAO ang sinasabi rito, "may be inspected by ICFAO, if the circumstances so demand."

Ms. Del Campo. Opo.

Senator-Judge Lacson. Anyway, let's leave it at that.

Familiar ka ba doon sa 2020-005?

Ms. Del Campo. Anong circular po iyon?

Senator-Judge Lacson. Iyong sa fraud audit.

Ms. Del Campo. Hindi po ako gaanong familiar doon sa joint circular.

Senator-Judge Lacson. Yeah. Anyway, i-familiarize kita. Mayroon kayong office, hindi ba, iyong fraud audit office?

Ms. Del Campo. Opo, may separate office po sa COA.

Senator-Judge Lacson. Okay. Dito sa paragraph 3.1, of course ito, people's participation ito eh.

Ms. Del Campo. Opo.

Senator-Judge Lacson. Kailangan mayroong formal complaint. Pero hindi lang complaint—information, indication or complaint na mayroong fraud.

Ms. Del Campo. Opo.

Senator-Judge Lacson. So papasok iyong fraud audit investigation ng inyong office. Hindi office ninyo. Iyong fraud—

Ms. Del Campo. Ibang office po.

Senator-Judge Lacson. Yeah. Pero nakalagay sa 3.1, "any person who has knowledge that the transactions of," et cetera, ay pwedeng gumawa ng written information sa office na iyon para mapunta doon sa logical conclusion, mapunta sa filing of criminal charges against whoever, not necessarily the vice president.

Ms. Del Campo. Iyong sa pag-refer po sa fraud audit office, ito po ay pinag-aaralan din po kung kinakailangan na i-refer ito sa fraud audit office. Ngayon po, pinag-aaralan po ng office namin together with the chairperson po. Kasi kung sakaling mai-refer po ito, ito po iyong first time. And also po, itong transaction na ito involves voluminous documents na with classified information na baka pag ini-refer namin sa ibang office is ma-expose po ito. So, pinag-aaralan po itong mabuti muna.

Senator-Judge Lacson. Anyway, isa na lang tanong, balikan ko iyong sa 4.15.

Hindi ninyo ba naisip man lang na kung na-inspect ninyo iyong vault, kumuha kayo ng mga specimen, iyon iyong mga questioned document, iyong mga signatures? Ma-compare ninyo sana doon sa mga ibang officials na mayroon kayong specimen signature para ma-determine ninyo kung forged iyong mga signatures na sinabmit (submit) sa inyo.

Iyon lang, Mr. Presiding Officer, Mr. Chairman.

The Presiding Officer. Kindly answer the question, Xylene.

Ms. Del Campo. Opo. Ire-refer po namin sa higher authority po. Thank you po.

QUESTIONS OF SENATOR-JUDGE ESCUDERO

The Presiding Officer. The Chair would just like to make some interjections. We will not have round two anymore because we have to convene session at 4:15, so that we can dispense with the witness already.

Just a few questions, Xylene. Wala pang NFD lahat ng pondong pinag-uusapan natin? Fourth quarter of 2022, the first three quarters of 2023 for DepEd and OVP.



Ms. Del Campo. *Opo, wala pa pong NFD.*

The Presiding Officer. *So wala pang final decision lahat ng ito.*

Ms. Del Campo. *Opo, tama po.*

The Presiding Officer. *Kapag sinabi ninyong nag-demand kayo ng restitution, ang ibig sabihin lang naman nito, kinarga ninyo na as unliquidated cash advance iyong mga dinis-allow (disallow) ninyo?*

Ms. Del Campo. *Opo, tama po.*

The Presiding Officer. *Iyon lang naman po ang ibig sabihin noon, hindi ba? Hindi naman ibig sabihin, isauli mo, ibigay mo iyong pera sa akin. Ibig sabihin noon, ilalagay namin iyan as unliquidated cash advance during the pendency of the notice of disallowance?*

Ms. Del Campo. *Yes po, kasi may mga remedies pa po sila.*

The Presiding Officer. *Kasi hindi pa nga final at wala pang NFD, tama po?*

Ms. Del Campo. *Opo.*

The Presiding Officer. *Pangalawa, ano po bang pagkakaiba ng disbursement sa transfer? Iligal mag-transfer ng pera ang SDO sa isang non-SDO, pero puwede po ba siyang mag-disburse sa isang non-SDO o unbonded na tao?*

Ms. Del Campo. *Hindi din po puwede. Hindi rin po niyang ibigay iyon sa unbonded na tao, iyong—*

The Presiding Officer. *Recipient na po iyon, eh.*

Ms. Del Campo. *Iyong sa disbursement po niya, opo, hindi bonded, pero kung iyong—dapat po diretso from the SDO to the recipient of the confidential fund po.*

The Presiding Officer. *So ang disbursement, puwede sa non-bonded na tao; ang transfer ng pondo sa non-bonded, hindi puwede. These are technical terms, hindi ba?*

Ms. Del Campo. *Opo.*

The Presiding Officer. *So kung ang pinagbigyan ay recipient, puwede iyon kahit non-bonded?*

Ms. Del Campo. *Opo, kasi siya na iyong talagang recipient ng confidential fund.*

The Presiding Officer. *And as a final question, Xylene. I checked the transcript, which the Court took judicial notice of. I would like to ask more eyes to look at it. Hindi ko nakita sa transcript na sinabi ni Gina Acosta na ibinigay niya kay Lachica lahat for the fourth quarter of 2022 and the first three quarters of 2023. Medyo may ganoong punto pa si Eduarda. Pero kay Gina Acosta, maliwanag na ibinigay niya iyong 125 ayon sa kaniya, kay Lachica, sa last quarter, pero hindi ganoon kaliwanag na iyon din ang ginawa niya for the first three quarters of 2023. Ano po ba partikular iyong pinagbasehan ninyong dokumento nang binanggit ninyong, "Dinisallow (disallow) namin agad dahil sabi ni Acosta ibinigay niya lahat kay Lachica"? Hindi ko po makita, baka puwede ninyong maituro sa TSN kung saan.*

Ms. Del Campo. *Iyon po kasi—ang pinanghahawakan namin doon, iyong general statement niya na iyong ginagawa nila is ibinibigay niya kay Colonel Lachica iyong confidential fund po.*

The Presiding Officer. *Pero ang tinutukoy po niya ay iyong 2025. Iyong general statement po ni Eduarda, iyon ang tumutukoy sa confidential fund ng DepEd para sa tatlong quarters ng 2023. Pero hindi po pareho iyong statement nila ni Gina Acosta na ganoon kaliwanag na iyon din iyong ginawa niya sa first three quarters of 2023. Ano po ba iyong partikular na pinagbasehan ninyo? When you say general statement iyong pinagbasehan ninyo, iyong narinig ninyo po ba o iyong TSN mismo?*

Ms. Del Campo. *Iyon nga po, iyong naging admission niya na ibinibigay niya kay Colonel Lachica po.*

The Presiding Officer. Kindly listen, Xylene. *Iyong narinig mo noong nandoon ka o iyong TSN mismo?*

Ms. Del Campo. *Iyong narinig ko po noong nandoon po ako na sinabi niya na ibinibigay niya kay Colonel Lachica.*

The Presiding Officer. *Hindi mo pinagbasehan iyong aktuwal na TSN na marahil mas maliwanag tungkol sa bagay na ito?*

Ms. Del Campo. *Opo.*

The Presiding Officer. So based lang doon sa narinig mo noong nandoon ka?

Ms. Del Campo. *Opo.*

The Presiding Officer. Thank you, Ms. Xylene.

QUESTIONS OF SENATOR-JUDGE PADILLA

Senator-Judge Padilla. *Kailyan, ituloy ko lang. Gusto ko lang sundan—kanina sinabi ko mayroong 55 alternative na eskuwelahan na nagbi-breed ng mga child warriors ang naisara sa Davao Region. Ituloy ko lang, noong August 6, 2024, nagkaroon ng committee hearing ang Public Order at sinasabi na 102 schools nationwide were identified as recruitment, 11 elementary schools, 34 high schools, 123 colleges and universities.*

Doon din sa hearing na iyon sinabi na mayroong 168 tracked student recruits remain active sa NPA.

Ngayon, tanong ko, kailyan, hindi ba responsibilidad din ito ng vice president at ng DepEd secretary, ang mga estudyante?

Ms. Del Campo. *Iyong sa college po, iyong DepEd po kasi is hanggang high school—*

Senator-Judge Padilla. *Sa high school.*

Ms. Del Campo. *Opo.*

Senator-Judge Padilla. *Opo, iyong binanggit ko po kasi kanina 55 na alternative child recruits, 11 elementary schools, 34 high schools. Ibig pong sabihin tuloy-tuloy po iyon, magmula elementary paakyat hanggang college. Iyan po ang style ng recruitment. So, sa tingin ninyo po ba, sagot pa din ito ng DepEd secretary at ng vice president na lumaban na dito sa terorista noong mayor pa lang siya?*

Ms. Del Campo. *Noong—*

Senator-Judge Padilla. *Oo o hindi, ma'am.*

The Presiding Officer. Just yes or no.

Ms. Del Campo. *Depende pa din po kasi iyon sa mandate ng—*

Senator-Judge Padilla. *Oo lang po o hindi. Sa palagay ninyo po ba—Sige, skip na po natin kung ayaw ninyong sagutin.*

Alam ninyo po ba na sinabi ng NICA, ng National Intelligence Coordinating Agency, na ang budget ng NPA, 2016 to 2018, ay 5.8 billion?

Ms. Del Campo. *Iyong sa—*

Senator-Judge Padilla. *Oo po o hindi? Ma'am, please.*

Ms. Del Campo. *Puwede pong pakiulit?*

Senator-Judge Padilla. *Ang budget daw po ng NPA is 5.8 billion. Alam ninyo po ba iyon? Sinabi po ng NICA.*

Ms. Del Campo. *Hindi ko po narinig iyon sa news.*

Senator-Judge Padilla. *Opo. Sa palagay ninyo po ba sapat iyong budget na—magkano po*

ba ang sinasabi ninyo, 500 million ba ang naibigay, kasama na po iyang sa vice president at sa DepEd? Kumpara ninyo po sa 5.8 billion, sapat po ba iyon?

Ms. Del Campo. *Pero kasi iyang sa nabanggit po ng NICA is kung mako-cover na rin po nila bilang isa sila sa mga agencies with—*

Senator-Judge Padilla. *So, alam ninyo po iyang sinabi ng NICA? Alam ninyo po?*

Ms. Del Campo. *Hindi ko po narinig iyon.*

Senator-Judge Padilla. *Iyong tungkol lang po sa estudyante. Kasi alam ninyo naman po sa ngayon ang nasa front na inilalagay ay mga estudyante. Nabalitaan ninyo po ba iyang mga namatay noong huli na mga estudyante?*

Ms. Del Campo. *Iyong violence po sa school?*

Senator-Judge Padilla. *Ito na lang po — January 1, 2024 sinabi po ng AFP na there is no more guerrilla active front. So, ibig sabihin po successful.*

Ms. Del Campo. *Based po sa AFP.*

Senator-Judge Padilla. *Salamat po.*

QUESTIONS OF SENATOR-JUDGE MARCOS

Senator-Judge Marcos. *Simple lang, iko-confirm ko lang sa ating testigo. So, I just like to confirm kung tama sabihin na as of now there is no official finding na may fraud sa DepEd man o sa OVP. Tama po ba? No fraud finding as of now.*

Ms. Del Campo. *Kasi nga po compliance audit lang po ginagawa namin sa COA.*

Senator-Judge Marcos. *Tama, compliance audit lamang, walang fraud audit.*

Ikalawa, narinig kita kanina na kapag compliance audit ay base sa dokumento lang. Limited kayo sa dokumentong isinubmit (submit) ng ahensiya. Kung ganoon, iyong House of Representatives, hindi naman bahagi ng OVP or DepEd. Wala namang sinubmit sa COA, hindi ba? May isinubmit ba sila, iyong Congress Committee on Good Governance, may isinabmit na dokumento?

Ms. Del Campo. *Iyon po kasi, based on other information na po after nilang mag-liquidate na naging—na available information after the liquidation na kinonsider (consider) po namin sa audit.*

Senator-Judge Marcos. *Hindi, ibig ko sabihin iyong congressional transcript ni Acosta at Fajarda, hindi iyon bahagi ng dokumentong isinumite ng mga ahensiya.*

Ms. Del Campo. *Opo. Pero ginamit din po namin iyong information na iyon during our audit po.*

Senator-Judge Marcos. *Bakit, humingi ka rin ba ng affidavit? Kasi hindi naman ibinigay ng agency. Kasasabi mo lang, kapag compliance audit, dokumentong galing sa ahensiya.*

Ms. Del Campo. *Pero iyon po is relevant information po na ginamit namin, isinama namin sa pag-audit.*

Senator-Judge Marcos. *Yes, following po the Presiding Judge, bakit po ganoon, kanina, sinabi mo dapat dokumento na isinubmit ng ahensiya, biglang ngayon, pati transcript, pati iba't-iba pang mga katibayan na sinasabi ginagamit na rin. Hindi na compliance audit iyon, hindi ba?*

Ms. Del Campo. *Pero iyon po kasi is related pa din doon sa liquidation, which is discovered after the submission of the liquidation documents.*

Senator-Judge Marcos. *Kaya nga nalilito kami. Kasi bakit dinis-allow lahat ng quarters, samantalang pinag-uusapan ni Acosta iisa lang, hindi ba, iyong last quarter lamang? Doon nga sa transcript, doon lumilitaw iyon. So ngayon, tinatanggap na rin pati mga transcript at iba't-iba. Hindi na dokumento iyon as covered by compliance audit, by your own definition, hindi ba?*

Ms. Del Campo. *Pero, relevant iyang information po in the conduct of the audit process.*

Senator-Judge Marcos. *Kung may relevant sa dyaryo, tatanggapin rin ninyo na ebidensya rin iyon? Compliance audit pa rin iyon kahit nasa dyaryo, nasa social media kung sa palagay mo may kinalaman doon sa kaso, tatanggapin ninyo?*

Ms. Del Campo. *Kasi nga po doon sa circular, puwede kaming mag-depend din sa other documents deemed necessary sa audit po.*

Senator-Judge Marcos. *So, puwede maski anong dokumento. Parang lumalabo yata iyang joint circular.*

Maraming salamat po.

The Presiding Officer. Thank you.

Again, that would be the last round for this witness.

Ms. Xylene, salamat po sa inyong kooperasyon, salamat sa inyong pasensya, salamat sa pagsagot sa lahat ng tanong mula sa magkabilang panig. Gayundin mula sa mga senator-judges.

You are excused, ma'am, and thank you very much for your time and cooperation.

Ms. Del Campo. Thank you po, Your Honor.

MANIFESTATION OF THE COUNSEL FOR THE PANEL OF PROSECUTORS

Representative Gerville Luistro requested for the reissuance of *subpoenas ad testificandum* for the following witnesses to be presented during the hearings on August 17-18, 2026, namely: Marivic Pareja, Bureau Director of the Legislative Information Resources Management Department of the House of Representatives (HOR); Gina F. Acosta, former Special Disbursing Officer of the Office of the OVP; Edward D. Fajarda, former Special Disbursing Officer of the DepEd; and Lemuel G. Ortonio, Assistant Chief of Staff of the OVP. She stated that the subpoena for Mr. Fajarda must be addressed to the OVP since he already transferred to the said office. She informed the Court that the written manifestation with request for *subpoenas ad testificandum* had been furnished to the Counsel for the Respondent and filed with the Office of the Clerk of the Impeachment Court.

The Presiding Officer then directed that the corresponding *subpoenas ad testificandum* be issued to the said witnesses, noting that the *subpoena* to Mr. Ortonio would be issued only for August 18 or 19. He added that the witnesses would take the stand in the order mentioned by Representative Luistro.

The Presiding Officer also reminded Representative Luistro, as the Lead Counsel for the Panel of Prosecutors, to furnish the Counsel for the Respondent within the day or the following day, with any requested stipulation for documents that they may require prior to the scheduled trial on Monday, August 17, 2026.

Atty. Sheila Sison stated that the Counsel for the Respondent has yet to receive any request for any factual stipulations from the Prosecution.

MANIFESTATION OF THE COUNSEL FOR THE RESPONDENT

Attorney Sison raised concern about a social media post of Atty. Amando Virgil Ligutan, one of the Counsels for the Panel of Prosecutors, at 11:29 a.m. stating that "A principle all lawyers and law students know by heart: Misleading questions are not allowed even on cross-examination." She noted that the post was subsequently picked up by *Inquirer.net* and surmised that it referred to the earlier exchange between Attorney Kapunan and Attorney Ferrer during the latter's cross-examination of the witness.



Attorney Sison stated that the post was troubling because it was made while the Impeachment Court was in session, pointing to Rule XVIII of the *Rules of Procedure on Impeachment Trials*, which prohibits participants, particularly lawyers, from commenting on the merits of the case.

While Attorney Sison acknowledged that one might argue that the social media post could be construed as a general comment on the propriety of misleading questions during cross-examination, she maintained that the post was inappropriate, particularly because it appeared to comment indirectly on a fellow member of the Bar. She stressed that despite representing opposing sides, the lawyers remain members of the Bar and officers of the Court who owed one another respect, courtesy, and kindness.

Attorney Sison further stated that she had instructed one of their lawyers to review the actual transcript of the exchange between the Attorney Kapunan and Attorney Ferrer, and based on the said review, contrary to the implication in Attorney Ligutan's social media post, Attorney Ferrer was not actually asserting that misleading questions during cross-examination are allowed. She maintained that the Court could verify the matter by reviewing or replaying the relevant portion of the proceedings.

Representative Luistro requested that Attorney Ligutan be recognized to explain his side.

The Presiding Officer declined the request, disclosing that the Clerk of Court had been instructed to monitor public statements made by counsels for the parties during the past weeks as he observed that some parties had repeatedly crossed the line with respect to public comments. He also stated that some comments before the media appear to violate Rule XVIII of the impeachment *Rules*.

The Presiding Officer recalled that the Court had previously proposed the parties to consider designating spokespersons who were neither members of the Prosecution Panel nor private prosecutors. He added that the parties have nonetheless elected to retain their existing arrangement. In light of the continued public statements, the Presiding Officer said that the Court was constrained to act and issue a ruling on Monday, after hearing both the Counsel for the Respondent and Attorney Ligutan on the matter. He thanked Attorney Sison for raising the issue, as the manifestation provided the Court with further reason to issue the ruling that had already been under consideration for several days.

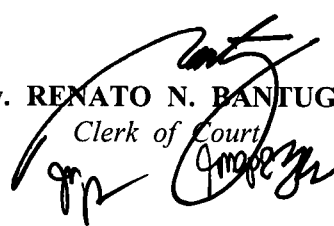
ADJOURNMENT OF THE IMPEACHMENT TRIAL

The Presiding Officer declared the impeachment trial adjourned until ten o'clock in the morning of Monday, August 17, 2026.

It was 4:16 p.m.

I hereby certify to the correctness of the foregoing.

Atty. RENATO N. BANTUG JR.
Clerk of Court



Approved on August 17, 2026